E-Tender Notice 2026-27 | Work Sr. No. 11

JAWHAR MUNICIPAL COUNCIL JAWHAR

PUBLIC WORKS DEPARTMENT

e-Tender Paper

https://mahatenders.gov.in

'B-1' TENDER AGREEMENT

TENDER PAPER

FOR

NAME OF WORK : **S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**

TENDER AMOUNT : **Rs. 52,55,092/- (Part-A - Work Portion Cost)**
Rs. 1,61,593/- (Part-B – Royalty & Testing Charges)
Rs. 54,16,685/- (Excluding GST)

CHIEF OFFICER
JAWHAR MUNICIPAL COUNCIL, JAWHAR

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NAME OF WORK:- **S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**

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Issued to : _____

Transaction ID : _____

Chief Officer
Jawhar Municipal Council, Jawhar

DISCLAIMER

1. Detailed Time Table for the various activities to be performed in e-tendering process by the Tenderer for quoting their offer is given in this Tender Document under **"Tender Schedule**", Contractor should carefully note down the cut-off" dates for the carrying out each e-tendering process / activity.

2. Every effort is being made to keep the Website up to date and running smoothly 24 x 7 by the Government and the Service Provider. However Government takes no responsibility, and will not be liable for, the website being temporarily unavailable due to any technical issue at any point of time.

3. In that event Public Works Department will not be liable or responsible for any damages or expenses arising from any difficulty, error, imperfection or inaccuracy with this Website, it includes all associated services, or due to such unavailability of the Website or any part thereof or any contents or any associated services.

4. Tenderers must follow the time table of e-tenderinq process and get their activities of e-tenderinq processes done **well in advance** so as to avoid any inconvenience due to unforeseen technical problem if any.

5. Public Works Department will not be responsible for any incomplete activity of e-tendering process of the tenderer due to technical error/ failure of website and it cannot be challenged by way of appeal, arbitration and in the Court of Law. **Contractors must get done all the e-tendering activities well in advance.**

C

GOVERNMENT OF MAHARASHTRA

PUBLIC WORKS DEPARTMENT

Original Agreement No.	:	**B-1/**
Name of Work	:	**S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**
Name of Contractor	:	
No. and Date of Work Order	:	
Amount put to Tender	:	**Rs. 52,55,092/- (Part-A - Work Portion Cost)** **Rs. 1,61,593/- (Part-B - Royalty & Testing Charges)** **Rs. 54,16,685/- (Excluding GST)**
Percentage quoted	:	
Amount of Contract	:	
Date of Commencement	:	
Time stipulated for	:	**03 (Three) Months** from the date of written order to start work, which will excluding monsoon period.
Date of completion as per Agreement	:	
Actual Date of Completion	:	
Reference to sanction of tender	:	

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

DETAILS OF WORK

NAME OF WORK:- **S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**

ESTIMATED COST OF WORK	:	**Rs. 52,55,092/- (Part-A - Work Portion Cost)** **Rs. 1,61,593/- (Part-B - Royalty & Testing Charges)** **Rs. 54,16,685/- (Excluding GST)**
EARNEST MONEY	:	
The EMD applicable amount shall be paid via Online mode only.	:	**Rs. 54,167/-**
Total Security Deposit 9% (Nine Percent),		
(i) Initial Security Deposit	:	**Rs. 1,08,334/-**
(ii) and Further Security Deposit to be deducted from bills.	:	**Rs. 3,79,168/-**
Total Security Deposit	:	**Rs. 4,87,502/-**
Registration Class of Contractor	:	**Appropriate Class**
Validity Period	:	**60 (Sixty) days from the date of opening**
Time limit for completion of work	:	**03 (Three) Months (excluding monsoon)**

TENDER SCHEDULE

Cost of Blank Tender Form	:	**Rs.2,500/- + (18% GST i.e. Rs.450/-) Total Rs.2,950/- (Rupees two thousand nine hundred fifty only)**
Download period of online Tender		As per the Tender Schedule
Last date and time for online bid preparation and Hash submission by the contractor (Technical and Financial).		As per the Tender Schedule
Period of online bid data decryption and re-encryption for tender details by the Contractor.		As per the Tender Schedule
Receipt of online EMD stamp paper of Rs. 100/- bond Affidavit (Original) in prescribed format given in Annexure I sworn before Executive Magistrate / Notary and Tender Document fees, to be paid online only via Payment Gateway mode		Document Tender Fee and EMD to be paid via online mode only.
Place, Date and timing of Opening of Technical and Financial Bid		As per the Tender Schedule If it is not possible to open it on the date specified above, the Bid opening authority shall communicate the change in opening date, which shall not be less than three working days after the date of communication (Excluding date of communication) on E-tendering web site.

TO BE FILLED BY THE CONTRACTOR

I/we have quoted my / our offer in percentage rate in words as well as figures. I/we further undertake to enter into contract in regular "B-1" Form of Public Works Department.

Name and signature of Contractor / Power of Attorney holder with complete address

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

ई-निविदा सूचना

कार्यालयाचे नाव - जव्हार नगर परिषद जव्हार, जि. पालघर

ई-निविदा सूचना सन २०२६-२०२७

मुख्याधिकारी, जव्हार नगर परिषद जव्हार, जि. पालघर खालील कामांकरिता योग्य त्या वर्गात नोंदविलेल्या अनुभवी व इच्छुक ठेकेदाराकडून ई-निविदा मागवित आहेत.

कामाचे संक्षिप्त वर्णन

अ. क्र.	कामाचे नाव	अंदाजित रक्कम रुपये	बयाणा रक्कम (१%)	सुरक्षा अनामत		निविदा फॉर्म फी	ठेकेदार नोंदणी वर्ग	काम करणेची मुदत
				करारनामा सोबत (२%)	बीलातून (७%)			
१	२	३	४	५	६	८	९	१०
१	जव्हार नगर परिषद हद्दीतील जलशुध्दीकेंद्र येथे भुमीगत टाकी बांधणे.	५५,४२,०५६/-	५५,४२१/-	१,१०,८४१/-	३,८७,९४४/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने
२	जव्हार नगर परिषद मालकीचे शिवाजी उद्यान येथे सिमेंट कॉक्रीट रस्ता व पायऱ्या बांधणे.	१६,८२,४४८/-	१६,८२४/-	३३,६४९/-	१,१७,७७४/-	२०००/- + जिएसटी ३६०/-	योग्य त्या प्रवर्गातील	३ महिने
३	जव्हार नगर परिषद हद्दीतील शिवनेरी धाबा ते कुलदिप हॉटेल पर्यंत रस्ता डांबरीकरण करणे व सिमेंट कॉक्रीट गटार बांधणे.	५८,२७,६५९/-	५८,२७७/-	१,१६,५५३/-	४,०७,९३६/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने
४	जव्हार नगर परिषद हद्दीतील सिटी सर्व्हे नंबर १०० व	४१,२३,८४१/-	४१,२३८/-	८२,४७७/-	२,८८,६६९/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने

	१०१ ब मध्ये रस्ता व सिमेंट कॉक्रीट गटार बांधणे.							
५	जव्हार नगर परिषद हद्दीतील प्रभाग क्र. ७ अंतर्गत सि.सि. गटार व रस्त्याचे कॉक्रीटीकरण करणे.	१३,६७,६१८/-	१३,६७६/-	२७,३५२/-	९५,७३३/-	२०००/- + जिएसटी ३६०/-	योग्य त्या प्रवर्गातील	३ महिने
६	जव्हार नगर परिषद हद्दीतील प्रभाग क्र. ८ अंतर्गत सि.सि. गटार व रस्त्याचे कॉक्रीटीकरण करणे.	२५,३८,७४०/-	२५,३८७/-	५०,७७५/-	१,७७,७१२/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने
७	जव्हार नगर परिषद हद्दीतील प्रभाग क्र. ९ अंतर्गत सि.सि. गटार व रस्त्याचे कॉक्रीटीकरण करणे.	१६,९२,१९२/-	१६,९२२/-	३३,८४४/-	१,१८,४५३/-	२०००/- + जिएसटी ३६०/-	योग्य त्या प्रवर्गातील	३ महिने
८	जव्हार नगर परिषद हद्दीतील प्रभाग क्र. १०अंतर्गत सि.सि. गटार व रस्त्याचे कॉक्रीटीकरण	१६,९२,४३७/-	१६,९२४/-	३३,८४९/-	१,१८,४७१/-	२०००/- + जिएसटी ३६०/-	योग्य त्या प्रवर्गातील	३ महिने

	करणे.							
९	जव्हार नगर परिषद हद्दीतील प्रभाग क्र. ३ मध्ये बौध्द विहाराचे नुतणीकरण करणे	४१,०७,८०९/-	४१,०७८/-	८२,१५६/-	२,८७,५४७/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने
१०	जव्हार नगर परिषद हद्दीतील जिमखाना हॉलच्या किचनचे नुतणीकरण करणे.	२६,४२,३६९/-	२६,४२४/-	५२,८४७/-	१,८४,९६६/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने
११	जव्हार नगरपरिषद हद्दीत महाराष्ट्र सॉ मील ते नगरपरिषद शैक्षणिक संकुलापर्यंत रस्त्याचे मजबुतीकरण व डांबरीकरण करणे.	५४,१६,६८५/-	५४,१६७/-	१,०८,३३४/-	३,७९,१६८/-	२५००/- + जिएसटी ४५०/-	योग्य त्या प्रवर्गातील	३ महिने

निविदा प्रक्रियेची तारीख व वेळ

अ.क्र.	निविदा प्रक्रियेचे स्वरुप	दिनांक	वेळ
१	ऑनलाईन टेंडर प्रसिध्दी	२१/०४/२०२६	सायंकाळो ०५:०० वा.
२	ऑनलाईन निविदा डाउनलोड करणेचा सुरुवात कालावधी	२१/०४/२०२६	सायंकाळो ०५:०० वा.
३	ऑनलाईन निविदा भरणेचा सुरुवात कालावधी	२१/०४/२०२६	सायंकाळो ०५:०० वा.
४	ऑनलाईन निविदा भरणेचा समाप्ती कालावधी	२९/०४/२०२६	सायंकाळो ०५:०० वा.
५	ऑनलाईन निविदा उघडणेचा कालावधी	३०/०४/२०२६	सायंकाळो ०५:०० वा.

१) सदर संपूर्ण निविदा प्रक्रीया ई-निविदाव्दारे ऑन लाईन पध्दतीने संगणक प्रणाली होईल. सदर निविदा, नोटीसा, प्रसिध्दी, सुचना आवश्यक असणारी कागदपत्रे, शुध्दीपत्रक इत्यादीची माहिती https://www.mahatenders.gov.in या संकेत स्थळावर उपलब्ध होईल.

२) कामांची निविदा https://www.mahatenders.gov.in या संकेत स्थळावरुन वरील दिलेल्या कालावधीत असेल.

३) निविदाकारांनी त्यांच्या बोली ऑनलाईन पध्दतीने सादर कराव्यात.

४) निविदेत भाग घेण्यासाठी निविदाकारांनी वरीलप्रमाणे नोंदणी वर्गवारीनुसार व त्यावरील डिजीटल सिग्नेचर आणि वर नमुद केलेल्या संकेतस्थळावर युजर आयडी व पासवर्ड नोंदणी असणे आवश्यक आहे.

५) सदर कामाची निविदा स्विकारल्यानंतर ठेकेदारास लेखी कळविल्यापासून ८ दिवसाचे आत नगपरिषदेच्या लाभात करारनामा करुन दिला पाहिजे व ती जबाबदारी ठेकेदाराची राहील त्याकामी आवश्यक ती मुद्राक फी भरणेची जबाबदारी ठेकेदाराची राहील व तसे न केल्यास ठेकेदाराने भरलेली बयाणा/ सुरक्षा अनामत रक्कम जप्त करणेत येईल.

६) कोणत्याही स्पष्टिकरणाकरिता ०२५२०-२९५०५३ या दूरध्वनी क्रमांकावर संपर्क साधावा.

७) कोणतेही कारण न देता सर्व निविदा नाकारण्याचा अधिकार निम्न स्वाक्षरीकार यांना राहील.

८) निधीच्या उपलब्धतेनुसार कामाचे कार्यादेश व देयक देण्यात येतील.

९) निविदाकारांनी निविदे सोबत जोडावयाचे कागदपत्र B-१ फॉर्म मध्ये नमुद केलेले आहे.

१०) कंत्राटदाराचे EPF/ESIC प्रमाणपत्र बंधनकारक राहील.

११) कंत्राटदारास जि.एस.टी प्रमाणपत्र व मागील ३ वर्षाचे आयकर विवरणपत्र सादर करणे बंधनकारक आहे.

१२) जव्हार नगरपरिषदेकडून दिलेल्या अटी शर्ती मध्ये बदल/शिथील करण्याचे तसेच खुलासा मागविण्याचा अधिकार निविदा समितीचा राहील.

जा.क्र. बांधकाम/ई-निविदा/कावि- ७५७ /२०२६
जव्हार नगर परिषद कार्यालय जव्हार,
पालघर, दिनांक १७/०४/२०२६

मुख्याधिकारी
जव्हार नगर परिषद जव्हार
जि. पालघर

GOVERNMENT OF MAHARASHTRA
PUBLIC WORKS DEPARTMENT
INVITATION FOR TENDERS

Detailed e-Tender Notice

NAME OF WORK:- **S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**

Online percentage rate tenders in 'B-1' Form are invited by the **Chief Officer, Jawhar Municipal Council, Jawhar** for the following works from Contractors registered in appropriate class of the Public Works Department of Maharashtra State. The name of work, estimated cost, earnest money, security deposit, time limit for completion etc. are as under.

Sr. No.	Name of work	Estimated Cost (Rupees)	Earnest Money (Rupees)	Security Deposit (Rupees)	Class of Contractor	Time limit in Tender (Calendar Months)
1	S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.	Part-A Rs. 52,55,092/- Part-B Rs. 1,61,593/- Total Rs. 54,16,685/-	54,167/-	4,87,502/-	Appropriate Class	03 (Three) Months Excluding monsoon

Tender form, conditions of contract, specifications and contract drawings can be downloaded from the eTendering portal of Public Works Department, Government of Maharashtra i.e. **https://mahatenders.gov.in** after entering the details, payment of **Rs.2,500/- + (18% GST i.e. Rs.450/-) Total Rs.2,950/- (Rupees two thousand nine hundred fifty only)** should be paid **via SBI MOPS Online Payment Gateway Mode Only**. The fees of tender document will be non refundable. Further information regarding the work can be obtained from the above office.

Affidavit on Rs.500/- stamp paper in prescribed form given in Annexure I sworn before Executive Magistrate / Notary, Additional Performance Security Deposit (If required), should be submitted **via SBI MOPS Online Payment Gateway Mode Only.** Bids will be opened as per the Tender Schedule, in the presence of such intending Tenderers or his/ their authorized representatives who may be present at that time.

TENDERING PROCEDURE: -

1.1. Blank Tender Forms.

1.1.1 Tender Forms can be downloaded from the eTendering portal of Public Works Department, Government of Maharashtra i.e. **https://mahatenders.gov.in** Document **Tender Fee** and **EMD** to be paid **Via SBI MOPS Online Payment Gateway Mode Only**. And upload successful payment receipt in Envelope No.1 **Technical Bid** Documents.

1.1.2 The tender submitted by the tenderer shall be based on the clarification, additional facility offered (if any) by the Department, and this tender shall be unconditional. Conditional tenders will be summarily REJECTED.

1.1.3 All tenderers are cautioned that tenders containing any deviation from the contractual terms and conditions, specifications or other requirements and conditional tenders will be treated as non responsive. The contractor should clearly mention in forwarding letter that his offer (in Envelope No.1 & 2) does not contain any condition, deviations from terms and conditions stipulated in the tender.

1.1.4 Tenderers should have valid **Class II / III Digital Signature Certificate (DSC)** obtained from any Certifying Authorities. In case of requirement DSC, Interested Bidders should go to process for new application of **DSC** Contact to **Vinayak Agre** Mobile No : **8879002344.**

1.1.5 For any assistance on the use of Electronic Tendering System, the Users may call the below
Toll Free Ph. No. **1800 3070 2232**
E-Mail : **eproc.maharashtra@gmail.com, cppp-support@nic.in**

1.2 Special Instructions to the Contractors / Bidders for the e-submission of the bids online through this tender site: https://mahatenders.gov.in

1.2.1 Bidder must register themselves on **https://mahatenders.gov.in** portal by clicking “Online Bidder Enrollment” and then map Digital Signature certificate.

1.2.2 Bidder then login to the site giving **User id / Password** chosen during registration.

1.2.3 The DSC e-token that is registered should be used by the bidder and should not be misused by others.

1.2.4 The Bidders can update well in advance, the documents such as certificates, purchase order details etc., under **My Documents** option and these can be selected as per tender requirements and then attached along with bid documents during bid submission.

1.2.6 If there are any clarifications, this may be obtained online through the tender site, or through the contact details. Bidder should take into account of the corrigendum published before submitting the bids online.

1.2.7 Bidder, in advance, should get ready the bid documents to be submitted as indicated in the tender schedule and they should be in **PDF/XLS/RAR** formats. If there is more than one document, they can be clubbed together.

1.2.8 Document **Tender Fee** and **EMD** to be paid via SBI MOPS Online Payment Gateway Mode only. and upload successful payment receipt in Envelope No.1 **Technical Bid** Documents.

1.2.9 The bidder reads the terms & conditions and accepts the same to proceed further to submit the bids.

1.2.10 The bidder has to submit the tender document online well in advance before the prescribed time to avoid any delay or problem during the submission process.

1.2.11 After the bid submission, the acknowledgement number, given by the e-tendering system should be printed by the bidder and kept as a record of evidence for online submission of bid for the particular tender.

1.2.12 Document **Tender Fee** and **EMD** to be paid via SBI MOPS Online Payment Gateway Mode only. And upload successful payment receipt in Envelope No.1 **Technical Bid** Documents. and **BOQ** in .**xls** format file to **Uploaded in Envelope Financial Bid Documents.**

1.2.13 The **Tender Inviting Authority (TIA)** will not be held responsible for any sort of delay or the difficulties faced during the submission of bids online by the bidders.

1.2.14 The bidder may submit the bid documents either by online mode through the site **(https://mahatenders.gov.in)** as indicated in the tender.

1.3 The tendering system will give a successful bid updating message after uploading all the bid documents submitted & then a bid summary will be shown with the bid no, date & time of submission of the bid with all other relevant details. The documents submitted by the bidders will be digitally signed using the DSC e-token of the bidder and then submitted.

1.3.1 The bid summary has to be printed and kept as an acknowledgement as a token of the submission of the bid. The bid summary will act as a proof of bid submission for a tender floated and will also act as an entry point to participate in the bid opening date.

1.3.2 Bidder should log into the site well in advance for bid submission so that he submits the bid in time i.e on or before the bid submission end time. If there is any delay, due to other issues, bidder only is responsible.

1.3.3 The bidder should see that the bid documents submitted should be free from virus and if the documents could not be opened, due to virus, during tender opening, the bid is liable to be rejected.

1.3.4 The time settings fixed in the server side & displayed at the top of the tender site, will be valid for all actions of requesting, bid submission, bid opening etc., in the e-tender system. The bidders should follow this time during bid submission.

1.3.5 All the data being entered by the bidders would be encrypted using PKI encryption techniques to ensure the secrecy of the data. The data entered will not viewable by unauthorized persons during bid submission & not be viewable by any one until the time of bid opening. Overall, the submitted tender documents become readable only after the tender opening by the authorized individual.

1.3.6 The confidentiality of the bids is maintained since the secured Socket Layer 128 bit encryption technology is used. Data storage encryption of sensitive fields is done.

1.3.7 The bidders are requested to submit the bids through online eTendering System to the TIA well before the bid submission end date & time **(as per Server System Clock)**.

1.3.8 The bidder should logout of the tendering system using the normal logout option available at the top right hand corner and not by selecting the **(X)** option in the browser.

1.3.9 The bidder should upload the **Technical Bid** in **.rar** format single file to upload in Technical cover and then **BOQ** in .**xls** format single file to **Uploaded in Envelope Financial Bid Documents.**

1.4 ENVELOPE NO. 1 (TECHNICAL BID)

The bidder must purchase the bidding documents via online mode by filling the cost of Tender.

The First Online envelope **"Envelope No. 1"** shall contain the following documents and as per mentioned by **Chief Officer, Jawhar Municipal Council Jawhar** :

1.4.1 **Scanned copy of** Partnership Deed and Power of Attorney, in case of a firm tendering for work. (True copy attested by a Gazetted Officer.)

1.4.2 **Scanned copy of** Government **(PWD or ZP)** Registration Certificate.

1.4.3 **Scanned copy of** EMD Online Pay Reciept.

1.4.4 **Scanned copy of** Pan Card Or Income Tax Settlement Certificates (last three years)

1.4.5 Documents proving technical capacity / vehicle / machinery used for construction by the monopolist.

1.4.6 **Scanned copy of** Documents proving financial viability, of Rs. 25 Lakhs Hon. Bank solvency in the name of the Chief Officer.

1.4.7 The tender holder will be required to submit an additional security deposit of 5% of the amount in the form of cash withdrawal. If the monopolist does not complete the work within the prescribed time, the back guarantee of the monopolist will be forfeited.

1.4.8 **Scanned copy of** GST Certificate.

1.4.9 **Scanned copy of Evidence** of Government work experience.

1.4.10 **Scanned copy of List** of skilled and technical staff.

1.4.11 **Scanned copy of** Affidavit (Former Executive Magistrate / Notary)

1.4.12 **Scanned copy of** Affidavit that the office corporaters are not involved in the contract (Former Executive Magistrate / Notary)

1.4.13 **Scanned copy of** GST As per the tender holder's obligation to pay all the Government tax liabilities, such as Royalty charges, insurance etc., it will be mandatory to make affidavit 100/- on the stamp paper. (Former Executive Magistrate / Notary)

1.4.14 The contract for the benefit of the Municipal Council should be entered into within 8 days from the written notification to the contractor after accepting the tender for the work and the responsibility will remain with the contractor.

1.4.15 Proof of power of attorney or agent seller if authorized on behalf of the tender holder.

1.4.16 The monopolist must attach to the bill the bill of payment of the workers' provident fund. Otherwise that amount will be deducted from the bill.

1.4.17 The list of Machinery and plants immediately available with the tenderer for use on this work and list of machinery proposed to be utilized on this work. **(Information to be given in Statement No.2, 2'A' on Page No.17 to 18)**

1.4.18 Proof of appointment of employees including technical personnel by way of valid Professional Tax Registration certificate in form PT/R under section (I) of section 5 of Maharashtra Sales Tax on Profession, Trade, Callings and employment Act, 1975, rule 3(2) from the Professional Tax Officer of the concerned District in Maharashtra. The Professional Tax Clearance Certificate with list of Employees duly attested by Professional Tax Officer shall be enclosed or shall be submitted before issue of work order.

1.4.19 Details of work done during last three years with the value of work unfinished. **(Information to be given in Statement No.1 on Page No.16). Supported by the Work Done Certificate given by the Chief Officer of the concerned division.**

1.4.20 The contractor shall submit an affidavit **(as per format given on Page No.11/12)** regarding completeness, correctness and truthfulness of documents submitted in Envelope No.1

Scanned copy of Affidavit in respect of genuineness of documents contained in the Envelope No.1 in the prescribed proforma provided with tender set on Stamp Paper of Rs. 500 (Proforma of Affidavit is attached with Tender)

The affidavit is also to be submitted physically as per schedule given in tender in original and will be the part and parcel of contract agreement.

Contractor will be solely responsible and liable for action under Indian Penal Code for uploading or physical submission of any false / fraudulent document / information of Envelope No. 1 & 2.

Contractor will be solely responsible and also liable for action under Indian Penal Code for submission of any false information, false bills / invoice / vouchers of purchase of material in supporting proof of purchase, proof of testing / test results and any other required documents submitted by his staff / representative or by himself or subletting company / contractor during contract period or even after completion of work till finalization of bill and completion of defect liability period.

If false information / documents are submitted as mentioned above, the contractor ill be blacklisted and if contract is at initial stage then such contract will be terminated and no any compensation will be payable on any account to the contractor.

Chief Officer will not be responsible for any complications due to submission of false / fraudulent documents by the contractor as mentioned above.

Separate Affidavit shall be submitted for each work in original. Affidavit shall be compulsory Notarified. Affidavit not confirming to these conditions will not be accepted and Envelope No.2 will not be opened

1.4.21 All the documents from **Sr.No. 1.4.1 to 1.4.20** submitted by contractor in Envelope No.1 shall be attested by Gazetted Officer before scanning otherwise his Envelope No.2 will not be opened.

Even though the Bidder meet the above qualifying criteria, they are subject to be disqualified if they have made.

Misleading or false representations in the Statements attachments submitted in proof of the qualification requirements.

And / or

Record of poor performance such as abandoning the works, not properly completing the contract, inordinate delays in completion, litigation history or financial failures etc.

1.4.22 All corresponding paras pertaining to the tender related subject to Maharashtra P. W. Manual shall be applicable to this tender.

1.4.23 USE OF SPECILISED MACHINERY: (OWNED OR HIRED) ***(As Applicable Machinery Shall be Use)***

(A) (a) Scanned copy of proof of ownership or lease

(i)	**MODERN DRUM MIX PLANT 40 to 60 or 80 to 100 TPH without SCADA System conforming to Clause No. 501.3.4 of MORT&H Specifications 5th Revision, 2013 edition) The Plant Must be within 60 Kilometres from centre of the work site. Shifting of plant not allowed.**	**{Owned/Hired}**
(ii)	**Mechanical Bitumen Sprayer without SCADA system**	**{Owned/Hired}**
(iii)	**Mechanical Paver Finisher or Paver finisher with electronic sensing device conforming to Clause 504.3.5 of MORT&H Specification 5th Revision 2013 edition**	**{Owned/Hired}**
(iv)	**Vibratory Road Roller of 8 to 10 tonne capacity**	**{Owned/Hired}**
(v)	**Bouzer of 10 MT Capacity for conveyance of asphalt**	**{Owned/Hired}**
(vi)	**Static Roller of 8 to 10 tonne capacity / Smooth Wheeled Power Roller**	**{Owned/Hired}**
(vii)	**Excavator**	**{Owned/Hired}**
(viii)	**Water Tanker (5000 Litres)**	**{Owned/Hired}**
(ix)	**Truck / Tipper / Tractor**	**{Owned/Hired}**
(x)	**Concrete Mixer of capacity with weigh Batcher**	**{Owned/Hired}**
(xi)	**Sand Screening cum washing unit electrically or diesel operated 4/6 cubic metre per hour capacity**	**{Owned/Hired}**
(xii)	**Centering Materials**	**{Owned/Hired}**

OR

Road works having BT component below Rs.15.00 lakhs. So the contractor shall have submit an undertaking on Rs.100/- stamp paper to execute the bituminous component as per tender specification (Format is enclosed on Page No.9)

Scanned copy of Valid Certificate issued by the Assistant Chief Engineer (Mech.) of Public Works Department / Region, to the effect that specialised Machinery enlisted in Statement No.2 'A' attached herewith are in "Efficient" - "Working condition" and in conformity with MORT&H Specifications must be enclosed in Envelope No. 1 in absence of this Certificate, Envelope No.2 will not be opened.

(B) Proof of use of specilised machinery for this work owned or hired agreement (Agreement on 100 Rs. Stamp paper and it shall be notarized) (Sample of agrrement to be given on Page No.14)

(C) Contractor should give Affidavit in Envelope No.1. “The Modern Drum Mix Plant as required under this contract is located with **60 (Sixty) kilometre** from work site.” Format prescribed on tender **Page No.10**

1.5 ENVELOPE NO.2 (FINANCIAL BID)

The second envelope clearly marked as **“Envelope No.2”** shall contain only the main tender including the Common Set of Conditions / Deviation issued by the Department after the pre-tender Conference. A tender submitted without this would be considered as invalid.

The Tenderer should quote his offer only through online bidding process in terms of percentage of estimated rates. He should not quote his offer anywhere directly or indirectly in Envelope No.1. The contractor shall quote for the work as per details given in the main tender and also based on the detailed set of conditions issued / Additional stipulations made by the Department as informed to him by a letter from Chief Engineer / Superintending Engineer after Pre-Tender Conference. His tender shall be unconditional.

1.6 SUBMISSION OF TENDER:

Refer to Section **“Guidelines to Bidders on the operations of Electronic Tendering System of Public Works Department”** for details.

1.6.1 Submission of Hard Cord copy of online Submitted copy.

Tenderer must submit the Hard Cord copy of online submitted copy to the Concerned Chief Officer’s / Superintending Engineer’s Office / Chief Engineer’s Office (as specified below)

(a) The bidder shall submit the Hard Copy in "Sealed Envelope" of Technical and Financial Bids as specified in NIT after the online submission of Bid ("Bid Lock") within 72 hrs. If problem arise during e-tendering process the hard copy in sealed envelope will be opened.

(b) Documents submitted online in Envelope No.1 & 2 are put in separate Envelope as Envelope No.1 (Technical Bid) and Envelope No.2 (Financial Bid) respectively and sealed properly.
(c) The above two sealed Envelope No.1 and 2 shall again put together in one common cover and sealed. The name of work, online tender Notice Number (i.e. SGN) and Name and full address of Tenderer with Mobile Number shall be mentioned on the said common cover marked sealed common cover properly covers corners.
(d) The above common cover containing Envelope No.1 & 2 must be submit to the **Chief Officer, Jawhar Municipal Council, Jawhar** within the time and date specified in Tender Schedule Flashed on Website portal on working days (during office hours) only.
(e) No delay on account of any cause will be enterained for the receipt said Hard Copy.
(f) If Tenderer fails or neglect to submit Hard Copy **his online offer (Tender) will be not be considered for further tendering procedure**.

1.7 OPENING OF TENDERS:

On the date, specified in the Tender Schedule, following procedure will be adopted for opening of the Tender.

(A) ENVELOPE NO. 1 (Technical Bid)

First of all Envelope No.1 of the tender will be opened online to verify its contents as per requirements. If the various documents contained in this envelope do not meet the requirements of the Department, a note will be recorded accordingly by the tender opening authority and the said tenderer's Envelope No.2 will not be considered for further action and the same will be recorded.

The decision of the tender opening authority in this regard will be final and binding on the contractors.

(B) ENVELOPE NO.2 (Financial Bid)

a) This envelope shall be opened online immediately after opening of Envelope No.1, only if contents of Envelope No.1 are found to be acceptable to the Department. The tendered rates in Schedule 'B' or percentage above/below the estimated rates shall then be read out. (From **Page No.18**) in the presence of bidders who remain present at the time of opening of Envelope No.2.

1.8 EARNEST MONEY:

(i) Earnest money of minimum Rs. 54,167/- shall be paid Via SBI MOPS Online Payment Gateway Mode Only.

(ii) (a) After Technical/Financial Evaluations unsuccessful bidder EMD auto refunded in same account where bid transaction done.
(b) After AOC successful bidder EMD auto refunded in same account where bid transaction done.
After Tender opening, the EMD of the unsuccessful bidder will be returned to account provided by the bidder during the bid preparation as given in challan under Beneficiary Account Number.
Earnest Money in the form of cheques or any other form except above will not be accepted.

(iii) The amount will be refunded to the unsuccessful tenderers on deciding about the acceptance or otherwise of the tender. In case of successful tenderer, it will be refunded on his paying initial Security Deposit and completing the tender documents in form B-1.

(iv) In case of Joint Venture, Earnest money Exemption certificate in individual capacity will not be accepted. Earnest money shall be paid via **SBI MOPS Online Payment Gateway Mode Only**. The Security Deposit, additional security deposit etc. in the form of T.D.R. / FIXED DEPOSIT RECEIPT issued in the name of Joint Venture Company drawn by scheduled bank having branches in Maharashtra and endorsed, in the name of **Chief Officer, Jawhar Municipal Council, Jawhar** for the period of one year will be considered.

1.9 SECURITY DEPOSIT :

The successful tenderer shall have to pay half of the security deposit in approved security form (preferably in the form of National Saving Certificate) or in cash or in the form of **Bank Guarantee (in the form as prescribed by Government) or Fixed Deposit Receipt** from any Scheduled Bank or Nationalised Bank and balance Security Deposit will be recoverable through the bills at the percentage as shown in item(s) of the Memorandum in printed B-1 form or as may be decided by the Chief Officer during course of execution of the work looking to the position and circumstances that may prevail, whose orders will be final and binding on the contractor.

The security deposit for the due performance of the contract shall be as detailed in the Tender Documents elsewhere. Fifty percent of the security deposit will have to be deposited within **ten days** (including Government holidays) of the acceptance of the tender and the remaining fifty percent will be recovered from the Running Bills at the rate as specified in the tender form, on the cost of work as per C.S.R. prevailing at the time of acceptance of tender. Amount of total security deposit to be paid shall be **9%** of the cost of work, worked out as per **e-S.S.R. 2023-2024** for the respective District. Initial Security Deposit may be in **Bank Guarantee form in format on Page No.13** of tender document for full period of completion of work and it should be extendable upto expiry of valid extension if any, as directed by Engineer-in-charge.

1.10 Details of proof of educational qualification of technical personel. Availability of project manager having minimum qualification of B.E. (Civil) degree and not less than five years experience or Diploma in Civil Engineering with not less than eight years of experience in construction of similar work and two site Engineers with B.E. (Civil) degree with minimum 3 years experience or Diploma in Civil Engineering with five years experience on works of similar nature and other key personnel with adequate experience exclusively for this works as required.

a) It is mandatory to enter the details of manpower provided by the contractor in the computerized system as mentioned in Annexure-B while submitting the construction tender.

b) Quality of construction should be answered and decisions should be made in time regarding maintenance quality of work. In this regard, while filling the details of available manpower by the contractor in the computerized system, the following points are to be considered.

c) If the contractor's tender is found to be lowest, an e-mail will be sent to deposit the security deposit for the work at the end of the tender process. After depositing the security deposit by the contractor, the details of the manpower employed will be provided along with the commencement order.

d) It is Mandatory Technical Qualification to have experience and experienced technical manpower available for the execution of construction works for the contractors executing the works in the P.W. Department. Therefore, no claims / compensation shall be made against the Department regarding provision of experienced technical manpower by the contractor for the implementation of the construction. In this regard, an affidavit should be taken on stamp paper of Rs.500/-

Note- Q.R. based technical manpower deployment certificate will be mandatory in the technical envelope under every tender.
(महाराष्ट्र शासन, सार्वजनिक बांधकाम विभाग, शासन निर्णय क्रमांक संकीर्ण-२०२१/प्र.क्र.५४/इमारती-२ दिनांक ०७/१२/२०२३.)

1. Bid capacity & technical manpower computer system has been developed to build the tendering capacity of contractors in public works department online. The said online computer system is available at www.mahapwd.gov.in through the link "bidcap.emahapwd.com" on the website of the Ministry of Education. As per Government Decision dated 11.5.2022, for all works costing Rs. 30 lakhs and also those contractors who have taken up 3 works worth Rs. 30 lakhs or more in a financial year, if they want to take up works in that financial year, in the P.W. Department. It will be mandatory to upload the Bid Capacity & Technical Manpower Deployment Certificate using the Web Based Computer System while submitting the tender.
2. According to be instructions given under the government decision dated 11.5.2022, the conditions of submission of Bid Capacity and Technical Manpower Deployment certificate from the computerized system for the tender of all types of works above Rs.30.00 lakh.
3. Bid Capacity Certificate is to be uploaded by the contractor along with each tender using the Bid Capacity computerized system. While checking the Bid Capacity of the contractor who has filled the tender in the department, the work in progress with the contractor (from the details in GST R 7), the works for which the contractor has been given the lowest price, the works for which the work has been ordered will be available for inspection the Executive Engineer through this computerized system. The Executive Engineer, while checking the Bid Capacity of the Contractor who has submitted the tender for the work in the department, after deducting the works held by the contractor, the works that have been given the lowest price etc., if there is sufficient Bid Capacity, take an immediate decision regarding the technical envelope of the said tender and take up the next process. But if the bid capacity is not sufficient for the work tendered to the department considering the works with the contractor, the works for which the lowest bid has been given, it is necessary to contact that department and take further action / decision regarding the work with L1 Bidder from other department.
4. For this, Contractor shall submit Annexure-A & support to enclosed Annexure-A, it is required to submit the details of works, certificate of all works, selected documents by Chartered Accountant showing turnover, annual tax credit statement "Form 26A", CBIL SCORE documents.
It is mandatory for all Public Works Departments to submit GST returns to the Goods and Services Tax Department on a monthly basis, all the tax returns in the department are being given in the computerized system as an option for Annexure R-GST Generation on an experimental basis. It will be mandatory for all departments to send Annexure R-GST to the Goods and Services Tax Department using this system.
Bidders who meet the minimum qualification criteria will be qualified only if their available bid capacity is more than the total bid value. The available bid capacity will be calculated as under:-

Required bid capacity is not less than Rs. 54,16,685/-
Assessed Available Bid Capacity **= [(A x N x 1.5) - B]**

Where ……

A = Maximum value of civil engineering works executed in any one year during last **five** years (updated to **2025-2026**) taking into account the completedworks as well as on going work.
N = Number of years prescribed for completion of the work for which bids are invited.
B = Value of exising committment and ongoing work in hand (During period of work under consideration)

Note: The statement showing the value of existing commitments and on going work as well as the stipulated period of completion remaining for each of the works listed should be countersigned by the officer not below the rank of the Chief Officer and Bid Capacity statement of the contractor should be got certified from the Chartered Accountant.

Note- Q.R. based bid capacity will be mandatory in the technical envelope under every tender.
(महाराष्ट्र शासन, सार्वजनिक बांधकाम विभाग, शासन निर्णय क्रमांक संकीर्ण-२०२१/प्र.क्र.५४/इमारती-२ दिनांक ०७/१२/२०२३.)

1.11(A) ADDITIONAL PERFORMANCE SECURITY

It is mandatory to L-1 tenderer that he shall submit Additional Performance Security in the form of **Bank Guarantee / Demand Draft/ Fixed Deposit Receipt** of any Nationalised or Scheduled Bank in favour of **Chief Officer, Jawhar Municipal Council, Jawhar payable at Jawhar** within **08 (Eight) days** after opening of Envelope No.1 & 2 at Division office.

The amount of the (Additional Performance Security) **Bank Guarantee / Demand Draft/ Fixed Deposit Receipt** shall be calculated by the tenderer in accordance with the following manner.

1.11(A.1) If the tenderer had quoted below the estimated rates, the Additional Performance Security shall be paid additionally as mentioned below.

a)	**If the offer submitted is below schedule 'B' rates by more than 1% but less than 10% of the estimated cost put to tender.**	**1% of the estimated coat put to tender**
b)	**If below more than 10% of the estimated cost put to tender**	**1% of the estimated cost put to tender plus an amount equal to the percentage by which the offer is below 10% of the estimated cost put to tender. (e.g. if the offer is 14% below, the Performance Security will be 1% + (14%-10%)= 5% of the estimated cost put to tender.**
c)	**If offer is more than 15% below**	**For balance amount, submission of double amount in the form of Bank Guarantee / Demand Draft/ Fixed Deposit Receipt is mandatory for example 19% below rate** **Upto 10% below rate = 01%** **Upto 15% below rate = 05%** **(15% - 10%)** **Upto 19% below rate = 08%** **(19% - 15%) = 4% x 2 = 08%** **Total = 14%**

Note:- (i) For more than 10% below and upto 15% below 'b' is applicable.
(ii) For more than 15% below 'c' is applicable

1.11(A.2) The Bank Guarantee / Demand Draft/ Fixed Deposit Receipt shall be valid beyond one month after expiry of Defect Liability Period.

1.11(A.3) In case it is found that the document Bank Guarantee / Demand Draft/ Fixed Deposit Receipt submitted by tenderer are false or misleading, his earnest money shall be forfeited. Also the registration of the tenderer shall be suspended for the period of one year. Additionally legal action may be initiated agaist the tenderer.

1.11(A.4) The work order shall be given to the concerned tenderer after the clearance of the Bank Guarantee / Demand Draft/ Fixed Deposit Receipt submitted by him.

REFUND OF ADDITIONAL PERFORMANCE SECURITY

1.11(A.5) The amount of the Additional Performance Security shall be refunded within 3 months after completion of Defect Liability Period, as per Government of Maharashtra, Public Works Department, Mantralaya, Mumbai G.R. No.CAT-2017/CR-8/(II)/Bldg-2 Dated 27/09/2018.

1.11(A.6) Non submission of Additional Performance Deposit and performance security or submission of less amount of the Additional Performance Security deposit shall be liable to summarily rejection of his tender.

1.11(A.7) After complete tender procces, if bidder submitted the Demand Draft with tender, then the lowest bidder will be submit requisite amountof Bank Guarantee and then Demand Draft will be refunded with tender

1.11(A.8) The said amount of Additional Performance Security shall not carry any interest whatsoever.

1.12 ISSUE OF FORMS:

Information regarding contract as well as blank tender forms can be downloaded from the eTendering website upon providing the details of the payment of cost as detailed in the N.I.T.

1.13 TIME LIMIT :

The work is to be completed within time limit as specified in the N.I.T. which shall be reckoned from the date of written order for commencing the work and shall be inclusive of monsoon period.

1.14 TENDER RATE :

No alteration in the form of tender and the schedule of tender and no additions in the scope of special stipulation will be permitted. Rates quoted for the tender shall be taken as applicable for all leads and lifts.

1.15 TENDER UNITS:

The tenderers should particularly note the unit mentioned in the Schedule “B” on which the rates are based. No change in the units shall be allowed. In the case of difference between the rates written in figures and in words, the correct rate will be the one, which is lower of the two.

1.16 CORRECTION:

No corrections shall be made in the tender documents. Any corrections that are to be made in the documents submitted by tenderer shall be made by crossing the incorrect portion and writing the correct portions above with the initials of tenderer.

1.17 TENDER’S ACCEPTANCE:

Acceptance of tender will rest with the **Chief Officer, Jawhar Municipal Council, Jawhar** who reserves the right to reject any or all tenders without assigning any reason therefore. The tenderer whose tender is accepted will have to enter in to a regular B-1 agreement within 10 days of being notified to do so. In case of failure on the part of Tenderer to sign the agreement within the stipulated time, the earnest money paid by him shall stand forfeited to the Government and the offer of the tenderer shall be considered as withdrawn by him.

1.18 CONDITIONAL TENDER:

The tenders which do not fulfill the condition of the notification and the general rules and directions for the guidance of contractor in the agreement form or are incomplete in any respect are likely to be rejected without assigning any reason therefore.

1.19(a) The Tenderers shall be presumed to have carefully examined the drawings, conditions and specifications of the work and have fully acquainted themselves with all details of the site, the conditions of rock and its joints, pattern, river, weather characteristics, labour conditions and in general with all the necessary information and data pertaining to the work, prior to tendering for the work.

1.19(b) The data whatsoever supplied by the Department alongwith the tender documents are meant to serve only as guide for the tenderers while tendering and the Department accepts no responsibility whatsoever either for the accuracy of data for their comprehensiveness.

1.19(c) The quarries for extraction of metal, murum etc. provided in the sanctioned estimate are as per survey conducted by the Department. The Contractor should however examine these quarries and see whether full quantity of materials required for execution of the work strictly as per specification are available in these sources before quoting the rates. In case the materials are not available due to reasons whatsoever, the contractor will have to bring the materials from any other sources with no extra cost to Government. The rates quoted, should therefore be for all leads and lifts from wherever the materials are brought at site of work and inclusive of royalty to be paid to the Revenue Department by the Contractor.

1.20 POWER OF ATTORNEY:
If the tenderers are a firm or company, they should in their forwarding letter mention the names of all the partners together with the name of the person who holds the power of Attorney, authorizing him to conduct all transactions on behalf of the body, alongwith the tender as per scanned copy uploaded in envelope No. 1.

1.21 The tenderer may, in the forwarding letter, mention any points be may wish to make clear but the right is reserved to reject the same or the whole of the tenders if the same become conditional tender thereby.

1.22 The contractor or the firms tendering for the work shall inform the Department if they appoint their authorized Agent on the work.

1.23 No foreign exchange will be released by the Department for the purchase of plants and machinery for the work by the Contractor.

1.24 Any dues arising out of contract will be recovered from the contractor as arrears of Land Revenue if not paid amicably. Moreover, recovery of Government dues from the Contractors will be affected from the payment due to the Contractor from any other Government works under execution with them.

1.25 All scanned pages of tender documents, conditions, specifications, corrections slips etc. shall be initialed by the tenderer. The tender should bear full signature of the tenderer, or his authorized power of Attorney holder in case of a firm.

1.26 The Income Tax at prevailing rates including surcharges or percentage in force from time to time or at the rate as intimated by the competent Income Tax authority shall be deducted from bill amount whether measured bill, advance payment or secured advance.

1.27 The successful tenderer will be required to produce to the satisfaction of the specified concerned authority a valid concurrent license issued in his favour under the provisions of the Contract Labour (Regulation and Abolition) Act 1970 for starting the work. On failure to do so, the acceptance of the tender shall be liable to be withdrawn and also liable for forfeiture of the earnest money.

1.28 The tenderer shall submit the list of apprentices engaged by the Contractor under Apprentice Act.

1.29 VALIDITY PERIOD :
The offer shall remain open for acceptance for minimum period of **60 (Sixty) days** from the Date of opening of Envelope No.2 (Financial Bid) and thereafter until it is withdrawn by the contractor by notice in writing duly addressed to the authority opening the tender and sent by Registered Post Acknowledgment due. **(ref. to memorandum on Page No.21 of B-1 Form Chapter)**

1.30 CASHLESS:
Contractor shall submit a certificate to the effect that “All the payments to the labour / staff are made in bank accounts of staff linked to Unique Identification Number (AADHAR CARD)” The certificate shall be submitted by the contractor within 60 days from the commencement of contract. Iof the time period of contract is less than 60 days then such certificate shall be submitted within 15 days from the date of commencement of contract. (Vide Marathi G.R.No. Tender-2016/C.R.20/Shikana/Bldg-2, Dated 09/12/2016)

1.31 INTEGRITY PACT
The sucessaful tenderer shall submit the Integrity Pact **(Format is given page No.88 to 92)** before the work order

1.32 Payment of Security Deposit by Bank Guarantee and Online Bank Guarantee Verification:
If the contractor wishes to deposit security deposit by Bank Guarantee after tender approval then it is mandatory for contractor to verify the Bank Guarantee by paying verification fees of Rs.1000/- + GST through the link provided Below
(https://onlinebg.emahapwd.com)

PROFORMA FOR UNTERTAKING

(The agreement should be attested (Affidavit) by Notary or Executive Magistrate)

कामाचे नांव -

सदरील कामात हॉट मिक्स संदर्भातील कामे मी / आम्ही हॉट मिक्स प्लांट धारकाकडून निविदेतील अटी व शर्तीनुसार करुन देणेस बांधील आहे / आहोत.

कंत्राटदाराची स्वाक्षरी व शिक्का

100 Rs. Bond

नमुना सत्यप्रतिज्ञा पत्र

सत्यप्रतिज्ञा लेख (Affidavit)

कामाचे नांव -

मी / आम्ही ---------- राहणार ---------- या सत्यप्रतिज्ञा लेखाद्वारे लिहून देतो की, वरील विषयातील कामामधील डांबरीकरणाचे काम हॉट मिक्सने करुन देणेस बांधील आहे.

सदरचा हॉट मिक्स प्लांट हा वरील जागेपासुन ६० किलोमीटरच्या आत आहे हे मी प्रतिज्ञापूर्वक लिहुन देत आहे.

कंत्राटदाराची स्वाक्षरी व शिक्का

परिशिष्ट-१

नमुना सत्यप्रतिज्ञा पत्र (रु.५००/- च्या स्टॅम्प पेपरवर)

सत्यप्रतिज्ञा लेख (Affidavit)

मी ---------- वय वर्ष ---------- राहणार ---------- ---------- या सत्यप्रतिज्ञा लेखाद्वारे लिहून देतो की, मी ---------- या फर्मचा / कंपनीचा मालक असुन ---------- ----------

या कामासाठी निविदा सादर करीत आहे. त्या निविदेच्या लिफाफा क्र.१ **(Envelope No.1)** मध्ये जी कागदपत्रे सादर केली आहेत ती खरी, बरोबर व पूर्ण आहेत. त्यामध्ये कोणत्याही त्रुटी, चुका नाहीत याची मी खात्री केलेली असुन असे शपथपूर्वक खालील अटी व शर्थीसह मान्य करीत आहे. या कागदपत्रांमध्ये काही चुकीची, दिशाभूल करणारी, खोटी व तसेच अपूर्ण माहिती आढळल्यास मी भारतीय दंडसंहिता अंतर्गत कायदेशीर कार्यवाहीस पात्र राहीन.

१. जर कंत्राट कालावधी दरम्यान, मी माझ्या कार्यालयाने किंवा माझ्या कर्मचा-यांनी सार्वजनिक बांधकाम विभागाला कोणतीही खोटी माहिती किंवा देयका समवेत तसेच पत्र व्यवहारात खोटी / बनावट साहित्य खरेदीची कागदपत्रे सादर केली असल्यास, मी भारतीय दंडसंहिता अंतर्गत कायदेशीर कार्यवाहीस पात्र राहीन.

२. जर कंत्राट कालावधी दरम्यान आणि काम समाप्ती नंतर, अंतीम देयक देणाच्या तारखेपर्यंत सादर केलेली कोणतेही कागदपत्रे खोटी / बनावट किंवा फसवी आढळल्यास, मी भारतीय दंडसंहिता अंतर्गत कायदेशीर कार्यवाहीस पात्र राहीन.

३. जर काम समाप्ती नंतर दोष दायित्व कालावधी दरम्यान किंवा त्यानंतर कोणत्याही वेळी, कोणतीही माहीती किंवा कागदपत्रे खोटी / बनावट किंवा फसवी किंवा दिशाभूल करणारी आढळल्यास, मी भारतीय दंडसंहिता अंतर्गत कायदेशीर कार्यवाहीस पात्र राहीन.

कंत्राटदाराची स्वाक्षरी व शिक्का

ANNEXURE - 1

(After opening of Envelope No.1, Document submit by Contractor in scrutiny or future scrutiny any document false till finalized work or bill contractor will be liable and action will be taken as laws, not any responsibility of department officers and employers [As Govt. GR Dated 28-11/2018])

AFFIDAVIT
(on Rs.500/- Stamp Paper)

I _____ age _____ address _____ _____ (Authorised signatory to sign the contract), hereby submit, vide this affidavit in truth, that I am the owner of the contracting firm _____ / authorized signatory and I am submitting the documents in envelope No.1 for the purpose of scrutiny of the contract. I hereby agree to the conditions mentioned below:

1. I am liable for action under Indian Penal Code for submission of any false / fraudulent paper / information submitted in envelope no.1

2. I am liable for action under Indian Penal Code if during contract period and defect liability period, any false information, false bill of purchases supporting proof of purchase, proof of testing submitted by my staff, subletting company or by myself, I will be liable for action under Indian Penal Code.

3. I am liable for action under Indian Penal Code if any paper are found false / fraudulent during contract period and even after the completion of contract (finalisation of final bill)

(Signature of Contractor)
(Seal of Company)

MODEL FORM OF BANK GUARANTEE BOND

(On stamp paper worth Rs.100/-)

In consideration of the Governor of Maharashtra (here in after called "The Government") having agreed to exempt _____ (here in after referred to as "The Contractor") from depositing with the Government in cash the sum of Rs. _____ (Rupees_____ _____ Only) being the amount of security deposit payable by the Contractor to the Government under the terms and conditions of the agreement dated the _____ day of _____ and made between the Government of the on part and the Contractor of the other part (here in after referred to as "the said agreement") for _____ as security for the observance and performance by the Contractor of the terms and conditions of the said Agreement, on the contractor furnishing to the Government and guarantee in the prescribed form of a Schedule Bank in India being in fact these presents in the like sum of Rs._____ (Rupees_____ _____ Only). We _____ BANK/LIMITED registered in India under _____ Act and having one of our local Head Office at _____ do hereby:

1. Guarantee to the Government:

a) Due performance and observance by the Contractor of the terms. Covenants and conditions on the part of the contractor contained in the said Agreement and

b) Due and punctual payment by the Contractor to the Government of all sums of money, losses, damages, cost charges, penalties and expenses payable to the Government by the Contractor under or in respect to the said agreement.

2. Undertake to pay to the Government on demand and without demand and not withstanding any dispute or disputes raised by the Contractor(s) in any suit or proceeding filed in any court or tribunal relating there to the said sum of Rs._____ (Rupees_____ _____Only) or such less may be demanded by the Government from us our liability hereunder being absolute and unequivocal and agree that.

3. a) The guarantee herein contained shall remain in full force and effect during the subsistence of the said agreement and the same will continue to be enforceable till all the dues of the Government under or by virtue of the said agreement have been duly paid and its claims satisfied or discharged and till the Government certifies that the terms and conditions of the said agreement have been fully, properly carried out by the Contractor.

b) We shall not be discharged or released from the liability under this guarantee by reason of:

i) Any change in the constitution of the bank or the Contractor or ;
ii) Any arrangement entered in between the Government and the Contractor with or without our consent ;
iii) Any forbearance or indulgence shown to he Contractor ;
iv) Any variation in the terms convenants or contained in the said agreement;
v) Any time given to the Contractor ;
vi) Any other conditions or circumstance under which, in law, a surety would be discharged ;

c) Our liability here under shall be joint and several with that of the Contractor as if we were principal debtors in respect of the said sum of Rs._____(Rupees_____ _____ Only.) and

d) We shall not revoke this guarantee during its currency except with the previous consent in writing of the Government. IN WITNESS WHERE OF the common seal of _____ has been herein to affixed this _____ day of _____20____.
The common seal of _____ was pursuant to the resolution of the Board of Directors of the company dated the _____ day of _____ herein affixed in the presence of who, in token thereof, have here to set their respective hands in the presence of.

1. _____

2. _____

ARTICLES OF AGREEMENT (For Asphalt / Concrete Work)
If applicable

(This document should be on Original Stamp Paper of Rs.100/- not on Xerox Copy)
(The agreement should be attested (Affidavit) by Notary or Executive Magistrate)

This Agreement of Hire of Machinery made and executed at _____on this, the _____ Dav of the month of _____ 20_____ BETWEEN :-

1) Shri / M/s._____

A Sole Trading concern Pvt. Ltd. Co. / Public Ltd. Co, / Partnership firm registered under the provisions of respective Acts in force and having his / their Office situated. at————————------- and managed by Shri -_____

who is a,

i) Sole Proprietor of the above mentioned concern.

ii) Partner of the above mentioned partnership firm.

iii) Holder of power of attorney of the above mentioned firm, Executive Director or Manager of the above mentioned company as approved by the present board of Director of the above mentioned Company, Hereinafter for the sake of brevity referred to as “The Owner” (Which expression shall, unless it be repugnant to the meaning of context thereof, mean and included the firm of all partners of the firm, the company at material time and their successors).

Party of the First Part.

AND

2) Shri / M/s _____ Contractors.

A sole trading concern / Private Limited Company / Public Limited Company / Partnership firm registered under the provisions of respective acts in force and registered Government contractors registered in appropriate dass with Government of Maharashtra Having his / their office situated at ————— and managed by Shri. _____

Who is a,

i) Sole Proprietor of the above mentioned concern.

ii) Partner of the above mentioned partnership firm.

iii) Holder of power of attorney of the above mentioned firm, Executive Director or Manager of the above mentioned company. Hereinafter for the sake of brevity referred to as “The Hirer” (Which expression shall, unless it be repugnant to the meaning of context thereof, mean and included the firm of all partners of the firm, the company at material time and their successors).

Party of the Second Part.

Where in the party of the first part herein is an absolute owner of the _____ Name of machine / s and to substantiate or establish it the documentary evidence in token of voucher enclosed. Where as party of the second part herein is a registered Government Contractors as stated in appropriate class with Government of Maharashtra. AND where as the party of the second part is or is likely to submit the tender for _____ Chief Officer / Superintending Engineer,

AND WHERE AS the party of the second part intends to use the machinery of the said work as is being stipulated by the Department and desirous of taking the one / s on monthly hire charges basis.

AND WHERE AS the party of the first part, is desirous of giving the machinery on hire charges basis to the party of the second part.

AND WHERE AS to these presents are desirous of recording the terms and of the agreement, reduce the same to writing. Now therefore these articles of agreement witness as under.

1) _____

2) _____

DECLARATION OF THE CONTRACTOR

I/We hereby declare that I/We have made myself / ourselves thoroughly conversant with the subsoil conditions, the local conditions regarding all materials (such as stone, murum, sand etc.) and labour of which I/We have based my/our rates for this work. The specifications, conditions bore results and lead of materials on this work have been carefully studied and understood by me/us before submitting this tender. I/We undertake to use only the best materials approved by the **Chief Officer, Jawhar Municipal Council, Jawhar** or his duly authorised assistant, before starting the work and to abide by his decision.

I/We hereby further declare that my / our tender is unconditional in every manner of whatsoever in nature.

I / We hereby undertake to pay the labourers engaged on the work as per Minimum Wages Act. 1948 applicable to the zone concerned.

TO BE FILLED BY THE CONTRACTOR

I/we have quoted my/our offer in percentage rate in words as well as in figures. I/we further undertake to enter into contract in regular “B-1” form in Public Works Department.

Name and Signature of Contractor(s) /
Power of attorney holder with complete address.

Signature of Contractor(s)

STATEMENT NO.1

STATEMENT SHOWING WORK DONE IN ALL CLASSES OF CIVIL ENGINEERING CONSTRUCTION WORKS DURING LAST THREE YEARS.

NAME OF CONTRACTOR: _____

Sr. No.	Name of Work	Amount put to tender/ tendered cost.	Agreement	Date of Commen-cement	Amount of work done during each of last Three years			Amount of work still remaining to be executed 2026-27 (Rs. In Lakhs)	Remarks
					2023-24	2024-25	2025-26		
1	2	3	4	5	6	7	8	9	10

SPECIMEN FORM

Note: This is only a standard form. Details are to be furnished in this format. In form of typewritten statements which shall be enclosed in envelope No. 1

Grand Total: _____

Outward No. and date of certificate issuing authority

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

STATEMENT NO.2

STATEMENT SHOWING LIST OF PLANT AND MACHINERY IMMEDIATELY AVAILABLE WITH THE TENDERER FOR THIS WORK

NAME OF CONTRACTOR: _____

Sr.No.	Name Of equipment	No. of Units	Kind and make	Capacity	Age and condition	Present Location	Remarks
1	2	3	4	5	6	7	8

SPECIMEN FORM

Note 1: This is only a standard form. Details are to be furnished in this format. In form of typewritten statements which shall be enclosed in envelope No.1

Note 2: List of Machinery proposed to be utilized on this work but not immediately available and the manner in which it is proposed to be procured shall be given in above form No. II

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

STATEMENT NO. 2 'A'
(TO BE INCLUDED IN ENVELOPE NO.1)

(Applicable for works for which use of modern machineries for concreting and asphalting is specified)

QUESTIONAIRE ON MODERN MACHINERY: Owned or Hired

Proforma for information regarding availability of machinery required for this work. **(Ref. 1.4.12 Page No.4)** is given below.

(A) Scanned copy of proof of ownership or lease *(As Applicable Machinery Shall be Use)*

(i)	**MODERN DRUM MIX PLANT 40 to 60 or 80 to 100 TPH without SCADA System conforming to Clause No. 501.3.4 of MORT&H Specifications 5th Revision, 2013 edition) The Plant Must be within 60 Kilometres from centre of the work site. Shifting of plant not allowed.**	**{Owned/Hired}**
(ii)	**Mechanical Bitumen Sprayer without SCADA system**	**{Owned/Hired}**
(iii)	**Mechanical Paver Finisher or Paver finisher with electronic sensing device conforming to Clause 504.3.5 of MORT&H Specification 5th Revision 2013 edition**	**{Owned/Hired}**
(iv)	**Vibratory Road Roller of 8 to 10 tonne capacity**	**{Owned/Hired}**
(v)	**Bouzer of 10 MT Capacity for conveyance of asphalt**	**{Owned/Hired}**
(vi)	**Static Roller of 8 to 10 tonne capacity / Smooth Wheeled Power Roller**	**{Owned/Hired}**
(vii)	**Excavator**	**{Owned/Hired}**
(viii)	**Water Tanker (5000 Litres)**	**{Owned/Hired}**
(ix)	**Truck / Tipper / Tractor**	**{Owned/Hired}**
(x)	**Concrete Mixer of capacity with weigh Batcher**	**{Owned/Hired}**
(xi)	**Sand Screening cum washing unit electrically or diesel operated 4/6 cubic metre per hour capacity**	**{Owned/Hired}**
(xii)	**Centering Materials**	**{Owned/Hired}**

QUESTION: 1
Is the above machinery at Sr. No. **(A)** is **owned or hired** by you and available with you immediate on this work?
If 'Yes' give following information.

Type of Machine	Number of Units	Names of works on which deployed at present	Location	Output in tonnes of mix per day	Quantity in tonnes of Hot Mix balance for execution on work in hand	Remarks
1	*2*	*3*	*4*	*5*	*6*	

(Duly attested by Gazetted Officer)

Along with this statement Contractor shall submit their proof of **ownership or lease** of machinery (i.e. Attested copies of invoices) as well as the Scanned copy of Valid Certificate issued by the **Assistant Chief Engineer (Mech.) of Public Works Department** to the effect that these Machineries are in **"Efficient" - "Working condition"** and Plant with MORT&H Specifications must be enclosed in Envelope No. 1 in absence of this Certificate, Envelope No.2 will not be opened.

FORM B-1

PERCENTAGE RATE TENDER AND CONTRACT FOR WORKS

DEPARTMENT : PUBLIC WORKS DEPARTMENT

DIVISION : JAWHAR MUNICIPAL COUNCIL, JAWHAR

NAME OF WORK : S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.

General Rules and Directions for the Guidance of Contractors.

1. All works proposed to be executed by contract shall be notified in a form of invitation to tender pasted on a board hung up in the office of the Chief Officer and signed by the Chief Officer.
This form will state the work to be carried out as well as the date for submitting and opening tenders, and the time allowed for carrying out the work, also the amount of earnest money to be deposited with the tender and the amount of security deposit to be deposited by the successful tenders and the percentage, if any, to be deducted from bills. It will also state whether a refund of a quarry fees, royalties, dues and ground rents will be grant ad. Copies of the specification, designs and drawings, estimated rates, scheduled rates and any other documents required in connection with the work shall be signed by the Chief Officer for the purpose of identification and shall also be open for inspection by contractors at the office of the **Chief Officer, Jawhar Municipal Council, Jawhar** during office hours.

   Where the works are proposed to be executed according to the specifications recommended by a contractor and approved by a competent authority on behalf of the Governor of Maharashtra such specifications with designs and drawings shall form part of the accepted tender.

2. In the event of the tender being submitted by a firm, it must be signed by each partner thereof, and if the event of the absence of any partner, it shall be signed on his behalf by a person holding a power of attorney authorising him to do so.

2(A) (i) The contractor shall pay Earnest money the sum of Rs. 54,167/- via SBI MOPS Online Payment Gateway Mode Only. The said amount of earnest money shall not carry any interest whatsoever.

(ii) In the event of his tender being accepted, subject to the provisions of sub-clause (iii) below, the said amount of earnest money shall be appropriated towards the amount of security deposit payable by him under conditions of General Conditions of Contract.

(iii) If, after submitting the tender contractor withdraws his offer, or modifies the same or if after the acceptance of his tender the contractor fails or neglects to furnish the balance of security deposit without prejudice to any other rights and powers of the Government, hereunder, or in law, Government shall be entitled to forfeit the full amount of earnest money deposited by him.

(iv) If, after submitting the tender contractor withdraws his offer, or modifies the same or if after the acceptance of his tender the contractor fails or neglects to furnish the balance of security deposit without prejudice to any other rights and powers of the Government, hereunder, or in law, Government shall be entitled to forfeit the full amount of earnest money deposited by him.

(v) In the event of his tender not being accepted, the amount of earnest money deposited by the contractor shall, unless it is prior thereto forfeited under the provisions of sub-clause (iii) above, be refunded to him on his passing receipt therefor.

3. Receipts for payments made on account of any work, when executed by a firm, should also be signed by all the partners except where the contractors are described in their tender as a firm, in which case the receipt shall be signed in the name of the firm by one of the partners, or by some other person having authority to give effectual receipts for the firm.

4. Any person who submits a tender shall fill up the usual printed form stating at what percentage above or below the rates specified in Schedule ‘B’ (memorandum showing items of work to be carried out) he is willing to undertake the work. Only one rate or such percentage on all the estimated rates/Schedule rates shall be named. Tenders which propose any alteration in the works specified in the said form of invitation to tender, or in the time allowed for carrying out the work, or which contain any other conditions, of any sort will be liable to rejection. No printed form of tender shall include a tender for more than one works but if contractor who which to tender two or more works, they shall submit separate tender for each. Tenders shall have the name and number of the work to which they refer, written outside the envelope.

5. The **Chief Officer / Superintending Engineer** or his duly authorised Assistant shall open tenders in the presence of contractors who have submitted tenders or their representatives who may be present at the time, and he will enter the amounts of the several tenders in a comparative statement in a suitable form. In the event of a tender being accepted, the contractor shall for the purpose of identification, sign copies of the specifications and other documents mentioned in Rule-1. **In the event of a tender being rejected, the Divisional Officer shall refund the amount of earnest money deposited by the contractor online.**

6. The officer competent to dispose off the tenders shall have the right of rejecting all or any of the tenders.

7. No receipt for any payment alleged to have been made by a contractor in regard to any matter relating to this tender or the contract shall be valid and binding on Government unless it is signed by the Chief Officer.

8. The memorandum of work to be tendered for and the schedule of materials to be supplied by the Department and their rates shall be filled in and completed by the office of the Chief Officer before the tender form is issued. If a form issued to an intending tenderer has not been so filled in and completed he shall request the said office to have this done before he completes and delivers his tender.

9. All works shall be measured net by standard measure and according to the rules and customs of the Department and their rates shall be without reference to any local custom.

10. Under no circumstances shall any contractor be entitled to claim enhanced rates for items in this contract.

11. Every registered contractor should produce alongwith his tender certificate of registration as approved contractor in the appropriate class and renewal of such registration with date of expiry.

12. All corrections and additions or pasted slips should be initialed.

13. The measurements of work will be taken according to the usual methods in use in the Department and no proposals to adopt alternative methods will be accepted. The Chief Officer's decision as to what is the usual method in use in the Department will be final.

14. The tendering contractor shall furnish a declaration alongwith the tender showing all works for which he has already entered into contract, and the value of work that remains to be executed in each case on the date of submitting the tender.

15. Every tenderer shall furnish alongwith the tender, information regarding the income-tax circle or ward of the district in which he is assessed to income tax the reference to the number of assessment and the assessment year, and a valid Income Tax clearance certificate, Permanent Account Number PAN No.

16. In view of the difficult position regarding the availability of foreign exchange no foreign exchange would be released by the Department for the purchase of plant and machinery required for the execution of the work contracted for. (GCB/PWD/CFM/1058-62517 dt.26-9-59)

17. The contractor will have to construct shed for storing controlled and valuable materials issued to him under Schedule 'A' of the agreement, at the work site, having double locking arrangement. The materials will be taken for use in the presence of the Departmental person. No materials will be allowed to be removed from the site of works.

18. The contractors shall also give a list of machinery in their possession and which they propose to use on the work in the form of statement No. II.

19. Every registered Contractor should furnish along with the tender a statement showing previous experience and technical staff employed by him, in form of Statement No. V.

20. Successful tenderer will have to produce to the satisfaction of the accepting a valid and current license issued in his favour under the provision of Contract Labour (Regulation and Abolition Act, 1973) before starting work, failing which acceptance of the tender will be liable for withdrawal and earnest money will be forfeited to Government.

21. The contractor shall comply with the provision of the Apprentices Act 1961 and the rules and orders issued there under from time to time. If he fails to do so, his failure will be a breach of the contract and the Superintending Engineer, may in his discretion cancel the contract. The contractor shall also be liable, for any pecuniary liability arising on account of any violation by him of the provisions of the Act.

TENDER FOR WORK

I/We hereby tender for the execution, for the Governor of Maharastra (herein before and herein after referred to as 'Government') of the work specified in the under written memorandum within the time specified in such memorandum at *…… percent below / above the estimated rates entered in Schedule 'B' (memorandum showing items of works to be carried out) and in accordance in all respects to in rule I hereof and clause 13 of the annexed conditions of contract and agree that when materials for the work are provided by Government such materials and rates to be paid for them shall be as provided in Schedule 'A' hereto.

** In figures as well as in words.*

MEMORANDUM

If several sub-workers are included they should be detailed in a separate list.

a) General Description:- S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.

b) Estimated Cost : Rs. 52,55,092/- (Part-A - Work Portion Cost)
: Rs. 1,61,593/- (Part-B - Royalty & Testing Charges)
Total Rs. 54,16,685/- (Excluding GST)

The amount of earnest money to be deposited shall be in accordance with the provisions of paras 204 & 205 of the M.P. Manual.

c) Earnest Money :Rs. 54,167/-

d) Security Deposit

i) Cash (not less that the amount of Earnest Money) **:Rs. 1,08,334/-**

ii) To be deducted from current bills **:Rs. 3,79,168/-**
==========
TOTAL :Rs. 4,87,502/-
==========

This debut shall be in accordance with the paras 211 & 212 of the M. P. W. Manual.

e) Percentage, if any, to be deducted nine percent from the bills to make up the total amount required as security deposit from the time half the work as measured by the cost, is done. **9% (Nine Percent)**

f) Time allowed for the work from the date of written order to commence **03 (Three) Months** excluding monsoon.

This Percentage where no security deposit is taken, will vary from 5 % to 10 % according to the requirement of the case where security deposit is taken. so note 1 to contract.

2. I/We agree that the offer shall remain open for acceptance for a minimum period of **60 (Sixty) days** from the date fixed for opening the same and thereafter until it is the tenders and sent by registered post A.D. or other wise delivered, at the office of such authority. Treasury / Bank challan No._____date _____ or Deposit at Call Receipt No. _____ and date _____ or Term Deposit Receipt for a period of one year, Receipt No._____ date _____ In respect to the sum of Rs. _____) in words Rs. _____ _____ representing the Earnest Money in herewith forwarded. The amount of Earnest shall not bear interest and shall be liable to be forfeited to the Government should, I/We fail to (i) abide by the stipulation to keep the offer open for the period mentioned above or (ii) sign and complete the contract documents as required by the Engineer and furnish the security deposit as specified in item (d) of the memorandum contained in para 1 above within the time limit, laid down in clause (I) of the annexed General conditions of contract. The amount of Earnest Money may be adjusted towards the security deposit or refunded to me/us in writing unless the same or any part thereof has been forfeited as afore aid.

Give Schedule where necessary, showing dates by which the various items are to be completed.

3. I/We have secured exemption from payment of Earnest Money after executing the necessary bond in favour of the Government a true copy of which is enclosed herewith should any occasion for future of Earnest Money for this work arise due to failure on my / our part to (i) abide by the stipulation to keep the offer open for the period mentioned above or (ii) sign and complete the contract document and furnish security deposit in specified in item (d) of the memorandum contained in paragraph 1 above within the time limit laid down in Clause(1) of the annexed General Conditions of contract the amount payable by me/us may, at the option of the Engineer, be recovered out of the amount deposited in lump-sum for securing exemption in so far as the same may extend in terms of the laid bond and in the event of deficiency out of any other money which are due or payable to me/us by the Government under any other contract or transaction of any nature whatsoever or otherwise.

4. Should this tender be accepted. I/We hereby agree to abide by and fulfill all the terms and provisions of the conditions of contract annexed hereto so far as applicable and is default thereof to forfeit and pay to the Government in office the sum of Money mentioned in the said conditions.

Receipt No. _____ dated _____ from the Govt. Treasury or Sub-Treasury at _____ in respect of the sum of Rs.*_____ is herewith forwarded representing the Earnest Money (a) the full value of which is to be absolutely forfeited to the Govt. should I / we not deposit the full amount of security deposit specified in the above memorandum in accordance with clause 1 (A) of the Condition of contract otherwise the said sum of Rs. _____ shall be refunded.

** In words and in figures Strike out (a) if no cash security deposit is to be taken*

Contractor : # _____

Address : _____

_____

 # Signature of Contractor before submission of tender

Dated _____ day of _____ 2026

(Witness) : $ _____

Address : _____

(Occupation) : _____

$ Signature of witness to Contractor's signature

The above tender is hereby accepted by me for and on behalf of the Governor of Maharashtra.

Officer : _____ @

Dated _____ day of _____ 2026

@ Signature of the officer by whomaccepted

Chief Officer

Division (or his duly authorized Assistant)

CONDITION OF CONTRACT

CLAUSE 1: The person/persons whose tenderers may be accepted (hereinafter called the Contractor, which expression shall unless excluded by or repugnant to the context include his heirs, executors, administrators and assigns) shall (A) within 10 days (which may be excluded by the Superintending Engineer concerned upto 15 days if the Superintending Engineer thinks fir to do so) of their receipt by him the notification of the acceptance of his tender deposit with the Chief Officer (if Deposited for more than 12 months) of some sufficient which will make up the time of making any payment to him for work done under the contract to deduct such as well amount to ***9% (Nine Percent)** [**Note:** This will be the same percentage as that in the tender at (e) of all money so payable such deductions to be held by Government by way of security deposit] provided always that in the event of the Contractor depositing a lump–sum by way of security deposit as mentioned at (A) above, then and in such case, if he sum so deposit shall not amount to ***9% (Nine Percent)** [**Note:** * This will be the same percentage as that in the tender at (e) of the total estimated cost of the work, it shall be lawful for Government at the time of making any payment to the Contractor for work done under the contract to make up the full amount of ***9% (Nine Percent)** by deducting a sufficient sum from every such payment as last aforesaid until the full amount of the security deposit is made up. All Compensation or other money payable, by the Contractor to Government under the terms of his contract may be deducted from or paid by the sale of sufficient part of his security deposit or from the interest arising there from or from any sums which may be due or may become due by Govt. to the Contractor under any other contract or transaction of any nature on any account whatsoever and in event of his security deposit being reduced by reason of any such deduction or sale of aforesaid the Contractor shall, within ten days thereafter, make good in cash or government securities endorsed as aforesaid any sum or sums which may have been deducted from or raised by sale of his security deposit or any part thereof . the security deposit referred to when paid in cash may at the cost of depositor, be converted into interest bearing securities provided that the depositor has expressly desired this in writing.

Security deposit. P.W.D. Resolution No. CAT/1087/CR-94/Bldg.2 dt. 14/6/1989

The security deposit will not be accepted in the form of Insurance Company bonds as per Government orders contained in No. CCM/PWD/CAT/4250 Dt. 27/12/1956.
If the amount of security deposit to be paid in lump-sum within the period specified at (A) above is not paid the tender/contract already accepted shall be considered as calcelled and legal steps taken against the Contractor for recovery of the amounts. The amount of the security deposit lodged by a Contractor shall be refunded along with the payment of the final bill, if the date upto which the Contractor has agreed to maintain the working in good is over. If such date is not over, only **50%** amount of security deposit shall be refunded along with the payment of the final bill. The amount of security deposit retained by the Government shall be release after the expiry of period upto which the Contractor has agreed to maintain the work in good order is over. In the event of the Contractor failing or neglecting to complete rectification work within the period upto which the Contractor has agreed to maintain the work good order, then subject to provisions of clauses 17 and 20 hereof the amount of security deposit returned, by Government shall be adjusted towards excess cost incurred by the department on rectification work.

CLAUSE 2: The time allowed for carrying out the work as entered in the tender shall be strictly observed by the Contractor and shall be reckoned from the date on which the order to commence work is given to the Contractor. The work shall throughout the stipulated period of the Engineering (Whose decision in writing shall be final) may decide, of the amount of the estimated cost of the whole work as shown by the tendered for every day that

Compensation for delay

the work remains uncommenced, or unfurnished after the proper dates. And further to ensure good progress during the execution of the work the Contractor shall be bound in all cases in which the time allowed for any work exceeds one month to complete.

1/4 of the work in	1/3 of the time.
1/2 of the work in	1/2 of the time.
3/4 of the work in	3/4 of the time.

NOTE: The quantity of the work to be done within a particular time to be specified above shall be fixed by the officer competent to accept the contracts after taking into consideration the circumstances of each case and inserted in the blank space kept for the purpose. And abide by the programme of detailed progress laid down by the Chief Officer.

In the event of the Contractor failing to comply with these conditions he shall be liable to pay as compensation on amount equal to one percent, or such smaller amounts as the Superintending Engineer (whose decision in writing shall be final) may decide of the said estimate cost of the whole work for every day that the due quantity of the work remains incomplete, provided always that the total amount of the compensation to be paid under provisions of this clause shall not exceed 10% of the estimated cost of the work shown in the tender.

CLAUSE 3: In the case in which under any laws of this contract the contractor shall have rendered himself liable to pay compensation amounting to the whole of his security deposit (whether paid in one sum or deducted by installments) or in the case abandonment of the work owning the serious illness or death of the contractor or any other cause, the Chief Officer on behalf of the Governor of Maharashtra shall have power to adopt any of the following courses as he may deem best suited to the interest of Government.

Action when whole of the security deposit is forfeited

a) To rescind the contract (of which recession notice in writing to the Contractor under the head of the Chief Officer) shall be conclusive evidence and in that case the security deposit of the Contractor shall stand forfeited and be absolutely at the disposal of the Government.

b) To carry out the work or any part of the work departmentally, debiting the Contractor with the cost of the work expenditure incurred on tools and plants and charges on additional supervisory staff including the cost of work-charged establishment employed for getting the unexecuted part of the work completed and crediting him with the value of the work done departmentally in all respect in the manner and at the rates as if it has been carried out by the Contractor under the terms of his contract. The certificate of the Chief Officer as to the cost and other allied expense as incurred and as to the value of the work so done departmentally shall be final and conclusive against the Contractor.

c) To order that the work of the Contractor be measured up and to take such part as thereof as shall be executed out of his hands, and to give it to another Contractor to complete, in which case all case all expenses incurred on advertisement for fixing a new contracting agency additional supervisory staff including the cost of the work charged establishment and the cost of the work executed by the new contract agency will be debited to the Contractor and the values of the work done or executed through the new Contractor shall be credited to the Contractor in all respects and in the same manner and at the same rates as if it had been carried out by the Contractor under the terms of his contract. The certificate of the Chief Officer as to all cost of the work and other expenses incurred as aforesaid for, or in getting the unexecuted work done by the new Contractor and as to the value of the work so done shall be final and conclusive against the Contractor.

In case the contract shall be rescinded under clause (a) above the Contractor shall not be entitled to recover or be paid any sum for any work therefore actually performed by him under this contract unless and until the Chief Officer shall have certified in writing the performance of such work and the amount payable to him in respect thereof and he shall only be entitled to be paid the amount so certified. In the event of either of the courses referred to in clause (b) or (c) being adopted and the cost of the work executed departmentally or through a new contractor and other allied expenses exceeding the value of such work credited to the Contractors, the amount excess shall be deducted from any money due to the Contractor by Government under the contract or otherwise howsoever or from his security deposit or the sale proceeds thereof provided, however, that the Contractor shall have no claim against Government even if the certified value of the work done departmentally or through a new Contractor exceeds the certified cost of such works and allied expenses provided always that whichever of the three courses mentioned in clauses (a), (b) or (c) is adopted by the Chief Officer, the Contractor shall have no claim to compensation for any loss sustained by him by reason of his having purchased, or procured any materials or entered into any engagements or made any advances on account of or with a view to the execution of the work of the performance of the contract. The certificates of the Chief Officer as to all cost of the work and other expenses incurred as aforesaid for or in getting the unexecuted work done by the new Contractor and as to the value of the work so done and shall be final and conclusive against the Contractor.

CLAUSE-4: If the progress of any particular portion of the work is unsatisfactory the Chief Officer shall not withstanding that the general progress of the work is satisfactory in accordance with clause (2), be entitled to take action under clause 3(b) after giving the Contractor 10 days notice in writing and the Contractor will have no claim for compensation, for any loss sustained by him owing to such action.

Action when the progress of any particular portion of the work is unsatisfactory

CLAUSE-5: In any case in which any of the power conferred upon the Chief Officer by clauses 3 and 4 hereof shall have become exercisable and the same shall not have been exercised. The non-exercise thereof shall not constitute a waiver of any of conditions thereof and such powers shall not withstanding be exercisable in the event of any future case of default by the Contractor, for which, any clause or clauses hereof he is declared liable to pay compensation amounting to the whole of his security deposit and the liability of the Contractor for past and future compensation shall remain unaffected.

Contractor liable to pay compensation if action not taken under clauses 3 & 4.

In the event of Chief Officer taking the action under sub clause (a) or (c) of clause 3 he may if he so desires, take possession of all of any tools, plant materials and stores in or upon the works or the site thereof paying or belonging to the Contractor or procured by him and intended to the used for the execution of the work or any part thereof paying or allowing for the same in account at the contract rates, or in the case of contract rates not being applicable at current market rates, to be certified by the Chief Officer, whose certificate thereof shall be final. In the alternative, the Chief Officer may after giving notice, in writing to the Contractor or his clerk of the work, foreman or other authorised agent required him to remove such tools, plants, materials or stores from the premises within a time to be specified in such notice, and in the event of the Contractor failing to comply with any such requisition, the Chief Officer may remove them at the Contractor's expense or sell them by auction or private sale at risk and account of the Contract in all respects and the certificate of the Chief Officer as to the expense of any such removal, and the amount of the proceeds and expense of any such sale shall be final and conclusive against the Contractor.

Power to take possession of or require removal of or sell Contractor's Plant

CLAUSE-6: If the Contractor shall desire an extension of the time for completion of work on the ground of his having been unavoidably hindered in its execution or on any other ground he shall apply in writing to the Chief Officer before the expiration of 30 days from the date on which he was hindered as aforesaid, or on which the cause for asking for extension occurred, whichever is earlier, and the Chief Officer or in the opinion of Superintending Engineer or Chief Engineer as the case may be if in his opinion, there was reasonable grounds for granting an extension, grant such extension as he thinks necessary or proper. The decision of the Chief Officer in this matter shall be final.

Extension of time

CLAUSE-7: On completion of the work the Contractor shall be furnished with the certificate by the Chief Officer (herein after called the "Engineer-in-charge") of such completion but no such certificate shall be given not shall the work be considered to be complete until the Contractor shall have removed from the premises on which the work shall have been executed all scaffolding, surplus material and rubbish and shall have cleaned, the dirt from all wood work, doors, windows, walls, floors, or other parts of the building in or upon which the work has been executed or of which he may have had possession for the purpose of executing the work, nor until the works shall have been measured by the Engineer-in-charge or where the measurements have been taken by his subordinates until they received the approval from the Engineer-in-charge, the said measurements being binding and conclusive against the Contractor. If the Contractor shall fail to comply with the requirements of this clause as to the removal of scaffolding, surplus materials and rubbish, and the cleaning of dirt on or before the date fixed for the completion of the work, the Engineer-in-charge may at the expenses of the Contractor remove such scaffolding, surplus materials and rubbish, and dispose of the same as he thinks fit and clean off such dirt as aforesaid and the Contractor shall forthwith pay the amount of all expenses so incurred but shall have no claim in respect of any such scaffolding or surplus material as aforesaid except for any sum actually realised by the sale thereof.

Final certificate

CLAUSE-8: No payment shall be made for any work, estimated to cost less than Rs. 1000/- till after the whole of the said work shall have been completed and certificate of completion given. But in the case of works estimated to cost more than Rs. 1000/- the Contractor shall on submitting a monthly bill therefore, be entitled to receive payment proportionate to the part of the work then approved and passed by the Engineer-in-charge, whose certificate of such approval and passing of the sum so payable shall be final and conclusive against the Contractor. All such intermediate payment shall be regarded as payment by way of advance against the final payments only and not as payments for work actually done and completed, and shall not preclude the Engineer-in-charge from requiring any bad, unsound, imperfect or unskillful works to be removed and taken away and reconstructed or re-erected not shall any such payment be considered as an admission of the due performance of the contract or any part thereof in any respect or the accruing of any claim, or shall it conclude, determine, or affect in any other way the powers of the Engineer-in-charge, as to the final settlement and adjustment of the accounts or otherwise, or in any other way vary or affect the contract. The final bill shall be submitted by Contractor within one month of the date fixed for the completion of the work, otherwise the Engineer-in-charge's certificate of the measurements and of the total amounts payable for work shall be final and binding on all the parties.

Payment on intermediate certificate to be regarded as advance.

CLAUSE-9: The rates for several items on work estimated to cost more than Rs. 1000/- agreed to within, shall be valid only when the item concerned is accepted as having been completed fully in accordance with the sanctioned specifications. In cases where the items of work are not accepted as so completed by the Engineer-in-charge he may make payment on account of items at such reduced rates as he may consider reasonable in the preparation of final or on account bills.

Payment at reduced rates on account of items of work not accepted as completed, to be at the discretion of the Executive-in-charge.

CLAUSE-10: A bill shall be submitted by the Contractor in each month on or before the date fixed by the Engineer-in-charge for all work executed in the previous month, and the Engineer-in-charge shall take or cause to be taken the requisite measurement for the purpose of having the same verified, and the claim so far as it is admissible shall be adjusted, if possible within 10 days from the presentation of the bill. If the Contractor does not submit the bill within the time fixed as aforesaid, the Engineer-in-charge may depute a subordinate to measure the said work in the presence of the Contractor or his duly authorised agent whose counter signature to the measurement list shall be sufficient warrant, and the Engineer-in-charge may prepare a bill from such list which shall be binding on the Contractor in all respects.

Bills to be submitted monthly.

CLAUSE-11: The Contractor shall submit all bills in electronic form to be had on application at the office of the Engineer-in-charge. The charges to be made in the bills shall always be entered at the rates specified in the tender or in case of any extra work ordered in pursuance of conditions not mentioned or provided for in tender, at the rates here in after provided for such work.

Bills to be in electronic form

CLAUSE-12: If the specification or estimate of the work provided for the use of any special description of materials to be supplied from the store of the Department or if it required that the Contractor shall use certain stores to be provided by Engineer-in-charge (such material and stores and the prices to be charged therefor as hereinafter mentioned being so far as practicable for the convenience of the Contractor but not so as in any way to control the meaning and effect of this contract specified in the schedule of memorandum here to annexed) the Contractor shall be supplied with such materials and stores as may be required from time to time be used by him for the purpose of the contract only and the value of full quantity of the materials and stores so supplied shall be set off or deducted from any sums then, due or thereafter to become due to the Contractor materials and stores so supplied shall be set off or deducted from any sums then, due or thereafter to become due to the Contractor under the contract or otherwise, or from the security deposit, or the proceeds of sale thereof if the deposit is held in Government securities, the same or a sufficient portion thereof shall in that case be sold for the purpose. All materials supplied to the Contractor shall remain the absolute property of Government and shall on no account be removed from the site of the work and shall at all times be open to inspection by the Engineer-in-charge. Any such materials unused and in perfectly good condition at that time of completion, or termination of the contract shall be returned to the Departmental store if the Engineer-in-charge so requires by a notice in writing given under his hand; but the Contractor shall not be entitled to return any such have no claim for compensation on account of any such materials supplied to him as aforesaid but remaining unused by him or for any wastage in for damage to any such materials.

Stores supplied by Govt.
Works to be executed in accordance with specification, drawing, orders, etc.

CLAUSE-12: A): All stores of controlled materials such as cement steel, etc. to be supplied to the Contractor by Government should be kept by the Contractor under lock and key and will be accessible for inspection by the Chief Officer or his authourised agent at all the times.

CLAUSE-13: The Contractor shall execute the whole and every part of the work in the most substantial and workman like manner and both as regards, materials and every other respect in strict accordance with specifications. The Contractor shall also confirm exactly fully and faithfully to the designs, drawings and instructions in writing relating to the work, signed by the Engineer-in-charge and lodged in his office and to which the Contractor shall be entitled to have access for the purpose of inspection at such office or in the site of the work during office hours. The Contractor will be entitled to receive three sets of contract drawings and working drawings as well as one certified copy of the accepted tender along with the work order free of cost. Further copies of contract drawings, if required by him, shall be supplied at the rate of Rs.300 per set of the contract drawings and Rs.150 per working drawing except where otherwise specified.

Works to be executed in accordance with specification, drawing, orders, etc.

CLAUSE-14: The Engineer-in-charge shall have power to make any alterations in, or, additions to the original specifications, drawings, designs and instructions that may appear to him to be necessary or admissible during the progress of the work, and the Contractor shall be bound to carry out the work in accordance with any instructions in this connection which may be given to him in writing signed by Engineer-in-charge and such alterations shall not invalidate the contract and any additional work which the Contractor may be directed to do in the manner above specified as part of the work shall be carried out by the Contractor on the same condition in all respects on which he agreed to do the main work, and at the same rates as are specified in the tender for main work. And if the additional and altered work includes any class of work for which no rate is specified in this contract then such class of work shall be carried out at the rates entered in the Schedule of rates of the Division or at the rates mutually agreed upon between the Engineer-in-charge and the Contractor whichever is lower.

Afteraction in specifications & designs not to invalidate contracts.

If the additional or altered work for which no rate is entered in the schedule of rates of the Division is ordered to be carried out before the rate is agreed upon then the Contractor shall, within 7 days of the date of receipt by him of the order to carry out the work, inform the Engineer-in-charge of the rate which it is his intention to charge for such class of work and if the Engineer-in-charge does not agree to this rate he shall by notice in writing be at liberty to cancel his order to carry it out such class of work, and arrange to carry out in such manner as he may consider advisable, provided always that the Contractor shall commence work or incur any expenditure in regard thereto before the rates shall have been determined as lastly herein before mentioned, then in such case he shall only be entitled to be paid in respect of the work carried out or expenditure incurred by him prior to the date of the determination of the rates as aforesaid according to such rate or rates as shall be fixed by the Engineer-in-charge. In the event of dispute, the decision of the Superintending Engineer of the circle will be final.

Rates for works not entered in estimates or schedules of rates of the district/division

Where, however the work is to be executed according to the design and drawings and specification recommended by the Contractor and accepted by the competent authority the alterations above referred to shall be within the scope of such designs, drawings and specifications appended to the tender.

The time limit for the completion of the work shall be extended in the proportion that the increases in its cost occasioned by alterations or addition bears to the cost of the original contract work, and the certificate of the Engineer-in-charge as to such proportion shall be conclusive.

Extension of time in consequence of additions or alterations.

CLAUSE-15: (1): If at any time after the execution of the contract documents the Engineer-in-charge shall for any reason whatsoever (other than default on the part of the Contractor for which the Government is entitled to rescind the contract) desires that the work or any part of the work specified in the tender should be suspended for any period or that the whole or part of the work should not be carried out at all he shall give to the Contractor a notice in writing of such desire and upon the receipt of such notice the Contractor, a notice in writing of such desire and upon the receipt of such notice the Contractor shall forthwith suspend or stop the work wholly or in the part as required after having due regard to the appropriate stage at which the work should be stopped or suspended so as not cause any damage or injury to the work already done or endanger the safety thereof provided that the decision of the Engineer-in-charge as to the stage at which the work or any part of it could be or could have been safely stopped or suspended shall be final and conclusive against the Contractor. The Contractor shall have no claim to any payment or compensation, whatsoever by reasons of or in pursuance of any notice as aforesaid on account of any suspension stoppage or curtailment expect to the extent specified hereinafter.

No claim to any payment or compensation for alteration in or restriction of work

(2): Where the total suspension of work ordered as aforesaid continued for a continuous period exceeding 90 days, the Contractor shall be at liberty to withdraw from the contractual obligations under the contract so far it pertains to the unexecuted part of the work by giving a 10 days prior notice in writing to the Engineer, with 30 days of the expiry of the said period of 90 days of such intention and requiring the Engineer to record the final measurements of the work already done and to pay final bill. Upon giving such notice the Contractor shall be deemed to have been discharged from his obligation to complete the remaining unexecuted work under this contract, On receipt of such notice the Engineer shall proceed to complete the measurement and make such payment as may be finally due to the Contractor within a period of 90 days from the receipt of such notice in respect of the work already done by the contractor. Such payment shall not in any manner prejudice the right of the contractor to any further compensation under the remaining provisions of this clause.

(3): Where the Engineer in charge requires the Contractor to suspend the work for a period in excess of 30 days at any time or 60 days in the aggregate, the Contractor shall be entitled to apply to Engineer within 30 days of the resumption of work after such suspension for payment of compensation to the extent of pecuniary loss suffered by him in respect of working machinery remained idle on the site or on the account of his having had to pay the salary or wages of labour engaged by him during the said period of suspension provided always that the Contractor shall not be entitled to any claim in respect of any such working machinery, salary or wages for the first 30 days whether consecutive or in the aggregate of any suspension whatsoever occasioned by unsatisfactory work or any other default on his part. The decision of the Engineer-in-charge in this regard shall be final and conclusive against the Contractor.

(4): In the event of:

i. Any total stoppage of work on notice from the Engineer under the sub clause (1) in that behalf.

ii. Withdrawal by the Contractor from the contractual obligation to complete the remaining unexecuted work, under sub-clause (2) on account of continued suspension of work for a period exceeding (90) days

OR

iii. Curtailment in the quantity of items originally tendered on account of any alteration, omission or substitution as in the specifications, drawing, designs or instructions under clause 14(1) where such curtailment exceeds 25% percent at the rates for the item specified in the tender is more than Rs. 5000/-

It shall be open to the contractor, within (90) days from service of (i) the notice of stoppage of work or (ii) the notice of withdrawal from the contractual obligations under the contract on account of the continued suspension of work or (iii) notice under clause 14(1) resulting in such curtailment to produce to the Engineer satisfactory documentary evidence that he had purchased or agreed to purchase material to use in the contracted work, before receipt by him of the notice of the stoppage, suspension or curtailment and require the Government to take over on payment such material at the rates determined by the Engineer, provided, however, that such rates shall in no case exceed the rates at which the same Where acquired by the contractor the government shall thereafter take over the material so offered provided, the quantities offered are not in excess of the requirements of the unexecuted work as specified in the accepted tender and are of quality and specifications approved by the Engineer.

CLAUSE-15: (A): The Contractor shall not be entitled to claim any compensation from Government for the loss suffered by him on account of delay by Government in the supply of materials entered in Schedule A, where such delay is caused by:

No claim to compensation on account of loss due to delay in supply of material by Government.

i. Difficulties relating to the supply of railway wagons.

ii. Force measure.

iii. Act of God.

iv. Act of enemies of the State or any other reasonable cause beyond the control of Government.

In the case of such delay in the supply of materials Government shall grant such extension of time for the completion of the works as shall appear to the Chief Officer to be reasonable in accordance with the circumstances of the case. The decision of the Chief Officer as to the extension of time shall be accepted as final by the Contractor.

CLAUSE-16: Under no circumstances whatever shall the Contractor be entitled to any compensation from Government on any account unless the Contractor shall have submitted claim in writing to the Engineer-in-charge within one month of the case of such claim occurring.

Time limit for unforeseen claims.

CLAUSE-17: If any time before security deposit or any part thereof is refunded to the Contractor, it shall appear to the Engineer-in-charge or his sub-ordinate in charge of the work, that any work has been executed with unsound, imperfect or unskillful workmanship or with materials of inferior quality, of that any materials or articles provided by him for the execution of the work are unsound, or of a quality inferior to that, contracted for, or are otherwise not in accordance with the contract, it shall be lawful for the Engineer-in-charge to intimate this fact in writing to the Contractor and then notwithstanding the fact that the work, materials or articles complained of may have been inadvertently passed, certified and paid for, the Contractor shall be bound forthwith to rectify or remove and reconstruct the work so specified in whole or in part, as the case may required, or if so required, shall remove the materials or articles so specified and provide other proper and suitable materials or articles at his own charge and cost and in the event of his failing to do so within a period to be specified by the Engineer-in-charge in the written intimation aforesaid, the Contractor shall be liable to pay compensation at the rate of one percent on the amount of the estimate for everyday not exceeding 10 days, during which the failure so continues and in the case of any such failure the Engineer-in-charge may rectify or remove, and re-execute the work or remove and replace the materials or articles complained of, as the case may be, at the risk and expense in all respects of the Contractor. Should the Engineer-in-charge consider that any such inferior work or materials as described above may be accepted or made use of, it shall be within his discretion to accept the same at such reduced rates as he may fix therefor.

Action & compensation payable in case of bad work. P.W.D. resolution No. CAT-1087/CR-94/Bldg.2 dt. 14/6/1989.

CLAUSE-18: All works under or in courses of execution or executed in perseverance of the contract shall at all time be open to the inspection & supervision of the Engineer-in-charge and his subordinates, and Contractor shall at all times during the usual working hours, and at all other times at all other times at which reasonable notice of the intention of the Engineer-in-charge and his subordinate to visit the work shall have been given to the Contractor, either himself be present to receive orders and instructions or have a responsible agent duly credited in writing present for that purpose. Orders given to the Contractor's duly authorised agent shall be considered to have the same force and effect as if they had been given to the Contractor himself.

Work to be open to inspection.

Contractor or responsible agent to be present.

CLAUSE-19: The Contractor shall give not less than five days notice in writing to the Engineer-in-charge or his subordinate in charge of the work before covering up or otherwise placing beyond the reach of measurement any work in order that the same may be measured and correct dimensions thereof taken before the same is so covered up or placed beyond the reach of measurement and shall not cover up or place beyond the reach of measurement any work without the consent in writing of the Engineer-in-charge or his subordinate in charge of the work, and if any work shall be covered up or placed beyond the reach of measurement, without such notice having been given or consent obtained, the same shall be uncovered at the Contractor's expense, and in default thereof no payments or allowance shall be made for such work or for the materials with which the same was executed.

Notice to be given before the work is covered up.

CLAUSE-20: If during the period of **03 (Three) Years** from the date of completion as certified by the Engineer-in-charge pursuant to clause-7 of the contract or in the opinion of the Chief Officer the said work is defective in any manner whatsoever, the Contractor shall forthwith on receipt of notice in that behalf from the Chief Officer, duly commence execution and completely carry out at his cost in every respect all the work that may be necessary for rectifying and setting right the defects specified therein including dismantling and reconstruction of unsafe portions strictly in accordance with and in the manner prescribed and under the supervision of the Chief Officer. In the event of the Contractor failing or neglecting to commence execution of the said rectification work within the period prescribed therefor in the said notice and /or to complete the same as aforesaid as required by the said notice, the Chief Officer may get the same executed and carried out departmentally or by any other agency at the risk, on account and at the cost of the Contractor. The Contractor shall forthwith on demand pay to the Government the amount of such cost, charges and expenses sustained or incurred by the Government of which the certificate of the Chief Officer shall be final and binding on the Contractor. Such costs, charges and expenses shall be deemed to be arrears of land revenue and in the event of the Contractor failing or neglecting to pay the same on demand as aforesaid without prejudice to any other rights and remedies of the Government, the same may be recovered from the contractor as arrears of land revenue. The Government shall also be entitled to deduct the same from any amount which may then be payable or which may thereafter become payable by the Government to the contractor either in respect of the said work or any other work whatsoever or from the amount of security deposit retained by Government.
The defect liabilities period in particular for water proofing treatment (building work) shall be 7 years.

Contractor liable for the damage done ad for imperfections.

शासन निर्णय क्रमांक - संकिर्ण-२०१८ / प्र.क्र.१५१ / इमारती-२ / मंत्रालय मुंबई-४०००३२ दिनांक-१४/०/२०१९

CLAUSE-21: The Contractor shall supply at his own cost all materials, (except such special materials, if any as may, in accordance with the contract, be supplied form the P.W. Stores) plant, tools, appliances, implements, ladder cordage, tackles, scaffolding and whether included in the specifications or other documents form in part of the contract or referred to in these conditions or not and which may be necessary for the purpose of satisfying or complying with the requirements of the Engineer-in-charge as to any matter as to which under these conditions he is entitled to be satisfied, or which he is entitled to entitled to required together with the carriage therefor to and from the work. The Contractor shall also supply without charge the requisite number of person with the means and materials necessary for the purpose of setting out works and counting. Weighting and assisting in the measurement or examination at any time and from time to time of the work or the materials failing which the same may be provided by the Engineer-in-charge at the expense of the Contractor and expenses may be deducted from any money due to the Contractor under the contract or from his security deposit or the proceeds of sale thereof or of a sufficient portion thereof.

Contractor to supply plant, ladder, scaffolding, etc. Contractor liable for damages arising from non provisions of lights fencing, etc.

CLAUSE-21: The Contractor shall provide all necessary fencing and lights required to protect the public from accident and shall also be bound to bear the expense or defense of every suit, action or other legal proceeding at law that may be brought by any person for injury sustained owing to neglect of the above precautions and to pay any damages and costs which may be awarded in any such suit action or proceedings any person, or which may with the consent of the Contractor be paid for compromising any claim by any such person.

List machinery in Contractor's possession and which he proposes to use on the work should be submitted along with the tender.

A) The Contractor shall provide suitable scaffolds and working platform, gangways and stairways and shall comply with the following regulations in connection herewith-

a. Suitable scaffolds shall be provided for workman for all works that cannot be safely done from a ladder or by other means.

b. A scaffold shall not be constructed, taken down or substantially allowed except:

i) Under the supervision of a competent and responsible person and.
ii) As far as possible by competent workers possessing adequate experience in this kind of work.

c. All scaffolds and appliance connected there with and all ladder shall:

i) Be of sound materials.

ii) Be of adequate strength having regard to the loads and strains to which they will be subject and

iii) Be maintained in proper condition.

d. Scaffolds shall be so constructed that no part thereof can be displaced in consequence of normal use.

e. Scaffolds shall not be over-load and so far as practicable the load shall be evenly distributed.

f. Before installing gear on scaffolds special precautions shall be taken to ensure the strength and stability of the scaffolds.

g. Scaffolds shall be periodically inspected by a competent person.

h. Before allowing a scaffold to be used by his workmen the Contractor shall whether the scaffold has been erected by his workmen or not, take steps to ensure that it complies fully with the regulations herein specified.

i. Working platform, gangway, stairway shall.

i) Be so constructed that no part thereof can sag unduly unequally.

ii) Be so constructed and maintained having regard to the prevailing conditions as to reduce as far as practicable risks of person tripping or slipping and

iii) Be kept free from any unnecessary obstruction.

j. In the case of working platform, gangways, working places and stairways at a height exceeding **2.00 metre** (to be specified)

i) Every working platform and eve gangway shall have closely boarded unless other adequate measures are taken to ensure safety.

ii) Every working platform, and gangway shall have adequate width and

iii) Every working platform, gangway working place and stairway shall suitably fenced.

k. Every opening in the floor of a building or in working platform shall except for the time and to the extent required to allow the access of persons or the transport or shifting or materials, be provided with suitable means to prevent the fall of persons or material.

Measures for prevention of fire

l. When persons are employed on a rood where there is a danger of falling from a height exceeding **3.00 metres** (to be prescribed)suitable precautions shall be a taken to prevent the fall of persons or material.(to be prescribed)

m. Suitable precautions shall be taken to prevent persons being struck by articles which might fall from scaffolds or other working places.

Liability of contractor for any damage done in or outside the work area.

n. Safe means of assess shall be provided to all working platforms and other working places.

o. The Contractor / (s) will have to make payments to the labourers as per Minimum Wages Act.

B : The Contractor shall comply with the following regulations as regards the Hoisting Appliance to be used by him:

a. Hoisting machines and tackle including their attachments, anchorage's and supports shall.

i) Be of good mechanical construction sound material and adequate strength and free patent defect;

And

ii) Be kept in good repair and in good working order.

Employment of female labour
Work on Sunday

b. Every rope used in hoisting or lowering materials or as means of suspension shall be suitable quality and adequate strength and free from patent defect.

c. Hosting machines and tackle shall be examined and adequately tested after erection on the site and before use and be re-examined in position at intervals to be prescribed by the Government.

d. Every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering materials or as a means of suspension shall be periodically examined.

e. Every crane driver or hoisting appliance operator shall be properly qualified.

f. No person who is below the age of 21 years shall be in control of any hoisting machine, including any scaffold, which give signal to the operator.

g. In the case of every hoisting machine and of every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering or as a means of suspension, the safe working load shall be ascertained by adequate means.

h. Every hoisting machine and all gear referred to in preceding regulation shall be plainly marked with the safe working load.

i. In the case of hoisting machine having a variable safe working load each safe working load and the conditions under which it is applicable shall be clearly indicated.

j. No part of any hoisting machine or any gear referred to in regulation (g) above shall be loaded beyond the safe working load except for the purpose of testing.

k. Motors, gearing, transmissions, electric wiring and other dangerous parts of hoisting appliance shall be provided with efficient safe guards.

l. Hoisting appliance shall be provided with such means as will reduce to minimum and the risk of the accidental descent of the load.

m. Adequate precaution shall be taken to reduce to a minimum the risk of any part of a suspended load becoming accidentally displaced.

CLAUSE-22: The Contractor shall not set fire to any standing jungle trees brushwood or grass without a written permission from the Chief Officer. When such permit is given and also in all cases when destroying, cut or dug up trees, brushwood, grass etc. by fire, the Contractor shall take necessary measures to prevent such fire spreading to or otherwise damaging surrounding property. The Contractor shall make his own arrangements for drinking water for the labour employed for him.

Measures for prevention of fire

CLAUSE-23: Compensation for all damages done intentionally or unintentionally by Contractor's labour whether in or beyond the limits of Government property including any damage caused by the spreading of fire mentioned in clause 22 shall be estimated by the Engineer-in-charge or such other officer as he may appoint and the estimate of the Engineer-in-charge subject to decision of the Superintending Engineer on appeal shall be final and the Contractor shall be bound to pay the amount of the assessed compensation on demand, failing which, the same will be recovered form the Contractor as damages in the manner prescribed in Clause 1 or deducted by the Engineer-in-charge from any sums that may be due or become due from Government to Contractor under this contract or otherwise. The Contractor shall bear the expenses of defending any action or other legal proceedings that may be brought by any person for injury sustained by him owing to negligence of precautions to prevent the spread of fire and he shall pay any damage and cost that may be awarded by the court in consequence.

Liability of contractor for any damage done in or outside the work area.

CLAUSE-24: The employment of female labours on work in neighborhood of soldier's barracks should be avoided as far as possible.

Employment of female labour

CLAUSE-25: No work shall be done on a Sunday without sanction in writing of the Engineer-in-charge.

Work on Sunday

CLAUSE-26: The contract shall not be assigned or sublet without the written approval of the Engineer-in-charge. And if the Contractor shall assign or sublet his contract or attempt to do so or become insolvent or commence, any proceedings to get himself adjudicated and insolvent or make any composition with his creditors, or attempt so to do or if bribe, gratuity, gift loan perquisite, reward or advantages pecuniary or otherwise shall either directly or indirectly be given, promised or offered by the Contractor or any of his servants or agents to any public office or person in the employment of Government in any way relating to his office or employment, or if any such officer or persons shall become in any way directly or indirectly interested in the contract, the Engineer - in - charge may their upon by notice in

Work not to be sublet. Contract may by rescinded & security deposit forfeited for subletting it without approval or for bribing a public officer or if contractor becomes insolvent.

writing rescind the contract, and the security Deposit and additional Security Deposit of the Contractor shall their upon stand forfeited & be absolutely at the disposal of Government & the same consequences shall ensure as if the contract had been rescinded under Clause 3 thereof & in addition the Contractor shall not be entitled to recover or be paid nay work therefore actually performed under the contract.

CLAUSE-27: All sums payable by Contractor by way of compensation under any of these conditions shall be considered as a reasonable compensation to be applied to the use of Government without reference to the actual loss or damage sustained and whether any damage has or has not been sustained.

Sums payable by way of compensation to be considered reasonable without reference to actual loss

CLAUSE-28: In the case of tender by partners any change in the constitution of a firm shall be forthwith notified by the Contractor to the Engineer-in-charge for his information.

Changes in the constitution of the firm to be notified

CLAUSE-29: All works to be executed under the contract shall be executed under the direction and subject to the approval in all respects of the Superintending Engineer or the Circle, for the time being, who shall be entitled to direct at what point or points and in what manner they are to be commenced, and form time to time carried on.

Direction & control of the Superintending Engineer

CLAUSE-30: **(1):** Except where otherwise specified in contract and subject to the powers delegated to him by Government under the code, rules then in force the decision of Superintending Engineer of the Circle for the time being shall be final, conclusive and binding on all parties of the contract upon all question relating to the meaning of the specifications, designs, drawings, and instructions here in before mentioned and as to the quality of workmanship or materials used on the work or as to any other arising out of, or relation to the contract, designs, drawings, specifications, estimates, instructions, order or these conditions or otherwise concerning the work or the execution or failure to execute same whether arising during the progress of work or after the completion or abandonment thereof.

Direction & control of the Superintending Engineer

(2): The Contractor may within 30 days of receipt by him of any order passed by the Superintending Engineer of circle as aforesaid appeal against it to the Chief Engineer, concerned with contract work or project provided that:

a. The accepted value of the contact exceed Rs.10 lakhs (Rs. Ten Lakhs only.)
b. Amount of claim is not less than Rs. 1 lakh (Rs. One lakh.)

(3): If the Contractor is not satisfied with the order passed by the Chief Engineer as aforesaid, the Contractor may within 30 days of receipt by him of any such order, appeal against it to the concerned Secretary, Public Works Department,/Irrigation Department who, if convinced that prima-facia the Contractor's claim rejected by Superintending engineer / Chief engineer is not frivolous and that there is some substance in the claim of Contractor as would merit a detailed examination and decision, by the standing Committee, shall put up to the Standing Committee at Government level for suitable decision. (vide PW circular NO. CAT – 1086 CR- 110/Bldg. 2 dated 7.5.1986)

CLAUSE-31: The Contractor shall obtain from Departmental Stores, all stores and articles of European or American manufacture which may be required for the work thereof or in making up any articles required thereof or in connection there with, unless he has obtained permission in writing form the Engineer-in-charge to obtain such stores and articles elsewhere. The value of such stores and articles as may be supplied to the Contractor in his account at the rates shown in the schedule in From "A" attached to the contract and if they are not entered in the said schedule, they shall be debited to him at cost, price which for the purpose of this contract shall include the cost of carriage and all other expenses whatsoever, which shall have been incurred in obtaining delivery of the same at the stores aforesaid.

Stores of European or American manufacture to be obtained from the Government.

CLAUSE-32: When the estimate on which a tender is made includes lumpsums in respects of parts of the work, the Contractor shall be entitled to payment in respect of the items of work involved or the part of the work in question at the same rates as are payable under this contract for each item, or if the part of the work in question is not in the opinion of the Engineer-in-charge capable of measurement, the Engineer-in-charge may at his desecration pay the lump sum amount entered in the estimate and the certificate in writing of the Engineer-in-charge shall be final and conclusive against the Contractor with regard to any sum or sums payable to him under the provisions of this clause.

Lump sums in estimates.

CLAUSE-33: In case of any class of work for which there is no such specification as is mentioned in Rule-1 Form B-1 such work shall be carried out in accordance with the Divisional specifications, and in the event of there being no Divisional specifications, then in such case the work shall be carried out in all respects in accordance with all instructions and requirements of the Engineer-in-charge.

Actions where no specifications.

CLAUSE-34: The expression 'Work' or 'Works' where used in these conditions, shall unless there be something in the subject or context repugnant to such construction, be constructed to mean the work or works contracted to be executed under or in virtue of the contract whether temporary or permanent and whether original, altered, substituted or additional.

Definition of work

CLAUSE-35: The percentage referred to in the tender shall be deducted form/added to the gross amount of the bill before deducting the value of any stock issued.

Contractor's % weather applied to not or gross amount of bill

CLAUSE-36: All quarry fees, royalties, octroi dues and ground rent for stacking materials, if any, should be paid by the contractor. Royalty charges including surcharges on all minor minerals shall be reimbursed separately on production of proof to that effect.

Quarry fees and royalties.

Compensation under workman's compensation Act.

CLAUSE-37: The Contractor shall be responsible for and shall pay any compensation to his workmen payable under the Workmen's Compensation Act, 1923 (VIII of 1923) (hereinafter called the said Act) for injuries caused to the workmen. If such compensation is paid by the Government as principal under subsection (1) of section 12 of the said Act on behalf of the Contractor is shall be recoverable by the Govt. form the Contractor under sub-section (2) of the said section. Such compensation shall be recovered in the manner laid down in clause 1 above.

CLAUSE-37: **(A):** The Contractor shall be responsible for and shall pay the expenses of providing medical aid to any workmen who may suffer a bodily injury as a result of an accident. If such expenses are incurred by Government, the same shall be recoverable form the Contractor forthwith and be deducted without prejudice to any other remedy of Government from any amount due or that may become due to the Contractor.

CLAUSE37: **(B):** The Contractor shall provide all necessary personal safety equipment and first aid apparatus available for the use to the persons employed on the site and shall maintain the same in condition suitable for immediate use at any time and shall comply with the following regulations in connection therewith:

a) The worker shall be required to use the equipment so provided by the Contractor and the Contractor shall take adequate steps to ensure proper use of the equipment by those concerned.

b) When work is carried on proximity to any place where there is a risk of drowning all necessary equipment shall be provided and kept ready for use and all necessary step shall be taken for the prompt rescue of any person in danger.

c) Adequate provision shall be made for prompt first aid treatment of all injuries likely to be sustained during the course of the work.

(C): The Contractor shall duly comply with the provisions of "The apprentices Act 1961" (III of 1961). The rules made there under and the orders that may be issued from time to time under the said Act and the said Rules and on his failure or neglect to do so, he shall be subject to all the liabilities and penalties provided by the said Act and Rules"
(Govt. Circular No.CAT-6076/3336(400)/Bldg-2 Dt.16.8.85)

CLAUSE-38: *Claim for quantities entered in the tender or estimates.*

(1) Quantities in respect of the several items shown in the tender are approximate and no revision in the tendered rates shall be permitted in respect of any of items so long as subject to any special Provision contained in the specifications, prescribing different percentage of permissible variation, the quantity of the item does not exceed the tender.
(2) The Contractor shall, if ordered in writing by the Engineer so to do so, also carry out any quantities in excess of the limit mentioned in sub-clause (1) hereof on the same conditions as and in accordance with the specification in the tender and at the rates (i) derived from the rates entered in the current schedule of rates and in the absence of such rates, (ii) at the rate prevailing in the market, the said rates being increased or decreased as the case may be by the percentage which the total tendered amount upon the schedule of rates applicable to the year in which the tender were accepted. ***(For the purpose of operation of this clause, this cost shall be worked out from the DSR Prevailing at the time of acceptance of tender)***
(3) Claims arising out of reduction in the tendered quantity of any item beyond 25% will be governed by the provision of clause 15 only when the amount of such reduction beyond 25% at the rate of the item specified in the tender is more than Rs.5000/- (The clause is not applicable to extra items.)
(4) This clause in not applicable to extra items.
(5) There is no change in the rate if the excess is more than 25% of the tendered quantity. But the value of the excess work at the tendered rates does not exceed Rs. 7,200/-
(6) The Quantities to be paid tendered rates shall include:

- **(a)** Tendered quantity plus.
- **(b)** 25% excess of tendered quantity or the excess quantity of the value of Rs.5000/- at tendered rates whichever is more.

CLAUSE-39: *Employment of failure labour, etc.*

The Contractor shall employ any famine, convict or other labour of a particular kind or class if ordered in writing to do so by the Engineer-in-charge.

CLAUSE-40: *Claim for compensation for delay in starting the work*

No compensation shall be allowed for any delay caused in the starting of the work on account of acquisition of land; or in the case of clearance work, on account of any delay in according sanction of estimates.

CLAUSE-41: *Claim for compensation for delay in execution of work*

No compensation shall be allowed for any delay in the execution of the work on account of water standing in borrow pits or compartments. The rates are inclusive of hard or cracked soil excavation in mud, sub-soil, water or water standing in borrow pits and no claim for an extra rate shall be entertained, unless otherwise expressly specified.

CLAUSE-42: *Entering upon or commencing any portion of work.*

The Contractor shall not enter upon or commence any portion of work except with the written authority and instruction of the Engineer-in-charge or of his subordinate in charge of the work. Failing such authority the Contractor shall have no claim to ask for measurements of or payment for work.

CLAUSE-43: *Minimum age of persons employed, the employment donkeys and/or other animals and the payment of fair wages*

i) No Contractor shall employ any person who is under the age of 18 years.
ii) No Contractor shall employ donkeys or other animals with breaching or string or thin rope. The breaching must be atleast 3 inches wide & should be of tale (Nawar)

iii) No animal suffering from sores, lameness or emaciation or which is immature shall be employed on the work.
iv) The Engineer-in-charge or his Agent is authorised to remove the work any person or animal found working which does not satisfy these conditions and no responsibility shall be accepted by Government for any delay caused in the completion of the work by such removal.
v) The Contractor shall pay fair and reasonable wages to the workmen employed by him, in the contract undertaken by him. In the event of any dispute arising between the Contractor and his workmen on the grounds that the wages paid are not fair and reasonable, the dispute shall be referred without delay to the Chief Officer who shall decide the same. The decision of Chief Officer shall be conclusive and binding on the Contractor but such decision shall not in any way affect the conditions in the contract regarding the payment to be made by the Government at the sanctioned tender rates.
vi) The contractor shall provide drinking water facility to the workers similar amenities shall be provided to the workers engaged on large work in urban areas.
vii) Contractor to take precautions against accidents which take place on account of labour using loose garnets while working near machinery.

CLAUSE-44: Payment to Contractor shall be made by cheque drawn on any treasury within the Division convenient to them, provided the amount exceeds Rs. 10/-. Amount not exceeding Rs. 10/- will be paid in cash. ***Method of payment***

CLAUSE-45: Any Contractor who does not accept these condition all not be allowed to tender for works. *Acceptance of conditions compulsory before tendering for work*

CLAUSE-46: If Government declares a state of scarcity or famine to exist in any village situated within 10 miles of the work the Contractor shall employ upon such parts of the work, as are suitable for unskilled labour, any person certified to him by the Chief Officer, or by any person to whom the Chief Officer, may have delegated this duty in writing, to be in need or relief and shall be bound to pay to such persons wages not below the minimum which Government may have fixed in this behalf. Any dispute which may arise in connection with the implementation of this clause shall be decided by the Chief Officer whose decision shall be final and binding on the Contractor. *Employment of scarcity labour*

CLAUSE-47: The price quoted by Contractor shall not in any case exceed the control price if any, fixed by Government or reasonable price which it is permissible for him to charge a private purchaser for the same class and description, the control price permissible under the provisions of Hoarding and Profiteering prevention Ordinance, 1948 as amended from time to time. If the price quoted exceeds the controlled price or the price permissible under Hoarding and Profiteering Prevention Ordinance, the Contractor will specifically mentioned this fact in his tender along with the reasons for quoting such higher prices. The purchaser at his discretion will in such case exercise the right of revising the price at any stage so as to confirm with the controlled price on the permissible under the Hoarding and profiteering presentation Ordinance. This discretion will be exercised without prejudice to any other action that may be taken against the Contractor.

CLAUSE-47A: **a)** The Bidder shall quote his rate considering the provisions counted under GST Act 2017 **b)** Provisional account of GST 2% ie CGST 1% + SGST 1% will be deducted at source (T.D.S.) after the enforcement of section 51 of Maharashtra Goods and Service Act-2017. **c)** Bidder shall quote his rate excluding GST. **d)** GST shall be paid on the amount of bill of the work done as per prevailing guidelines rate of GST during the period of work done as applicable. **e)** The rates quoted by the contractor shall be deemed to be inclusive of the labour welfare cess and other taxes (other than GST) that the contractor will have to pay for the performance of this contract. The Employer will perform such duties in regard to the deduction of such taxes at source as per applicable law. **(f)** The bidder shall quate his offer only on work portion / civil cost i.e. part amount at **Rs. 52,55,092/-** without GST. However testing charges shall be paid as per test result submitted by bidder. Also the royalty shall be paid after producing the royalty challans to the department.

CLAUSE-48: The rates to be quoted by the contractor must be inclusive of all other relevant taxes except GST. No extra payment of this account will be made to the contractor.

CLAUSE-49: In case of materials that may remain surplus with the Contractor from those issued for the work contracted for the date of ascertainment of the materials being surplus will be taken as the date of sales for the purpose of sales tax will be recovered on such sale.

CLAUSE-50: The Contractor shall employ unskilled labour to be employed by him on the said work only from locally available labour and shall give preference to those persons enrolled under Maharastra Government Employment and self Employment Department's Scheme.

Provided, however, that if the required unskilled labour are not available locally, the Contractor shall in the first instance employ such number of persons as is available and thereafter may wit the previous permission in writhing of the Chief Officer-in-charge of the said work, obtain the rest of his requirement of unskilled labour from outside the above scheme.

Wages to be paid to the skilled and unskilled labourers enaged by the Contractor

CLAUSE-51: The Contractor shall pay the labourer skilled unskilled according to the wages prescribed by Minimum Wages Act. 1948 applicable to the area in which the work of the Contractor is located.

A Contractor shall comply with the provisions of the Apprentices Act, 1961 and the Rules and orders issued thereunder from time to time, if he fails to do so, his failure will be a breach of the contract and the Superintending Engineer may in his discretion may cancel the contract. The Contractor shall also be liable for any pecuniary liability arising on account of any violation by him of the provisions of the Act.

The Contractor shall pay the labourers skilled and unskilled according to wages prescribed by Minimum Wages Act, 1948 applicable to the area in which the work is in progress.

CLAUSE-52: All amount whatsoever which the Contractor is liable to pay to the Government in connection with the execution of the work including the amount payable in respect of (I) material and / or stores supplied, issued here under by the Government to the Contractor (II) hire charges in respect of heavy plant machinery and equipment given on hire by the Government to the Contractor for execution by him of the work and / or on which advances have been given by the Government to the Contractor shall be deemed to the arrears of land revenue and the government may without prejudice to any other rights and remedies of the Government recover the same from the Contractor as arrears of land revenue.
(CAT-1274/40364/Desk-2 Dt.7/12/76)

CLAUSE-53: The Contractor shall duly comply with all the provisions of the Contractor Labour (Regulation and Abolition) Act, 1970 (37 of 1970) and the Maharashtra Contract Labour (Regulation and Abolition) Act, 1971as amended from time to time and all other relevant statutes and statutory provisions concerning payment of wages particularly to workman employed by the Contractor working on the site of the work. In particular the Contractor shall pay wages to each worker employed by him on the site of the work at the rates prescribed under the Maharashtra Contractor Labour (Regulation and Abolition) Act, 1971. If the Contractor fails or neglects to pay wages at the said rates or makes short payment and the Government makes such payment of wages in full or part thereof less paid by the Contractor, as the case may be, the amount so paid by the Government to such workers shall be deemed to be arrears of land revenue and the Government shall be entitled to recover the same as such from the Contractor or deduct the same from the amount payable by the Government to the Contractor here under or from any other amounts payable to him by the Government. (Inserted vide Govt. Public Works Department's Circular No. CAT 1284/(120) Building-2 Dated. 14.8.1985. Accompaniments to the G.R.P.W.D. No. BGD. 1979/64 188(358) Desk-2 Dated. 4.2.1981.

CLAUSE-54: The Contractor shall engage apprentices such as brick layer, carpenter, wiremen, plumber as well as black smith as recommended by the State Apprenticeship Advisor, Director of Technical Education, Dhobee Talao, Bombay-400 001, in the construction work (as per Government of Maharashtra, Education Department Circular No. TSA/5170/T/56689, Dated 7/7/1972).

CLAUSE-55: The tendered rates shall be inclusive of all taxes, rates and cesses and shall also be inclusive of the tax leviable in respect of works contract under the provision of the Maharashtra Sales Tax on transfer of property and goods involved in the execution of works contract Act-1989 (Maharashtra Act. No.XXXVI Re-enacted)

CLAUSE-56: **CONDITIONS FOR MALARIA ERADICATION, ANTI-MALARIA AND OTHER HEALTH MEASURES.**

a) Anti-malaria and other health measures shall be as directed by the Joint Director of Health Services, Pune.

b) Contractor shall see that monsquitogenic conditions are not created so as to keep vector population to minimum level.

c) Contractor shall carry out anti-malaria measures in the area as per guidelines prescribed under National Malaria Eradication Programme & as directed by the Joint Director (M&F) of Health Service, Pune.

d) In case of default in carrying out prescribed anti-malaria measuring resulting in increase in malaria incidence, Contractor shall be liable to pay to Government the amount spent by Government on anti-malaria measures to control the situation in addition to fine.

e) The Contractor shall make sufficient arrangements for draining away the sullage water as well as water coming from the bathing and washing places and shall dispose of this water in such a way not to cause any nuisance. He shall also keep the premises clean by employing sufficient number of sweepers.

The Contractor shall comply with rules, regulations, bye-laws and directions given from time to time by the local or public authority in connection with this work and shall pay fees or charges which area leveiable on him without any extra cost to Government.

(Government of Maharashtra P.W.D. Resolution No. CAT-1086/CR-243/D-Bldg-2 Dt. 11/09/87)

CLAUSE-57: **CONDITIONS RELATING TO INSURANCE OF CONTRACT WORK**

The Contractor shall take out necessary Insurance Policy / Policies (viz. Contractor's All Risks Insurance Policy, Erection All Risks Insurance Policy etc. as decided by the Directorate of Insurance) so as to provide adequate insurance cover for execution of the awarded contract work for total contract value and complete contract period COMPULSORILY from the " Directorate of Insurance, Maharashtra State, Mumbai" only. Its postal address for Correspondence is " 264, MHADA, First Floor, Opposite Kalanagar, Bandra (East), Mumbai- 400051." (Telephone Nos. 022- 265 90 403 / 265 90 690 and Fax No. is 022- 265 92 461 / 265 90 690). Similarly all workmen's appointed to complete the contract work are required to insure under workmen's compensation Insurance Policy. Insurance Policy / Policies taken out from any other company will not be accepted. If any Contractor has not taken out out the insurance policy from the “Directorate of Insurance, Maharashtra State, Mumbai” or has effected Insurance with any Insurance Company, the same will not be accepted and 1% of the tender amount or such amount of premium calculated by the Government Insurance Fund will be recovered directly from the amount payable to the Contractor for the executed contract work and paid to the Directorate of Insurance Fund, Maharashtra State, Mumbai. The Director of Insurance reserves the right to distribute the risks of insurance among the other insurers.

Clause 58: **BUILDING AND OTHER CONSTRUCTION WORKERS WELFARE CESS**

As per Government of Maharashtra, Industry, Energy & Labour Deptt. G.R. No. BLA 2009/ Pra.Kra.108 / Kamgar-7A, dt 17/6/2010 & Public Works Department Circular No. BDG-2010/ Pra.kra. 277 / Building-2, dated 28/09/2010, Building and Other Construction Workers Welfare Cess at one percent or at the rates amended from time to time as intimated by the competent authority under Building and Other Constructions Worker Welfare Act 1996 will be deducted from the Bill amount, whether measured Bill, advance payment or Secured Advance

Government in P.W.Deptt. letter (in Marathi)No. Misc / 10 1091 Pra.Kra.2771 BWg.-2, Mantralaya, Mumbai - 32 dated 17/08/2010.

Clause 58:(A) MANDATORY TESTING OF MATERIAL AND PENALTY CLAUSE:

It is mandatory on the part of contractor to carry out all the required tests of various construction materials on the basis of testing frequency and as per charges fixed by VQCC circle. Applicable testing charges will be paid on reimbursement basis to the contractor on production of valid proof of tests carried out. If the contractor fails to submit required test result of the various construction materials as mentioned in the items of Schedule B, he will be liable to deposit the amount at penal rate of five times of the amount of particular test which he has not carried out. Contractor will be infored to deposit the penal amount by the Engineer in charge through letter. On receipt of the letter, contractor will have to either deposit the said amount or to carry out the required tests within ten days of receipt of the letter. If he again fails to carry out the required tests in stipulated time limit, the said tests will be carried out by the department and total exependuture incurred on the testing charges plus five times amount of testing charges will be recovered from the contractor's bill.

As this recovery is only due to the negligence on the part of contractor to carry out the testing of various construction materials as per tender conditions and Chief Officer's decision will be final and binding on the contractor and it can not be challenged by the contractor by way of Appeal, Arbitration or in the court of law.

Additional instructions for use of crused sand

1. VSI Crushed Sand / Artificial manufactured sand / fine aggregates hereinafter reffered for as "Cushed Sand" shallbe as defined under Cl.3.1.2 of IS 383-2016.

2. The properties of "Crushed Sand" shall confirm to the provision of IS 383-2016.

3. The "Crushed Sand" shall be free of dust and other deleterious material.

4. The "Crushed Sand" shall be manufactured using "Automatic Vertical Shaft Impactor" type crusher only.

5. The quantity of micro fines (Partices below 75 microns) in "Crushed Sand" shall not be more than 7%

6. The Contractor shall intimate the Engineer in charge regarding the source of supply of Crushed Sand. The source of supply of "Crushed Sand" shall be got approved by the Chief Officer (Engineer in charge) prior to the start of work.

7. Each load of crushed sand whenever brought on site shall be tested for "Fineness Modulus". Finess modulus shall be within permissible limits. If it doesn's fall within acceptable limit, it shall be rejected.

8. The test of compressive strength of concrete / mortar using "Crushed Sand" shall be carried out in presence of Department's Engineer as given below.
(a) 100% cube testing in presence of Junior / Asstt. / Sectional Engineer.
(b) 25% cube testing in the presence of Sub-Divisional Engineer.
(c) 5% cube testing in the presence of Chief Officer (Engineer in charge).

9. The flakiness Index and Elongation Index tests shall be within permissible limits.

10. The Concrete Mix Design for each grade of concrete using "Concrete Sand" shall not be used.

11. As far as possible freshly produed "Crushed Sand" shall be used stored "Crushed Sand" shall not be used.

12. For plastering purpose, if the use of crushed sand is proposed it shall be used with addition of super plasticisors at the rateof 100 ml. / Bag of cement without extra cost to Government. Separate permission shall be taken for use in plastering from concerned Chief Officer.

13. The following tets shall be carried out for the use of "Crushed Sand".
(a) Sieve Analysis
(b) Specific Gravity
(c) Water Absorption
(d) Bulk Density
(e) Alkali Aggregate Reaction
(f) Sundness
(g) Deleterious Material
(h) Organic Impurities
(i) Micro Fines Content
(j) Test for Silt and Clay
(k) Fineness Modulus Test

14. Necessary Bon regarding the use of "Crushed Sand" shall be submitted by the contractor clearly stating that, if any defects are observed during exeution and defect liability period, the samd shall be rectified as his own risk and cost.

15. Grading Zone-II mentioned under Clause 6.3 table 9 of fine aggregates of IS 383:2016 shall only be used for concreting.

16. Reversible Drum Type / Batch Mix Palnt (Pan type) concrete mixer shall be used for concrete.

17. Crushed Sand shall not be used for prestressed concrete works.

SCHEDULE A

NAME OF WORK:- **S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar.**

Schedule showing (approximately) the materials to be supplied from the P.W. Department Stores for Work contracted to be executed and preliminary and ancillary works and the rates at which they are to be charged for.

Sr. No.	Particulars	Quantity	Unit	Rates at which the materials will be charged to the Contractor		Place of Delivery
				Figures	Words	
--- NIL ---						

Note –

1) The person on firm submitting the tender should see that the rates in the above schedule are filled up by the Chief Officer In charge on the issue of the form prior to the submission of the tender.
2) The rates mentioned in Schedule “A” are inclusive of all taxes and storage charges.

ADDITIONAL CONDITIONS FOR MATERIALS

1. All the materials such as cement, steel, asphalt etc. shall be procured by the contractor from approved Government institution or as directed by Engineer-in-charge only. The material shall be brought at the site of work well in advance by the contractor. The gate pass of the cement, steel, asphalt etc. shall be examined by the authorized representative of the Engineer-in-charge.

2. The contractor shall submit periodically as well as on completion of work, an account of all materials used by him on the work. In addition, a separate register shall be maintained on site for recording daily item wise asphalt, consumption and also item wise consumption of the other material. This shall be signed daily by contractor or his representative and representative of Engineer-in-charge.

3. All the material required for the work shall be procured from the approved Govt. Institution or as directed by Engineer-in-charge only. The material from any other source in lieu of the approved Institution shall not be allowed except under written permission from the Chief Officer. In such case, certificate for its quality shall be produced by the contractor and samples of materials shall be tested from any Government Laboratory by the contractor at his own cost and the test result be supplied to the Department. The materials not conforming to the required standard shall be removed at once from the site of the work by the contractor at his own cost. All the materials such asphalt etc. required for use in the work shall be confirming to the concerned I S./M.O S.T. specification. The contractor shall get necessary tests carried out to the frequency specified for each material in the specification and submit the test result to the Engineer-in-charge or his authorized representative. These materials shall be used on work by the contractor, only if the tests thereof are found satisfactory in the Engineer-in-charge or his authorized representative. These materials shall be used on work by the contractor, only of the tests thereof are found satisfactory to the Engineer-in-charge or his authorized representative for the purpose of daily testing of material such as metal sand, rubble etc. The contractor shall make his own arrangement to install a well equipped laboratory at the site of work at his own cost. The Contractor shall employ qualified personnel in this laboratory at his own cost. The responsibility of carrying out tests to the frequency specified for the material shall rest with the contractor.

4. Contractor shall Construct at his own cost shed/sheds as per direction of the Engineer-in-charge of the work for storing the material and provide double locking arrangements. The Store shed such constructed shall be removed in completion of work. The contractor shall take all necessary steps to guard the material brought by work.

5. The contractor shall make his own arrangements for the safe custody for the materials brought by him on site of work.

6. The charges for conveying of materials for place of purchase by the contractor on the site of work and the actual spot on work site shall be entirely borne by the contractor no claims on this account shall be entertained.

7. The material required only for this work shall be kept in the godown at site. no materials shall be shifted out side of the godown except for which this agreement is entered without prior approval of the Engineer-in-charge.

8. The contractor shall produce sufficient documentary evidence i.e. bill for the purchase, octroi receipts etc. for the purchase of material brought on the work site at once if so request by the Department.

9. All these material i.e. cement, steel, bitumen etc. shall be protected from any damages, rains etc by the contractor at his own cost.

10. The contractor will have to erect temporary shed of approved specification for storing of above materials at work site having double lock arrangement (by double lock it is meant the godown shall always be locked by two locks, one lock being owned and operated by contractor and other by Engineer-in-charge or his authorized representative and the doors shall be openable only after both locks are opened.

11. If required, the weighment of cement bags/steels/bitumen etc. brought by the contractor shall be carried out by the contractor at his own cost.

12. The contractor shall not use cement and other material for the to be executed outside the scope of this contract except for such this work as may be decided by the Engineer-in-charge.

13. The Government shall not be responsible for the loss in cement and steel during transit to work site. The cement brought by the contractor at the work site store shall mean 50 Kg. Equivalent 0.0347 cubic meter per bag by weight. The rate quoted should correspond to this method of reckoning. In case of ordinary/ controlled concrete if cement is found short, the short/storage's will be good by the contractor at his cost.

14. The R.C.C pipes required for the work shall be procured from the MISSIDC only. The payment toward providing and fixing NP2 / NP3 / NP4 pipes will be released only after the contractor submits bills of MISSIDC to authenticate that the pipes have been purchased from the MISSIDC. No payment towards the item of providing and laying of the pipe will be released in absence of the sub of requisite document. After completion of these items in the particular kilometer the withheld pap will be finally released.

14. **Indemnity:** The condition regarding Indemnity as defined on pages at Sr. No. 4 will apply mutatis mutandis is case of material brought by contractor at the site for the execution of the work being executed under this contract.

15. In case the material brought by the Contractor become surplus owing to the change in the design of the work, the material should be taken back by the Contractor at his own cost after prior permission of Engineer in Charge.

16. All empty cement bags shall be returned by Contractor to Department and the Chief Officer shall preserve them for one year as token of proof of use of cement in proper proportion in work.

ARRANGEMENT OF MATERIALS

1. The Contractor shall make his own arrangement for supply of materials including bitumen 60//70 grade, cement and steel R.C.C pipes / collars. The Contractor shall be responsible for all transportation and storage of the materials at site and shall bear all the related costs. The Engineer shall be entitled at any time, to inspect or examine all such materials. The Contractor shall provide reasonable assistance for such inspection or examination as may be required.

2. The Contractor shall keep as accurate record of use of materials like bitumen, cement and steel used in the works in a manner prescribed by the Engineer.

3. If there is any doubt regarding the material received, the same should be get tested from the Government laboratory at the cost of the Contractor, and if the results are substandard, the material or the work executed with such material will be rejected.

4. The day to day record of the receipt / utility / balance of material should be kept by the Contractor at plant site / site of work / store and same will be checked by the Engineer-in-charge or authorised engineer at any time.

5. The procurement of cement / steel etc. should be from authorised manufacturing company and the vouchers regarding purchase thereof shall be submitted to Engineer-in-charge.

6. The testing charges shall be entirely borne by the Contractor.

SPECIAL ATTENTION OF CONTRACTOR FOR EXECUTION

Procurement of material: -

1. Department will not supply any material for execution of work such as Cement. Tor Steel, Asphalt etc. The contractor has to arrange the same from his own source. The quality of the material brought to the site by the contractor should be verified through the various tests provided as per relevant Indian Standards at the cost of the contractor.

2. The adjustment for variation in cost prices of Mild steel and Tor steel bars, structural steel cement (all tested quality) shall be separately made corresponding to the difference in the cost as per the basic price mentioned hereafter and the purchase price of the material subject to limitation of price.

3. The contractor shall construct shed / sheds at his own cost and as per direction of the Engineer-in-charge for storing the materials brought by him and provide double locking arrangements, one lock shall be in the charge of departmental person and material shall be taken for use in presence of the departmental person only

PRICE ADJUSTMENT CLAUSE

Contract price shall be adjusted for increase or decrease in rates of labour, materials, fuels and lubricants excluding bitumen, cement and steel in accordance with the following principles and procedures and as per formula given in the contract data. The price variation clause shall be read as follows: (a) The price adjustment shall apply for the work done from the start date given in the contract data upto end of the initial intended completion date or extensions granted by the Engineer in charge and shall not apply to the work carried out beyond the stipulated time for reasons attributable to the contractor. (b) The price adjustment shall be determined during each month from the formula given in the contract data. (c) Following expressions and meaning are assigned to the work done during each month.

R = Total value of work done during the month. It would include the amount of secured advance granted, if any, during the month, less the amount of secured advance recovered, if any during the month. It will exclude value for works executed under variations for which price adjustment will be worked separately based on the terms mutually agreed.

To the extent that full compensation for any rise or fall in costs to the contractor is not covered by the provisions of this or other clauses in the contract, the unit rates and prices included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall in costs.

The Formula(e) for adjustment of prices are: R = Value of Work

(A) Adjustment for Labour Component

Price adjustment for increase or decrease in the cost due to labour shall be paid in accordance with the following formula:

V_L = $0.85 \times P_l/100 \times R \times (L_1 - L_0)/L_0$

V_L = Increase or decrease in the cost of work during the month under consideration due to changes in rates for local labour.

L_0 = The consumer price index for industrial workers for the state on 28 days preceding the date of opening of Bids as published by Labour Bureau, Ministry of Labour, Government of India

L_1 = The consumer price index for industrial workers for the state for the under consideration as published by Labour Bureau, Ministry of Labour, Government of India

P_l = Percentage of labour component of the work

(B) Adjustment for POL (Fuel and Lubricant) Component

Price adjustment for increase or decrease in the cost of POL (fuel and lubricant) shall be paid in accordance with the following formula:

V_f = $0.85 \times P_f/100 \times R \times (F_1 - F_0)/F_0$

V_f = Increase or decrease in the cost of work during the month under consideration due to changes in rates for fuel and lubricants

F_0 = The official retail price of High Speed Diesel (HSD) at the existing consumer pumps of lac at nearest center on the day 28 days prior to the date of opening of Bids.

F_1 = The official retail price of High Speed Diesel (HSD) at the existing consumer pumps of IOC at nearest center for the 15th day of month of the under consideration.

P_f = Percentage of fuel and lubricant component of the work

Note: For the application of this clause, the price of High Speed Diesel oil has been chosen to represent fuel and lubricants group.

(C) Adjustment of Other Materials Component (Excluding Bitumen, Steel and Cement)

Price adjustment for increase or decrease in the cost of local materials other than cement, steel bitumen and POL procured by the contractor shall be paid in accordance with the following formula:

V_m = $0.85 \times P_m/100 \times R \times (F_1 - F_0)/F_0$

V_m = Increase or decrease in the cost of work during the month under consideration due to changes in rates for local materials other than cement, steel bitumen and POL

M_0 = The all India wholesale price index (all commodities) on 28 days preceding the date of opening of Bids, as published by the Ministry of Industrial Development, Government of India, New Delhi.

M_1 = The all India wholesale price index (all commodities) for the month under consideration as published by the Ministry of Industrial Development, Government of India, New Delhi.

P_m = Percentage of local materials component (other than cement, steel bitumen and POL of the work)

(D) Adjustment of Bitumen Component

Price adjustment for increase or decrease in the cost Bitumen procured by the contractor shall be paid in accordance with the following formula:

V_1 = $QB (B_1 - B_0)$

Where,

V_1 = Amount of price variation in rupees to be allowed for bitumen component

QB = Quantity of Bitumen (VG-30) in metric tones used in the permanent works and approved enabling works during the quarter under consideration

B_1 = Current, average ex-refinery price per metric tonne of Bitumen (VG-30) under consideration including taxes (GST) during the quarter under consideration.

B_0 = Basic rate of Bitumen in rupees per metric tonne as considered for working out value of 'R' or average ex-refinery price in rupees per metric tonne including taxes (GST) of bitumen for the grade of bitumen under consideration prevailing quarter preceding the month in which the last date prescribe for receipt of tender falls, whichever is higher.

(E) Adjustment of Cement Component

Price adjustment for increase or decrease in the cost Cement procured by the contractor shall be paid in accordance with the following formula:

V_2 = $QC (CI_1 - CI_0)$

Where,

V_2 = Amount of price variation in rupees to be allowed for cement component

QC = Quantity of cement in metric tones used in the permanent works and approved enabling works during the quarter under consideration

CI_1 = Current, average rate of cement in rupees per metric tonne including taxes (GST) as per purchased voucher indicating name of work by supplier produced by contractor.

CI_0 = Basic rate of cement in rupees per metric tonne as considered for working out value of 'R' or average ex-factory price in rupees per metric tonne including taxes (GST) of cement under consideration prevailing quarter preceding the month in which the last date prescribe for receipt of tender falls, whichever is higher.

(F) Adjustment of Steel Component

Price adjustment for increase or decrease in the cost Steel procured by the contractor shall be paid in accordance with the following formula for HYSD & Mild Steel / TMT component

V_3 = $QS (SI_1 - SI_0)$

Where,

V_3 = Amount of price variation in rupees to be allowed for HYSD & Mild Steel / TMT component

QS = Quantity of HYSD & Mild Steel / TMT component in metric tones used in the permanent works and approved enabling works during the quarter under consideration

SI_1 = Current, average rate of HYSD & Mild Steel / TMT component in rupees per metric tonne including taxes (GST) as per purchased voucher indicating name of work by supplier produced by contractor.

SI_0 = Basic rate of HYSD & Mild Steel / TMT component in rupees per metric tonne as considered for working out value of 'R' or average ex-factory price in rupees per metric tonne including taxes (GST) of HYSD & Mild Steel / TMT component under consideration prevailing quarter preceding the month in which the last date prescribe for receipt of tender falls, whichever is higher.

Component percentage as given below are as of the total cost of work put to tender,

Sr. No.	Component	Percentage
1	Labour Component - P_l	
2	POL Component - P_f	
3	Materials Component - P_m	
4	Bitumen Component	
5	Cement Component	
6	Steel Component	
7	Testing Charges	
8	Royalty Charges	

Basic Star Rate (Excluding GST)

Sr. No.	Component	Amount	Unit
1	Cement	Rs.	Per Metric Tonne
2	Asphalt	Rs.	Per Metric Tonne
3	Steel	Rs.	Per Metric Tonne

Total amount due to price variation
$V = V_L + V_F + V_M + V_1 + V_2 + V_3$

However, the minimum amount due to price variation will be restricted to 5% of the accepted contract value excluding the compensation p[ayable for the materials (bitumen, steel and cement) which have been directly given difference in purchase price and star rate.

नोंदवही क्र. १

पुंजीत डांबराची आवक आणि खप याचा हिशोब दर्शविणारी

कामाचे नांवः- ----------

मागील सप्ताहापासुन कामाच्या ठिकाणी असलेली शिल्लक

आवक आणि खप यांचा हिशेब

दिनांक	व्हाऊचर नंबर	रिफाईनरीचे नांव	गेट पास क्रमांक	प्राप्त डांबराचे निव्वळ वजन	वापरलेल्या डांबराचे निव्वळ वजन	दिवसाच्या अखेरीस शिल्लक डांबराचे वजन
१	२	३	४	५	६	७

कंत्राटदाराची सही अभियंत्याची सही

नोंदवही क्रमांक २

निरनिराळ्या बाबींवर आठवड्यांमध्ये उपयोगात आणणे आवश्यक असलेले परिमाण यांची तुलना दाखविणारे कोष्टक

आठवड्यांमध्ये केलेल्या कामाचे एकूण अंदाज परिमाण

१	ओपन ग्रेडेड कारपेट	
२	लिक्वीड सिलकोट	
३	बी.बी.एम.	

नोंदवही क्रमांक ३

वज्रचूर्णाची आवक आणि खप यांचा हिशेब दखविणारी

कामाचे नांवः-

मागील सप्ताहापासून कामाच्या ठिकाणी असलेली शिल्लक

आवक आणि खप यांचा हिशेब

अ.क्र.	मिळालेल्या पोत्यांची संख्या	वापरलेल्या पोत्यांची संख्या	दिवसाच्या अखेरीस कामाच्या ठिकाणी राहिलेली पोती
एकुण			

कंत्राटदाराची सही अभियंत्याची सही

नोंदवही क्रमांक ४

निरनिराळ्या बाबींवर आठवड्यांमध्ये उपयोगात आणले आवश्यक असलेले सिमेंट परिमाण व प्रत्यक्षात उपयोगात आणलेले परिमाण यांची तुलना दाखविणारे कोष्टक
आठवड्यामध्ये केलेल्या कामाचे एकूण अंदाज परिमाण

१) पाईप व मोऱ्या

२) इतर संकीर्ण

नोंदवही क्र. ५

---------- रोजी संपणाऱ्या आठवड्यासाठी गोषवारा

अ.क्र.	बाबींचे नांव	केलेल्या कामाचे अंदाज परिमाण		वापरणे आवश्यक असलेले डांबराचे परिमाण मे. टन	वापरावयाचे हवे असलेल्या डांबराचे एकुण परिमाण मे.टन	प्रत्यक्ष वापरलेले डांबराचे एकूण परिमाण मे. टन
		परिमाण	एकमान			
१	२	३	४	५	६	७

कंत्राटदाराची सही

अभियंत्याची सही

नोंदवही क्रमांक ६

------ ला संपणाऱ्या महिन्याची पोलादाची आवक जावक आणि शिल्लक

विभागाचे नांव कामाचे ठिकाण कामाचे नांव

मागील महिन्यापासन कामाच्या ठिकाणी पोलादाची शिल्लक	प्रकार आणि परिमाण (टनामध्ये)	
	प्रकार	
	परिमाण	

------ ला संपणाऱ्या महिन्याची पोलादाची दैनंदिन आवक जावक आणि शिल्लक

दिनांक	पोलादाची आवक (टनामध्ये)		वापरलेल्या पोलादाचे परिमाण		प्रत्येक देवघेवीच्या वेळेची		रोजी संपणाऱ्या आठवड्यात पोलादाच्या प्रकारा-नुसार टनामधील शिल्लकीचा गोषवारा	
	प्रकार	वजन (टनामध्ये)	प्रकार	वजन (टनामध्ये)	प्रकार	वजन (टनामध्ये)	प्रकार	वजन (टनामध्ये)
	एकूण		एकूण		एकूण		एकूण	

नोंदवही क्रमांक ७

---------- ला संपणा-या महिन्यामध्ये पोलादाचे किती परिमाण वेगवेगळ्या बाबींवर उपयोगात आणावयास पाहिजे होते व प्रत्यक्षात किती परिमाण वापरले ही तुलना करण्यासाठी आवश्यक असलेली गणना

अनुक्रमांक	पार पाडलेल्या बाबींचा तपशिल	केलेल्या कामांचे अंदाजे परिमाण	संकल्प चित्राप्रमाणे आवश्यक पोलादाचे परिमाण (टनामध्ये)	असलेल्या प्रत्यक्ष वापरलेले परिमाण (टनामध्ये)
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ADDITIONAL GENERAL CONDITIONS AND SPECIFICATIONS

1. CONTRACTOR TO INFORM HIMSELF FULLY:

The contractor shall be deemed to have carefully examined the work and site conditions including labour, the general and the special conditions, specifications, schedules and drawings and shall be deemed to have visited the site of the work and to have fully informed himself regarding the local conditions and carried out his own investigation to arrive at rates quoted in the tender. In this regard, he will be given necessary information to the best of knowledge of Department but without any guarantee about it. If he shall have any doubt as to the meaning of any portions of these general conditions or the special conditions, or the scope of work or the specifications and drawings or any other matter concerning the contract, he shall in good time., before submitting his tender, set forth the particulars thereof and submit them to the **Chief Officer, Jawhar Municipal Council, Jawhar** in writing in order that such doubts may be clarified authoritatively before tendering. Once a tender is submitted, the matter will be decided according to tender conditions in the absence of such authentic pre-clarification.

2. INDEMNITY:

The contractor shall indemnify the Government against all actions, suits, claims and demands brought or made against him in respect of anything done or committed to be done by the contractor in execution of or in connection with the work of this contract and against any loss or damage to the Government in consequence of any action or suit being brought against the Contractor for anything done or committed to be done in the execution of the works of this contract.

3. DEFINITIONS:

Unless excluded by or repugnant to the context,

(a) The expression" Government "as used in the tender papers shall mean the Public Works, Irrigation and Housing Department of the Government of Maharashtra.

(b) The expression "Chief Engineer" as used anywhere in the tender papers shall mean Chief Engineer or the Government of Maharashtra who is designated as such.

(c) The expression "Superintending Engineer" as used in the tender papers shall mean an officer of Super intending Engineer's rank (by whatever designation he may be known) under whose control the work lies for the time being,

(d) The expression "Engineer" or "Engineer-in-charge" as used in the tender *papers* shall mean the Chief Officer in charge of the work for the time being.

(e) The expression "Contractor" used in the tender papers shall mean the successful tenderer whose tender has been accepted, and who has been authorized to proceed with the work. The contractor shall / may be the individual or firm or company whether incorporated or not, undertaking the work and shall include legal representatives of such an individual or person comprising such firm or company as the case may be and permitted assigns of such individual or firm or company.

(f) The expression "Contract" as used in tender papers shall mean the deed of contract together with its original accompaniment and those later incorporated in it by mutual consent. The contract shall mean the notice offender the sealed quotation and the tender documents including the tender and acceptance thereof together with the documents referred to therein and the accepted conditions, specifications, designs, drawings, priced schedule / bill of quantities and schedule of rates. All these documents taken together shall be deemed to form one contract and shall be complementary to one other.

(g) The expression "Plant" as used in the tender papers shall mean every machinery, necessary or considered necessary by the Engineer to execute, construct, complete and maintain the works and used in. altered, modified, substituted and additional work ordered in the time and the manner herein provided and all temporary materials and special and other articles of appliances of every sort, kind and description whatsoever intended or used thereof.

(h) "Drawing" shall mean the drawings referred to in the specifications and any modifications of such drawings approved in writing by Engineer and such other drawings as may from time to time be furnished or approved in writing by the Engineer.

(i) "Engineer's representative" shall mean an assistant of the Engineer notified in writing to the contractor by the Engineer.

(j) "Provision sum" or "Provisional lump-sum" shall mean a lump sum included by Government in tender documents and shall represent the estimated value of work for which details are not available at the time of issue of tender.

(k) "Provisional items" shall mean items for which approximate quantities have been included in the tender documents.

(l) The "Site" shall mean the Sands and / or other places, on, under, in or through which the work is to be executed under the contract including any other lands or places which may be allotted by Government or used for the purpose of contract.

(m) The "Work" shall mean the works to be executed in accordance with the Contract or part (s) thereof as the case may be and shall include all extra, additional, altered or substituted works as required for performance of the Contract.

(n) The "Contract Sum" shall mean the sum for which the tender is accepted.

(0) The "Accepting authority" shall mean the officer competent to accept the tender. The "Accepting Authority" shall mean the Chief Engineer, Public Works Region, Mumbai.

(P) The "Day" shall mean a day of 24 hours from midnight to midnight irrespective of the number of hours worked in any day in that week.

Q) "Temporary Works" shall mean all temporary works of every kind required in or about the execution completion or maintenance of the work.

R) "Urgent Works" shall mean any measure which in the opinion of the Engineer-In Charge become necessary during the progress of the works to obviate any risk or accident or failure or which become necessary for security of the work or the persons working thereon.

S) A "Week" shall mean seven consecutive days without regards to the number of hours worked on any day in that week.

T) "Excepted Risks" are risks to riots (other wise than among contractors employees) and civil commotions (in so far as both these are uninsurable) war (whether declared or not) invasion, act of foreign enemies, hostilities, civil war, rebellion, revolution, insurrection, lightening and unprecedented floods over which the contractor has no control and accepted as such by the accepting authority.

Where the context so requires, words importing the singular number only also include the plural number and vice-versa.

Heading and Marginal notes if any to the general condition shall not be deemed to form par thereof or be taken into consideration in the interpretation or construction thereof the contract.

Wherever, there is mention of "Schedule of Rates" of the division or simply D.S.R. of schedule rates in this tender, it will be taken to mean as "The schedule of rate of the Division in whose jurisdiction the work lies"

4. ERRORS, OMISSION AND DISCREPANCIES:

(a) In case of errors, omissions and / or disagreement between written and scaled dimensions on the drawing or between drawings and specifications etc. The following order of preference shall apply.

I) Between actual scaled and written dimensions or descriptions on a drawing the latter shall be adopted.

ii) Between the written or shown description of dimensions in the drawing and corresponding one in the specifications, the latter shall apply.

iii) Between the quantities shown in schedule of quantities and those arrived at from the drawings, the latter shall be preferred.

iv) Between the written description of the item in the schedule of quantities and the detailed description in the specifications of the same items, the latter shall be adopted.

(b) In case discrepancy between percentage rates quoted in figures and words, the lower of the two will be considered for acceptance of the tender.

In case of difference between the rates written in figures and words, the rate adopted by the contractor for working out the total amount of the item will be taken as correct. In other cases correct rate would be that, which is lower.

(c) In all cases of omissions and / or doubts or discrepancies in the dimensions or description of any item or specification, reference shall be made to the **Chief Officer, Jawhar Municipal Council, Jawhar** whose elucidation, elaboration or decision shall be considered as authentic. The contractor shall be held responsible for any errors that may occur in the work through lack of such reference and precaution.

(d) The special provisions in detailed specifications and wording of any item shall gain precedence over corresponding contractor provisions (if any) in the standard specifications of public works department Hand Book where reference to such specifications is given without reproducing the details of contract.

4.2 The work is required to be completed within a period of as specified in tender on Page No.1. The contractor shall submit the tentative Bar Chart before the commencement of work.

5. METHODOLOGY OF CONSTRUCTION AND CONSTRUCTION EQUIPMENTS :-

5.1 Construction Machinery / Equipments:

5.1.1 The methodology and equipments to be used on the project shall be furnished by the Contractor to the Engineer-In-Charge well in advance of commencement of work and approval of the Engineer-In-Charge obtained prior to its adoption and use.

5.1.2 The Contractor shall give, a trial run of the equipment for establishing its capability to achieve the laid down specifications and tolerance to the satisfaction of the Engineer-in-Charge before commencement of work, if so desired by the Engineer-In-Charge.

5.1.3 All equipments provided shall be of proven efficiency and shall be operated and maintained at all times in the manner acceptable to the Engineer-In-Charge.

5.1.4 No equipment or personnel shall be removed from the site without permission of the Engineer-In-Charge.

5.2 Contractor shall furnish at least 15 days in advance his programme of commencement of item of work, the details of actual methods that would be adopted by the contractor for the execution of various items of work such as well sinking, cast-in-situ, superstructure for bridge work items etc. for bridge works supported by necessary detailed drawings and sketches including those of the plant and machinery that would be used, their locations, arrangements for conveying and handling materials etc. and obtain prior approval of the Engineer-In-Charge well in advance of starting of such item of work. The Engineer-In-Charge reserves the right to suggest modifications or make complete changes in the method proposed by the contractor, whether accepted previously or not at any stage of the work, to obtain desired accuracy quality and progress of the work which shall be binding on the contractor, and no claim on account of such change In method of execution will be entertained by Government so long as specifications of the item remain unaltered. The sole responsibility for the safety and adequacy of the methods adopted by the contractors, will however, rest on the contractor, irrespective of any approval given by the Engineer.

5.3 Abrasion Testing Machine for Tiles of standard make confirming to IS – 1237 & 1706 with suitable thickness measuring device to measure wear of the tile. It shall be suitable for operation on 415 v/50 Hz, 3 phase AC supply.

6. WORKING METHODS:

Contractor shall submit, within times stipulated time by the Engineer, in writing the details of actual methods that would be adopted by the contractor for the execution of any item as required by Engineer, at each of the locations, supported by necessary detailed drawings and sketches including those of the Plant and Machinery that would be used, their locations, arrangement for conveying and handling materials etc. And obtain prior approval of the Engineer-in-charge well in advance of starting of such item of work The Engineer-in-charge reserves the right to suggest modifications or make complete changes in the method proposed by the contractor, whether accepted previously or not, at any stage of the work. to obtain the desired accuracy, quantity and progress of the work which shall be binding on the contractor, and no claim on account of such change in method of execution will be entertained by Government so long as specifications of the item remain unaltered.

6.1 WORK METHODOLOGY FOR SEAL COAT

Liquid seal coat shall be executed as per clause No.513 of specification for roads and Bridges work of MORT&H specification 2001 and latest reprint amendments. Preparation of surface to receive seal coat shall be as per 513.3.2 and in one go 200 m. only.

The Preparation of surface for seal coat and construction of seal coat as per clause 513.3.2 & 513.3.3 responsively as mention above shall be done in 200m. in one go. 200 m. cycle shall be repeated throughout the day and at the end of the working day any fraction left measuring less than 200 m shall be done separately, as mentioned herein

6.2 PROGRESSIVE METHODOLOGY.

The work methodology as described above shall then be followed for next 200mts. and thus progressively for entire length of road.

6.3 MODE OF INSPECTION AND MESUREMENT

The Chief Officer shall remain present and personally supervise the first 200 mtrs. Length, accordingly in presence of Deputy Engineer, Junior Engineer and Contractor/Contractor's representative.

The Deputy Engineer shall remain present and personally supervise at least 25% of the area of seal coat executed

The Junior Engineer shall remain present and personally supervise cent percent length executed

The Chief Officer shall show the check measurement of carpet and liquid seal coat accordingly in the measurement book for the executed 200 Mtrs. demo length. This check measurement shall be part of percentage check measurement required by Chief Officer as per the Maharashtra Public Works Manual, Appendix-24.

The measurement of liquid seal coat of the work shall be recorded by Deputy Engineer only.

7. PROGRESS SCHEDULE:

7.1 The contractor shall furnish within the period stipulated in writing by the Engineer-in charge, of the order to start the work, a progress schedule in quadruplicate indicating the date of actual start, the monthly progress expected to be achieved and the anticipated completion date of each major item of work to be done by him, also indicating dates of procurement and setting up of materials, plant and machinery. The schedule is to be such as is practicable of achievement towards the completion of the whole work in the time limit, the particular items, if any, on the due dates specified in the contract and shall have the approval of *the* Engineer-in-charge. No revised schedule shall be operative without such acceptance in writing. The Engineer is further empowered to ask for more detailed schedule or schedules say week by week for any item, in case of urgency of work as will be directed by him and the contractor shall supply the same as and when asked for.

7.2 The Contractor shall furnish sufficient plant, equipment and labour as may be necessary to maintain the progress of schedule. The working and shift hour's restricted to one shift a day for operations to be done under the Government supervision shall be such as may be approved by the Engineer-in-charge. They shall not be varied without the prior approval of the Engineer. Night work which requires supervision shall not be permitted except when specifically allowed by Engineer each time, if requested by the Contractor. The Contractor shall provide necessary lighting arrangements etc. For night work as directed by Engineers without extra cost.

7.3 Further, the contractor shall submit the progress report of work in prescribed forms and charts etc. At periodical intervals, as may be specified by the Engineer-in charge. Schedule shall be in form of progress charts, forms, progress statement and/or reports as may be approved by the Engineer.

7.4 The contractor shall maintain proforma, charts, details regarding machinery, equipment, labour, materials, personnel etc. As may be specified by the Engineer and submit periodical returns thereof as may be specified by the Engineer-in-charge.

7.5 PRIORITIES OF WORKS TO BE EXECUTED:
Priorities for items to be executed shall be determined periodically keeping in view of the final time limit allowed for the work and all the time schedule fixed for intermediate stages of work.

7.6 Revised Programme of Work in case of slippage:
In case of slippage from the approved work programme at any stage, the contractor shall furnish revised programme to make up slippage within the stipulated time schedule and obtain the approval of the Engineer-in-charge to the revised programme.

7.7 Action in case disproportionate progress:
In case of extremely poor progress of the work or any item at any stages of work which in the opinion of the Engineer-In-Charge cannot be made good by the Contractor considering his available resources, the Engineer-In-Charge will get it accelerated to make up the lost time through any other agency, and recover the additional cost incurred, If any, in getting the work done from the Contractor after informing him about the action envisaged by him.

8. TREASURE-TROVE:
In the event of discovery by the contractor or his employees, during the progress of the work of any treasure, fossils, minerals or any other articles of value or interest, the contractor shall give immediate intimation thereof to the Engineer and forthwith hand over to the Engineer such treasure or things which shall be the property of Government.

9. AGENT AND WORK-ORDER BOOK:
The contractor shall himself manage the work or engage an authorized all-time agent on the work capable of managing and guiding the work and understanding the specifications and contract condition. A qualified and experience, Engineer shall be provided by the Contractor as his agent for technical matters in case the Engineer-in charge considers this as essential for the work and so directs contractors. He will take orders as will be given by the Chief Officer or his representative and shall be responsible for carrying them out. This agent shall not be changed without prior intimation to the Chief Officer and his representative on the work site. The contractor shall supply to the Engineer the details of all supervisory and other staff employed by the Contractor and notify changes when made, and satisfy the unquestionable right to ask for change in the quality and numbers of contractor's supervisory staff and to order removal from work of any of such staff. The contractor shall comply with such orders and effect replacements to the satisfaction of the Engineer.
A work-order book shall be maintained on site and it shall be the property of Government and the Contractor shall promptly sign orders given therein by Chief Officer or his representative and his superior officers, and comply with them. The compliance shall be reported by the contractor to the Engineer in good time so that it can be checked. The blank work order book with machine numbered pages will be provided by the Department free of charge for this purpose. The contractor will be allowed to copy out instructions therein from time to time.

10. SETTING OUT FOR (BUILDING WORKS)
The Engineer-in-charge shall furnish the contractor with only the four corners of the works site and a level bench mark and the contractor shall set out the works and shall provide an efficient staff for the purpose and shall be solely responsible for the accuracy of such setting out.The Contractor shall provide, fix and be responsible for the maintenance of all stacks, templates, level marks, profiles and other similar things and shall take all necessary precautions to prevent their removal or disturbance and shall be responsible for the consequence of such removal or disturbance should the same take place and for their efficient and timely reinstatement. The Contractor shall also be responsible for the maintenance of all existing survey marks, boundary marks, distance marks and centre line marks, either existing or supplied and fixed by the Contractor. The work shall be set outto the satisfaction of the Engineer-in-charge. The approval there of or joining with the Contractor of any of his responsibilities. Before beginning the work, the Contractor shall at his own cost provide all necessary reference and level posts, pegs, gamboos, flags, ranging road, strings and other materials for proper layout of the work in accordance with the scheme for bearing marks acceptable to the Engineer-in- charge.

The centre, longitudinal or face lines and cross lines shall be marked by means of small masonry pillars, Each pillar shall have distinct mark at the centre to enable the thodolite to be set over it. No work shall be started until all these points are checked and approved by the Engineer-in-charge in writing but such approval shall not relieve the Contractor of any of his responsibilities.

The Contractor shall also provide all labour, material and other facilities, as necessary, for the proper checking of layout and inspection of the points during construction. Pillars bearing geodetic marks located at the sites of units of works under construction should be protected and fenced by the Contractor. On completion of works, the Contractor must submit the geodetic documents according to which the work was carried out.

RESPONSIBILITIES FOR LEVEL AND ALIGNMENT
The Contractor shall be entirely and exclusively responsible for the horizontal and vertical alignment, the levels and correctness of every part of the work and shall rectify effectually any errors or imperfections therein, such rectifications shall be carried out by the Contractor, at his own cost, when instructions are issued to that effect by the Engineer-in-charge.

SETTING OUT FOR ROAD / BRIDGE :-
Setting out:
Setting out the works as spelt out in clause 109 of Ministry's specifications for Road and Bridge works (2nd Revision) will be carried out by the Contractor.

Immediately on receipt of the work order, the contractor shall at his own expenses clean the site and take up a provisional and final setting out and lining out of the work under the supervision of his responsible representative and shall provide necessary material, labour, tools, instruments etc. required for the same.
One tentative abutment location will be indicated by Engineer-in-charge and the center line of the bridge shall be defined by him. The contractor will then have to fix up the location of the other abutment. The abutment location will then be verified by the department and shall be adjusted if necessary. Once the final location of abutments is so finalized, it will be the contractor's responsibility to line out and locate the remaining foundation of piers.
The contractor shall be responsible for true and proper setting out of the work and for the correctness of the positions, level dimensions and arrangements of all parts of works and for providing all necessary instruments, appliances and labours in connection therewith at his own cost. Officers may assist the contractor in proper setting out. Government instruments may be allowed to be used for setting out of work for which no cost shall be recovered from the contractor. If at any time during the progress of work, any errors arise in regard to levels of dimensions or alignment of any part of the work, rectification thereof, on being required to do so, will be carried out by the contractor at his own cost, unless such errors are based on incorrect data, supplied in writing by the Engineer or his authorized representative in which case the expenses of the rectification shall be refunded by Government.

10.1 The contractor for shall provide free of charge all labour and materials required for lining out. surveying, inspection decided by the Engineer as considered necessary for the proper and systematic execution of the work, Likewise only one bench mark with definite value of R.L. will be shown to contractor who shall have to provide for network of temporary benchmark's all along the bridge as required for executive the work.

The contractor shall be responsible for the provision, accuracy and maintenance of such temporary bench mark. He shall be responsible for the correctness of the position, levels, dimensions and alignments of all parts of the works and provisions of necessary instruments and labour in connection with it. The contractor shall provide scientific instruments and labour in connection with it. The contractor shall provide like theodolite and leveling instruments and steel tapes for lining out the bridge suitable masonry pedestals or wooden stacks firmly fixed shall be provided by the contractor for marking the Center lines of the structures.

The checking or inspection of any setting out of any line or level or word by Engineer or his representative shall not any way leave the contractor of his responsibility for correctness thereof. The contractor shall carefully protect and preserve bench mark pedestals and stone etc. used in setting of the works.

WATER :- If the potable water is not available in the river bed the contractor has to make his own arrangements for potable water required for concrete mixing, its curing and other parts of the construction for which no extra claim will be paid by the department.

10.2 RESPONSIBILITIES FOR LEVEL AND ALIGNMENT. :-
The Contractor shall be entirely and exclusively responsible for the horizontal and vertical alignment, the levels and correctness of every part of the work and shall rectify effectively any errors or imperfections therein, such rectifications shall be carried out by the Contractor, at its own cost, when instructions are issued to that effect by the Engineer- in-charge.

10.3 LEVELLING INSTRUMENTS:

If measurements of items of the work are based on volumetric measurements calculated from levels taken before and after construction of the item, a large number of leveling staffs, tapes etc. will have to be kept available by the Contractor at the site of work for this purpose. Lack of such leveling staffs, tapes etc. in required numbers may cause delay in measurements and the work. The Contractor will have therefore to keep sufficient number of these readily available at site and in good working condition.

10.4 To carry out activities mentioned above 10.1, 10.2 & 10.3

Contractor shall make all necessary arrangements to carry out all necessary detail surveys required as per the Specifications / Tender Conditions, during currency of work / project, and deliver desired outputs in printed / soft as instructed by engineer in charge at different stages of works as instructed by the engineer in-charge during the currency of the project, that is from start to finish of the work/project.

To carry out such surveys and deliver desired outputs in printed form / soft copy as instructed by engineer in charge as mentioned above.

The Contractor shall appoint a survey agency with the approval of the engineer in charge, for that, Contractor shall submit list of three survey agencies to engineer in charge , along with the payment of his security deposit (as required under the clause one of the B-1 contract) . The engineer in charge on receipt of such list will select one survey agency out of three and communicate it, along with the work order to contractor. Contractor should appoint survey agency as selected by the engineer in charge. The survey agency shall not be changed without permission of the engineer in charge.

The survey agency and / or contractor shall have…….

1) Latest survey instruments and/or equipments viz. total station, auto levels, plotter etc.
2) Auto CAD, non-auto CAD base software to deliver desired outputs based on survey carried out using (1) above, in printed/soft copy as instructed by engineer in charge.
3) Necessary trained manpower to work on and deliver as (1) and (2) above.

For appointing survey agency, to carry out such surveys and deliver desired outputs in printed/soft as instructed by engineer in charge as mentioned above the Contractor shall not be paid separately. His offer shall be inclusive of all.

11) AUTHORITIES OF THE ENGINEER-IN-CHARGE REPRESENTATIVE

The duties of the representative of the Engineer-in-charge are to watch and supervise the work and to test and examine any material to be used or workmanship employed in connection with the works.

The Engineer-in-charge may from time to time, in writing delegate to his representative any powers and authorities vested in the Engineer-in-charge and shall furnish to the Contractor a copy of all such delegations of powers and authorities. Any written instructions of Approval given by the representative of the Engineer-in-charge to the Contractor within the terms of such" delegations (but not otherwise) shall bind the Contractor and the department as through it had been given by the Engineer-in charge, provided always as follows.

Failure of the representative of the Engineer-in-charge to disapprove any work or materials shall not prejudice the power of the Engineer-in-charge thereafter to disapprove such work or materials and so order the putting down, removal or breaking up thereof.

12) INITIAL MEASUREMENTS FOR RECORD:

Where for proper measurement of the work, it is necessary to have an initial set of levels or other measurements taken, the same as recorded in the authorized field book or measurement book of Government by the Engineer or his authorized representative will be signed by the contractor who will be entitled to have a true copy of the same made at his cost. Any failure on the part of the contractor to get such levels etc. Recorded before starting the work, will render him liable to accept the decision of the Engineer as to the basis of taking measurements.

Like-wise the contractor will not cover any work which will render its subsequent measurements difficult or impossible without first getting the same jointly measured by himself; and the authorized representative of the Chief Officer. The record of such measurements on the Government side will be signed by the Contractor and he will be entitled to have a true copy of the same made at his cost.

13 HANDING OVER OF WORK:-

All the work and materials before finally taken over by Government will be the entire liability of the Contractor for guarding, maintaining and making good any damages of any magnitude interim payments made for such work will not alter this position. The handing over by the Contractor and taking over by the Chief Officer or his authorized representative will be always in writing, copies of which will go to the Chief Officer or his authorized representative and the contractor. It is, however understood that before taking over such work, Government will not put it into regular use as distance from casual or incidental one, except as specially mentioned elsewhere in this contact, or as mutually agreed to.

14. ASSISTANCE IN PROCURING PRIORITIES, PERMITS ETC. :-

The Engineer, on a written request by the contractor, will if in his opinion, the request is reasonable and in the interest of work and its progress, assist the contractor in Securing, the priorities for deliveries, transport permits for controlled materials etc., where such are needed. The Government, will not, however be responsible for the non-availability of such facilities or delay in this behalf and no claims on account of such failures or delays shall be allowed by the Government. The Contractor shall have to make his own arrangement for machinery required for the work. Such machinery conveniently available with the Department may be spared as the rules in force on recovery of necessary Security Deposit and rent with Agreement in the prescribed Signature of Contractor form. Such an Agreement shall be independent of this contract and the supply of machinery shall not form a ground for any claim or extension of time limit for this work.

15. **A)** The Contractor shall set up and get it checked and certified by the Chief Officer, a field laboratory with necessary equipments for testing of all materials, finished products used in the construction as per requirements of relevant specifications. The testing of all materials shall be carried out by the Engineer, or his representative for which the contractor shall make all the necessary arrangements and bear the entire cost.

B) At least 30% of the tests of those required as per frequency chart given in Clause 15.1 shall be carried out in Government Laboratories of Vigilance & Quality Control Circle. All the tests which cannot be carried out in field laboratory shall be carried out 100% at the contractor's cost in Vigilance & Quality Control laboratory.

C) The tests which cannot be carried out both in field laboratory and Vigilance & Quality Control Circle's laboratories shall be carried out 100% in the laboratories of Government Engineering College / Government Polytechnic at the entire cost of Contractor.

15.1 FREQUENCY CHART FOR TESTING OF MATERIALS

Sr. No.	Material	Test	Frequency of Testing	Remarks
1.	Sand	i. Fineness Modulus ii. Silt Content	At the beginning and if there is change in source for silt content	Every batch of sand
2.	Metal	i) Crushing value ii) Impact value iii) Abrasion value iv) Water Absorption v) Flakiness Index vi) Stripping value vii) Gradation	One test per 200 Cu.M. or part thereof.	PWD Hand Book I.S.2386 Part-II
3.	Cement Concrete	I) Compressive Strength	Upto 5 Cu.M 1 set 6-15 Cu.M. - 2 sets 16-30 - 3 sets 31-50 - 4 sets 51 & above - 4 sets + One additional set for each additional 50 Cu.M. or part thereof.	M.O.S.T. Specification 1716
4.	Cement	i) Compo Strength ii) Initial setting time iii) Final setting time iv) Specific Gravity v) Soundness vi) Fineness	One test for each consignment of 50 M.T. (1000 bags) or part thereof.	I.S.269 12269
5.	Steel	i) Weight per Meter ii) Ultimate Tensile stress iii) Yield stress iv) Elongation	One test for every 5.0 M.T. or part thereof for each diameter.	I.S.432

Sr. No.	Material	Test	Frequency of Testing	Remarks
6.	Water Bound Macadam	i) Aggregate Impact value ii) Gradation iii) Flakiness index & Elongation Index iv) Atterberg limits of binding material v) Atterberg limits of portion of aggregates passing 425 Micron.	1 test per 200 Cum. 1 test per 100 Cum. 1 test per 200 Cum. One test per 25 M3 of binding material One test per 100 Cum.	
7.	Prime coat / tack coat / Fog spray	i) Quality of Binder ii) Binder Temperature iii) Rate of spread of binder	No. of samples per lot and tests as per IS-73, IS-217 and IS-8887 as applicable. At regular close intervals. One test per 500 M2 and not less than two tests per day	M.O.S.T. Specification Table900-4.
8.	Seal Coat / Surface Dressing	i) Quality of Binder	No. of samples per lot and tests as per IS-73, IS-217 and IS-8887 as applicable.	M.O.S.T. Specification Table900-4.
9.	Open graded premix surfacing / Close graded premix surfacing	i) Quality of Binder ii) Impact value / Los Angles Abrasion value iii) Flakiness & Elongation Index	No. of samples per lot and tests as per IS-73, IS-217 and IS-8887 as applicable. 1 test per 50 Cum. 1 test per 50 Cum.	M.O.S.T. Specification Table900-4.
		iv) Stripping value of aggr. (Immersion tray test) v) Water Absorption vi) Water Sensitivity of mix vii) Gradation viii) Soundness xi) Temp. of binder x) Binder Content xi) Rate of spread of mixed materials. xii) Percentage of fractural faces.	Initially 1 set of 3 representative samples for each source of supply. Subsequently by change in the quality of aggregates. 1 test per 25 Cu.M Initially one determination by each method for each source of supply, then as warranted by change in the quality of aggregate At regular close intervals 1 test per 500 M3 and not less than 2 tests per day. Regular control through checks of layer thickness When gravel is used, one test per 50 Cum.	
10.	Granular Sub-base	i) Deleterious constituents ii) CBR	As required As required	

Sr. No.	Material	Test	Frequency of Testing	Remarks
11.	Wet Mix	i) Impact value, ii) Flakiness and Elongation Index. iii) Density of compacted layer. iv) Gradation v) Atterberg limits of portion of aggr. passing 425 mix.	1 test per 200 Cum. One test per 500 M2 1 test per 100 Cum 1 test per 100 Cum.	M.O.S.T. Specification Table900-4.
12.	Dense Bituminous Macadam/ Semidense Bituminous concrete/ Bituminous Concrete.	i) Quality of Binder ii) Impact value / Abrasion value iii) Flakiness & Elongation Index iv) Stripping value v) Water Absorption vi) Water Sensitivity of mix vii) % of fractural faces viii) Sand Equivalent test ix) Plasticity Index x) Mix Grading	No. of samples per lot and tests as per IS-73, IS-217 and IS-8887 as applicable. 1 test per 50 Cum. 1 test per 50 Cum. Initially 1 set of 3 representative samples for each source of supply. Subsequently by change in the quality of aggregates. 1 test per 25 Cu.M As required. As required. One set of test on individual constituents	M.O.S.T. Specification Table900-4.
		xi) Binder Content xii) Stability of Mix xii) Swell Test of Mix xiii) Control of Temp. of binder in boiler, aggr. In dryer and mix at the time of laying & rolling. xiv) Control of binder content & grading of mix xv) Rate of spread of mixed material xvi) Density of compacted layer.	individual constituents & mix aggregates from dryer mix subject to a minimum of two tests per plant per day. For each400 Tonnes of mix products. As required for Bituminous concrete. At regular close intervals. 1 test for each 400 Tonnes of mix subject to minimum of two tests per day per plant. Regular control through checks on the weight of mixed material and layer thickness. 1 test per 250 Sqm. Area.	

वारंवारता चाचणी (**Frequency test**) अन्वये नमुद केलेल्या चाचणीनुसारच दक्षता व गुणनियंत्रक मंडळयाच्या प्रयोगशाळेतुनच चाचण्या आवश्यक आहेत, त्या सर्व चाचण्या पूर्ण करण्यात याव्यात. नमुद करण्यात आलेल्या चाचण्यापैकी काही चाचण्या काम पूर्ण झाल्यानंतरही बाब निहाय संपूर्ण चाचण्यांच्या संख्येनुसार नमुद केल्याप्रमाणे झाल्या नसल्यास सदरहू कामाच्या अंतिम देयकातुन उर्वरित चाचणी करिता आवश्यक असणारी शुल्क (चाचणीच्या संख्येनुसार) चाचणनिहाय पाच पटीने अंतिम देयकातुन वसुल करण्यात येईल.

ADDITIONAL CONDITION FOR MATERIAL TESTING

15.1.2 It is mandatory on the part of Contractor to carry out all the required tests of various construction materials as mentioned in Schedule-'B' of the Tender.
If the contractor fails to submit required Test Results of the various construction materials as mentioned in the items of Schedule-'B', he will be liable to deposit the amount at penal rate of five times of the amount of particular test which he has not carried out. Contractor will be informed by the Engineer-in-charge by letter. On receipt of letter, contractor will have to either deposit the said amount or to carry out the required test within 10 days. If he again failed to carry out the required tests in stipulated time limit, the said tests will be carried out by the department and total expenditure incurred on the testing charges plus five times amount of testing charges will be recovered from the Contractor's bill.

As this recovery is only due to the negligence on the part of contractor to carry out work as per Tender Conditions and Chief Officer's decision will be final and binding on the Contractor and it cannot be challenged by the Contractor by way of Appeal, Arbitration or in the Court of Law.

15.2 SAMPLING OF MATERIALS

Samples provided to the Engineer or his representative for their retention is to be in the labeled boxes suitable for storage. Materials or workmanship not corresponding in character and quality with approved samples will be rejected by the Engineer or his representative and shall be removed from the site as directed by the Engineer at the Contractor's cost. Samples required for approval and testing must be supplied well in advance by at least 48 hours to allow for testing and approval. Delay to work arising from the late submission of sample will not be acceptable as a reason for delay in the completion of work. For all materials brought from outside, the cost of sampling, testing whether in India or outside shall be borne by the contractor.

All materials to be used on work shall be got approved in advance from the Engineerin-charge and shall pass the test and or analysis required by him. which will be as follows-

a) As specified by the Indian Road Congress Standard Specification.

b) Code of Practice for Road and Bridges.

c) B.I.S. specification (whichever and wherever applicable)

d) Such recognised specifications accepted to Engineer-in-charge or equivalent hereto or in absence of such recognised specifications.

e) i) The Contractor shall set up Field Laboratory with necessary equipment for testing of all materials / finished products, and get it checked and certified from the Chief Officer.

ii) Such requirement test and or analysis as may be specified by the Engineer-incharge in order of precedence given above.

iii) The contractor shall at his risk and cost make all arrangement and/or shall provide for all such facilities as the Engineer-in-charge may require for collecting preparing required number of samples for tests or for analysis at such time and to such places may be directed by the Engineer and bear all charges and cost of testing. Such samples shall also be deposited with the Engineer-in-charge.

iv) The contractor shall if and when required submit at his cost the samples of materials to be tested or analysis and if, so directed shall not make use of or incorporate in the work any materials represented by the samples until the required tests or analysis have been made and the materials, finally accepted by the Engineer- in-charge. Samples provided to the Engineer in charge for retention purpose are to be in labeled boxes suitable for storage.

v) The contractor shall not be eligible for any claim or compensation at either arising out of any delay in the work or due to any corrective measures required to be taken on account of and as a result of testing of the materials.

vi) The contractor or his authorized representative will be allowed to remain present in the department laboratory while testing samples furnish by him. However the results of all the tests carried out in the department laboratory in the presence or absence of the contractor or his authorized representative will be binding on the contractor.

vii) Cost of routine day-to-day quality control testing charges for tests required as per specifications will be borne by the contractor by sending the same to the concerned Government laboratories.

viii) Test shall be carried out at approved Government Laboratories or Government institutions as directed by Engineer-in-charge and all testing charges shall be borne by the Contractor.

ix) 15% of the rate shall be with held and shall be released only after the receipt of the satisfactory test result wherever specified. Routine test shall mean testing of aggregate for gradation, flakiness index, impact, value and binder content. All other tests shall be carried out by the contractor at his own cost. However the cost of testing of material as directed by Engineer-in-charge for approving a particular material as laid down in para 15.2. (i) to (viii) will have to be borne by the contractor.

x) The contractor shall at his own cost arrange to carry out the routine tests of materials which are to be used on the work. The tests will have to be carried out either in the field laboratory or in an approved laboratory.

xi)Testing of the material used for this work should be carried out as per the provisions made in Government Circular No. Miscellaneous /2004/PC-1 08/NH-2, dated 22/3/2005. Testing of material should be carried out as per frequency stipulated by the Vigilance & Quality Control Circle. The contractor should carry out 25% testing of material out of the total material required as per the frequency from the Departmental Laboratory of Public Works Department.

The payment for testing of material from the Departmental Laboratory should be borne by the Contractor.

xii) In case of materials procured by the contractor/testing as required by the codes and specifications, the same shall be arranged by him at his own cost. Testing shall be done in the presence of an authorized representative of the Engineer-in-charge at the nearest laboratory. If additional testing other than as required by specification is ordered the testing charges shall be borne by the department if the test results are satisfactory and by the contractor if the same are not satisfactory.

xiii)In case of materials supplied by the Government, if the contractor demands certain testing, the charges thereof shall be paid by the contractor if the test results are satisfactory and by the department if the same are not satisfactory.

15.3 The responsibility of assuring the quality of work shall be on the contractor who shall take actions as stipulated in standard specification as per " Schedule C"

15.4 It shall be responsibility of the contractor to achieve quality of work as stipulated in section 900 of MORTH Specification for Road and Bridge Work (2001)

16. CO-ORDINATION:-

When several agencies for different sub-work of the project are to work simultaneously for the timely completion of the whole project smoothly, the scheduled dates for completion specified in each contract shall there-fore be strictly adhered to. Each contractor may make his independent arrangement for water, power, housing etc. If they so desire. On the other hand the contractors are at liberty to mutual agreement in this behalf and make joint arrangements with the approval of the Engineer. No single contractor shall take or cause to be taken any steps or action that may cause disruption, discontent, or disturbance of the work labour or arrangement etc. of other contractor in the Project localities. Any action by any contractor which the Engineer in his unquestioned discretion may consider as infringement of the above code, would be considered as a breach of the contract conditions and shall be dealt with as such. In case of any dispute, disagreement between the contractors, the Engineer's decision regarding the co-ordination, co-operation and facilities to be provided by any of the
contractors shall be final and binding on the contractors concerned and such a decision or decisions shall not violate any contract nor absolve the contractor's of his/their obligations under the contract nor consider for the grant for any claim or compensation.

17. PATENTED DEVICE

Whenever the contractor desires to use any designed devices, materials or process covered by the letter of patent or copy right, the right for such use shall be secured by suitable legal arrangement and agreement with patent owner and the copy of their agreement shall be filed with the Engineer-in-charge if so desired by the letter.

18. PAYMENTS

The contractor must understand clearly that the rates quoted are for completed work and include all cost due to labour, scaffolding, plant, machinery, supervision, power, royalties, taxes etc. and should also include all expenses to cover the cost of height work as and when required and no claim for additional payment beyond the prices or rates quoted will be entertained. The mode of measurement has been indicated in the specifications. If there is any ambiguity or doubt in this respect, the decision of Superintending Engineer will be final.

19. SUPERVISION AND INSPECTION OF WORKS AND QUALITY CONTROL:-

19.1 SUPERVISION :-

The Contractor shall either himself supervise the execution of the works or shall appoint the competent agent approved by the Engineer-in-charge, to act on his behalf. If in the opinion of the Engineer-in-charge, the Contractor has himself no sufficient knowledge and experience of receiving instructions or cannot give his full attention to the works, the Contractor shall at his own expenses emplDy as his accredited agent & qualified Engineer approved by the Engineer-in-charge. Orders given to the Contractor's agent shall be considered to have the force as if these had been given to the Contractor himself. If the Contractor fails to appoint a suitable agent as directed by the Engineer-in-charge, the Engineer-in-charge shall have full power to suspend the execution of the work until such date a suitable agent is appointed and the Contractor shall be responsible for the delay so caused to the works and the Contractor shall not be entitled for any compensation on this behalf.

19.2 INSPECTION:-

The Contractor shall inform the Engineer-in-charge in writing -when any portion of the work is ready for inspection giving him sufficient notice to enable him to inspect the same without affecting the further progress of the work. The work shall not be considered to have been completed in accordance with the terms of the contract until the Engineer-in-charge shall have certified in writing to that effect. Approval of materials or workmanship or approval of part of the work during the progress of execution shall not bind the Engineer-in-charge or in any way affect him even to reject the work which is alleged to be completed and to suspend the issue of his certificate of completion until such alteration and modifications or reconstruction have been effected at the cost of the Contractor as shall enable him to certify that the work has been completed to his satisfaction.

The Contractor shall provide at his cost necessary ladders and such arrangements as to provide necessary facilities and assistance for proper inspection of all parts of the work at his own cost.

19.3 TEMPORARY QUARTERS:

i) The contractor shall at his own expense maintain sufficient experienced supervisory staff etc. Required for the work and shall make his own arrangement, provide housing for them with all necessary arrangements, including fire preventive measures etc. as directed by the Engineer-in-charge.

ii) The contractor shall provide, furnish, maintain and remove on completion of the work, a suitable office on the work-site for the use of Chief Officer's representative. The covered area for office exclusive of varandha should not be less than 24 Square Metre and height 3.0 meter It have Brick masonry walls and asbestos or corrugated iron roof, paved floor should be 18" above ground level. He should provide a basket type latrine, urinals and keep them clean, daily. The contractor shall have provide Laboratory (with ref. books & I.S. codes) at site of size 6.0 m x 6.0m minimum and height 3.0 meter at work site. The office and Laboratory structures shall be semipermanent type. This will be supposed to be included in his rates.

19.4 SAFETY MEASURES AND AMENITIES:

While executing the work, necessary precautions regarding safety of labour, supervisory staff, public and traffic users shall be taken by the agency according to rules and regulations specified by the Government of India / Government of Maharashtra.

1) The contractor shall take all necessary precautions for the safety of the workers and preserving their health while working in such job as require special protection and precautions. The following are some of the requirements listed, though no exhaustive. The contractor shall also comply with the directions issued by the Engineer in this behalf from time to time and at all times.
2) **Labour Licence:** It shall be obligatory on the part of the contractor to obtained the necssary labour Licence from the labour Department within fortnight of issue of work order.
3) Providing protective foot-wear to workers, in situations like mixing and placing of mortar of concrete in quarries and places where the work is done under too much of wet condition as also for movements over surfaces infected with Dyster growth etc.
4) Providing protective head wear to workers, working in quarries etc. to protect them against accidental fall of materials from above.
5) Taking such normal precautions like providing hand rails at the edges of the floating platform or barges, not allowing nails or metal parts or useless timber to spread around etc.
6) Supporting workmen with proper belts, ropes etc. when working on any masters, cranes grabs, hoist, dredgers etc.
7) Taking necessary steps towards training the workers concerned in the use of machinery before, they are allowed to handle it independently and taking all necessary precautions in and around the areas where machines, hoists and similar units are working.
8) Providing adequate number of boats (of at all required for playing water) to prevent overload and over-crowding.
9) Providing life belts to all men working in such situation from where they may accidentally tell into the water, equipping the boats with adequate number of life belts etc.
10) Avoiding bare live wires etc. As would electrocute workers.
11) Making all platforms, staging and temporary structures sufficiently strong so as not to cause inconvenience and risk to the workmen and supervisory staff.
12) Providing sufficient first aid trained staff an equipment to be available quickly at the work site to render immediate first aid treatment in case of accidents due to suffocations, dropping and other injuries.
13) Take all necessary precautions with regard to use of divers.
14) Providing full length gum boots, leather hand gloves with fire proof apron to cover the chest and back reaching upto knees and protective goggles for the eyes to the labourers working with hot asphalt handling vibrator in cement concrete and also where use of any or all these items is beneficial in the interest of health and well being of the labours in the opinion of the Engineer.

20. EXPLOSIVES :-

The Contractor shall at his own expense construct and maintain proper magazines, if such required for the storage of explosives for use in connection with the works, and such magazine, being situated constructed and maintained in accordance with the Government Rules applicable in that behalf. The contractor shall at his own expenses obtain such Licenses as may be necessary for storage of explosives are approved by the Engineer, the Government shall not be incurring any responsibility whatever in connection with storage and use of explosives on the size or any accident or occurrence whatsoever in connection therewith, all operations in or for which explosives are emplDyed being at the risk of the contractor and upon his sole responsibility and the contractor here by gives to Government an absolute indemnity in respect thereof.

21. DAMAGE BY FLOODS OR ACCIDENTS :-

The contractor shall take all precautions against damage by floods or like or from accident etc. No compensation will be allowed to the Contractor on this account or for correcting and repairing any such damage to the work during construction. The contractor shall be liable to make good at his cost any plant or materials belonging to the Government, lost or damaged by floods or from any other cause which is in his charge.

22. RELATION WITH PUBLIC AUTHORITIES :-

The contractor shall comply with all rules, regulation, bye-laws and direction given from time also by any local public authority in connection with this work and shall himself pay fees or charges which are leviable on him without any extra to the Department.

23 POLICE PROTECTION:

For the Special Protection of camp and the contractor's works, the department will help the contractor as far as possible to arrange for such protection with the concerned authorities if so required by the Contractor in writing. The full cost of such protection shall be borne by the contractor.

24 MEDICAL AND SANITARY ARRANGEMENTS TO BE PROVIDED FOR LABOUR EMPLDYED ON THE CONSTRUCTION BY THE CONTRACTOR

a) The contractor shall provide an adequate supply of potable water for use of labourers on work and in Camps.

b) The contractor shall construct trench or semi permanent latrines for the use of the Labourers. Separate latrines shall be provided for men and women.

c) The contractor shall build sufficient number of huts on a suitable plot of land for use of the Labourers according to the following specifications :-

1. Huts of Bamboos and Grass may be constructed.

A good site not liable to submergence shall be selected on high ground remote from jungle but well provided with trees, shall be chosen where it is available. The neighborhood of tank, jungle, grass or woods should be particularly avoided. Camps should not be established close to large cuttings of earth work. The lines of huts shall have open spaces of at least ten meters between rows. When a good natural site cannot be procured, particular attention should be given to the drainage. There should be no overcrowding. Floor space at the rate of 30 Sq.ft. Per head shall be provided. Care should be taken to see that the huts are kept clean and in good order.

The Contractor must find his own land and if he wants Government land, he should apply for it and pay assessment for it, if made available by Government.

The contractor shall construct a sufficient number of bathing places. Washing places should also be provided for the purpose of washing clothes. The Contractor shall make sufficient arrangements for draining away the surface and sullage water as well as water from the bathing and washing places and shall dispose off this waste water in such way as not to cause any nuisance.

The contractor shall engage a Medical officer with a traveling dispensary for a Camp containing-500 or more persons if there is no Government or other private dispensary situated within 8 kilometers from the Camp. In case of emergency the contractor shall arrange at his cost for transport for quick medical help to his sick worker.

The Contractor shall provide the necessary staff for effecting a satisfactory drainage system and cleanliness of the camp to the satisfaction of the Engineer. At least one sweeper per 200 persons should be engaged.

The Assistant Director of Public Health shall be consulted before opening a labour camp and his instruction on matters such as water supply sanitary conveniences, the camp site accommodation and food supply shall be followed by the Contractor.

2 . The contractor shall make arrangement for all anti-malaria measures to be provided for the labour employed on the work. The anti-maleria measure shall be provided as directed by the Assistant Director of Public Health.

25. QUARRIES:-

25.1 The quarrying operations shall be carried out by the Contractor with proper equipment such as compressors. Jack-hammers, drill bits, explosives etc. and sufficient number of workmen shall be employed so as to get the required out turn.

25.2 The Contractor shall carry out the works in the quarries in conformity with all the rules and regulations already laid down or may be laid down from time to time by Government. Any cost incurred by Government due to non-compliance of any rules or regulations or due to damages by the contractor shall be the responsibility of the Contractor. The Engineer- in-charge or his representative shall be given full facilities by the Contractor for inspection at all times of the working of the quarry, records maintained, the stocks of the explosives and detonators etc. so as to enable him to check that the working records and storage are all in accordance with the relevant rule. The Engineer-in-charge or his representative shall at any time be allowed to inspect the works, buildings, and equipment at the quarters.

25.3 The Contractor shall maintain at its own cost, the book registers etc. required to be maintained under the relevant rules and regulations and as directed by the Engineer-in-charge. These books shall be open for inspection at all times by the Engineer-in-charge or his representative and the Contractor shall furnish the copies or extracts of books or register as and when required.

25.4 All quarrying operations shall be carried out by the Contractor in organized and expeditious manner systematically and with proper planning. The Contractor shall engage licensed blaster and adopt electric blasting and/or any other approved method which would ensure complete safety to all the men engaged in the quarry and its surroundings. The Contractor shall himself provide suitable magazines and arrange to pre and store explosive etc. as required under the rules at his own cost. The designs and the location of the magazine shall be got approved in advance from the Chief Inspector of Explosives and the rules and regulations in this connection as laid down by the Chief Inspector of Explosives from' time to time shall be strictly adhered to by the Contractor. It is generally experienced that it takes time to obtain the necessary license for blasting & license for storage of material from the concerned authorities. The contractor must therefore take timely advance action for procuring all such licenses so that the work progress may not be hampered.

25.5 The approaches to the quarrying place from the existing public roads shall have to be arranged by the Contractor at his own cost, and the approach shall be maintained by the contractor at his own cost till the work is over.

25.6 The quarrying operations shall be carried out by the Contractor to the entire satisfaction of the Engineer-in-charge and the development of the quarry shall be made efficiently so as to avoid wastage of stones. Only such stones as are of the required quality shall be used on the work. Any stone such is in the opinion of the Engineer-in-charge, not in accordance with the specifications or of required quality will be rejected at any time, at the quarry or at the site of work. The rejected stones shall not be used on the work and such rejected materials shall be removed to the place shown at the Contractor's cost.

25.7 Since all stones quarried from Government quarry (if made available) by the contractor including the excavated over burden are the property of the Govt. no stones or earth shall be supplied by the Contractor to any other agencies or works are allowed to be taken away for any other works.
All such surplus quarried materials not required for work under this contract shall be the property of the Govt. And shall be handed over by the Contractor to Government free of cost at quarry site duly heaped at the spots indicated by the Engineer-in charge. The contractor will be entitled to the refund of royalty if any, paid by him for such quantity handed over to Govt. for which necessary certificate will be issued by Chief Officer as per usual procedure, if however, the Government does not required such surplus material the contractor may be allowed to dispose off or such surplus material else where with prior written permission of Engineer-in-charge. Leaving off a quarry face or opening of a new quarry face shall be done only on the approval of the Engineer-in-charge.

25.8 Quarrying permission will have to be directly obtained by the Contractor, from the Collector of the District concerned for which purpose the department will render necessary assistance. All quarry fees, royalty charges, octroi duties, ground rent for staking material etc. and charges shall be paid directly to Revenue Department by the contractor as per rules in force. If it is not paid by contractor the same will be recovered from his bills.

25.9 The contractor will be permitted to erect at his own risk and cost at the quarry site if suitable vacant space of Government area is available for the purpose, his own structures for stores, offices etc. at places approved by the Engineer- in-charge. On completion of the work the contractor shall remove all the structures erected by him and restore the site to its original condition.

25.10 The Contractor shall not use any Sand in the quarry either for cultivation or for any other purpose except that required for breaking or stacking or transporting stones.

26 TRAFFIC REGULATION / ARRANGEMENT FOR TRAFFIC DURING CONSTRUCTION:-
Action for arrangement for traffic during construction will be taken by the Contractor as envisaged in the contract documents and spelt out in clause 112 of MORTH Specification for Road and Bridge Work (2001)

26.1 Unless separately provided for in the contract, the Contractor shall have to make all necessary arrangements for regulating traffic, day to night during the period of construction to the entire satisfaction of the Engineer. This includes the construction and maintenance of diversions if necessary. The contractor shall have to provide necessary caution board, barricades, flags, light and watchmen etc. So as to comply with the latest Motor Vehicles rules and Regulation and for Traffic Safety and he shall be responsible for all claims from accidents which may arise due to his negligence whether in regulating the traffic or in stacking material on the roads, or due to any other reasons.

26.2 It is to be clearly understood that whatever work carried out by the Contractor for construction of diversion road including earthwork, W.B.M. bituminous surface dressing. R.C.C pipe drains etc. will be paid for only once. If due to flow of traffic, due to floods or due to any other cause, this diversion road and/or the R.C.C drain gets damaged it shall be repaired and maintained by the Contractor in good condition till completion of the whole work at his own expenses.

27. PROCUREMENT OF MATERIALS:-

27.1 Where suitable and approved P.W. Department's quarries exist, the Contractor or piece worker will be allowed if otherwise there is no objection to obtain the materials to the extent required for the work from the quarry. He will be however, liable to pay compensation. If any damage is caused to the quarry either deliberately or through negligence or for wastage of materials by himself or his staff or labour.

27.2 Where no suitable Government quarries exist or when the quantity of the material required cannot be obtained from a P.W. Department quarry the Contractor or pieceworker shall make his own arrangements to obtain the material from existing or a new quarry in Government waste land, private land or land belonging to other States or Talukas, etc. After opening the quarry but before starting collection the quarry shall be got approved by the Engineer-in-charge or his representatives. The Contractor or piece worker shall pay all royalty charges compensation etc. No claims or responsibility on account of any of obstructions caused to execution of the work by difficulties arising out of private owners of land will be entertained.

27.3 The rates in the tender include all incidental charges such as opening of a new quarry, opening out a new portion in an existing quarry, removing top soil and the unsuitable material, dewatering a quarry, cost of blasting powder and fuse, lift, lead, repairs to existing cart tracks, making new cart tracks, control charges, Central/State Government or Municipal taxes, Local Boards, Cess, etc.

27.4 The rates in the tender are for the delivery of the approved material on road side properly stacked at the places specified by the Engineer-in- charge and are inclusive of conveyance charges in respect of the leads and lifts. No claims on account of changes in lead will be entertained.

27.5 No material shall be removed from the land within the road boundary or from the land touching it without the written permission of the Engineer- in-charge of his authorized agent. If any materials is un-authorized obtained from such places the Contractor or piece worker shall have to make good the damages and pay such compensation, in addition as may be decided by the Chief Officer and will have to stop further collection.

27.6 Any material that falls on any P.W.D. Road from the cart etc. during conveyance shall be immediately picked up and removed by the Contractor or piece worker, failing which it will be got removed Departmentally at his cost. No heap shall be left prior to cking even temporarily on the road surface or in any way so as to cause any obstruction or danger to the traffic. The Contractor or the piece worker shall be liable to pay for any claims of compensation etc. arising out of any accident, etc. Any such materials causing obstruction or danger etc. will be got removed departmentally at his cost and no claims for any loss or damage to the material, thus removed, will be entertained. The Contractor shall also be responsible for the damage or accident etc. arising out of any material that falls on the road or track, not in charge of the Department and shall attend to any complaint which may be received otherwise authorized by Engineer in writing. Collection and spreading shall not be carried out at the same time in one and the same mile or in to adjoin in Km. except with the return permission of the Chief Officer.

27.7 Unless otherwise directed, the materials shall be collected in the following orders availability of space:-
1) Rubble (if included in tender)
2) Metal
3) Soft murum
4) Hard murum
Shall be stacked on the side opposite for petty repairs and shall be stacked on the side opposite to metal for new layer. Where metal for two layers has to be stacked as in the case of new roads, the metal for each layer shall be stacked on the opposite sides of the road.

27.8 All road material shall be examined and measured before it is spread. The labour for measurements (and check measurements where ever carried out) shall be supplied by the contractor or place worker. Immediately after the measurements are recorded the stacks shall be marked by the contractor or piece worker by who wash or otherwise as may be directed by the Chief Officer to prevent from any authorised tampering with the stacks. If the contractor or piece worker fails to attend the measurements after receiving the notice from Sub-divisional officer or his subordinate stating date and time of the intention to measure work, shall be measured never-the-less and no complaint in this respect will be entertained later on. If the contractor or piece worker fails to supply sufficient labour for the materials required at the time of measurements or check measurements, after due notice has been given to him, the expenses incurred on account of employing department labour or material etc. shall be charged against his account.

27.9 No deduction will made for voids.

27.10 The materials shall not be Stacked in place where it is liable to be damaged or lost due to traffic passing Over it, to be washed away by rain or floods, to be buried under the landslides etc. or slip down an embankment or hill side etc. No claims for any loss due to these and similar causes will be entertained.

27.11 Before stacking, the materials shall be free from all earth, rubbish vegetable matter and other extraneous substance and in the case of metal, screened to gauge, if so directed when ready. It shall be stacked entirely clear of the road way, on ground which has been cleaned of vegetation and leveled. On high banks, ghat roads etc. where it may not be practicable to stack it entirely clear of the roadway it may be stacked with the permission of the Engineer-in-charge on terms in such a way as to cause minimum danger and obstruction to the traffic or as may be directed by him.

27.12 The size of the stacks for materials other than rubble shall be 3.00m x 1 .50m x 0.80m or such other size as may be directed by the Engineer- in-charge and all but one stack in 200 M. shall be of the same uniform size and shall be uniformly distributed over whole lengths. One stack (at the end) in each 200 M may be of length different from the rest in order to adjust total quantity to be required but its width and height will be the same as those of the rest.

27.13 The Sub Divisional Officer shall supply the Contractor with statement showing furlong wise quantities that will be required and the order in which the collection is to be done. No materials in excess of requirements in that furlong shall be stacked. Any excess quantity shall be removed at the expenses of the Contractor or piece worker to where it is required before the material in that furlong is finally measured.

27.14 In slacking materials the deposition shall commence at the end of the KM fastest from the quarry and be carried continuously to the other end (unless otherwise directed by the Chief Officer). Stacking in one 200 M shall be completed before it is started in another, unless directed otherwise, in writing by the Chief Officer. Measurements of the materials stacked in a furlong will not be recorded until the full quantity required has been stacked.

27.15 All the materials such as asphalt, cement, steel etc. shall be procured by the contractor from approved Government Institutions or as directed by Engineer-incharge only. The materials shall be brought at the site of work well in advance by the contractor. The contractor shall be responsible for all transportation and storage of the materials at the site and shall bear all the related costs. The Engineer shall be entitled at any time to inspect or reasonable assistance.(or such inspection as may be required)

27.16 After receiving bitumen, the authorized challan / gate pass should be obtained from the refinery mentioning the quantity of bitumen, rate of bitumen, date of delivery etc. And it should be handed over to the department for each consignment. Similarly the invoice of cement etc. shall be given to the authorized representative of the Engineer in -charge immediately on procurement of the materials.

27.17 The day to day record of the receipt / utility balance of material should be kept by the contractor in the form of register for each material like asphalt, cement, steel at plant site / site of work / store and the same will be checked by the Engineer-in-charge or authorized Engineer at anytime. This register shall be signed daily by the contractor or his representative and representative of Engineer-in-charge. The contractor shall submit periodically as well as on completion of work an account of all materials used by him on the work to the Engineer-in-charge.

27.18 While transportation of bouzer, transport pass should be obtained from those corporation / municipality through whose limits the bouzer is passed and should be handed over to the authorized representative of the department.

27.19 The procurement of cement / steel etc. should be from authorized manufacturing company / institutions and vouchers regarding purchase thereof shall be submitted to the Engineer-in-charge. The material from any other source other than the approved institutions shall not be allowed unless written permission from the Chief Officer is taken. In such cases certificate for test, quality shall be produced by the contractor and samples of materials shall be tested from any Government laboratory by the contractor at his cost and the test results be supplied to the department. The materials not conforming to the required standard shall be removed at once from the Site of work by the contractor at his own cost. All the materials such as asphalt, cement etc. required for use In the work shall be confirmed from the concerned 1000 of M.O.R.T.H. specifications. These materials shall be used on work by the contractor only after the tests thereof are found satisfactory. The responsibility of carrying out tests to the frequencies specified for each material shall rest with the Contractor. The R.C.C. pipes required for the work shall be procured from the Maharashtra Small Scale Industrial Development Corporation only. The payment towards the item of providing and fixing NP2 / NP3 / NP4 Pipes will be released only after the contractor submits the bills of MSSIDC to authenticate that the pipes nave been purchased from the MSSIDC. No payment toward the item of providing and laying of pipe will be released in absence of the submission of requisite documents.

27.20 Any consignment or part of consignment of cement which is dilapidated in any way shall not be used In the works and shall be removed from the site by the contractor without charge to the employer.

27.21 Cement shall be transported and handed and stored on the site such a manner as to avoid deterioration, contamination. Each consignment shall be stored separately so that it may be readily identified and inspected. Cement shall be used in the sequence in which it's delivered at site.

27.22 The contractor shall prepare and maintain proper records on the site in respect of deliver, handling, storage and use of cement and these records shall be made available for inspection by the Engineer at all times.

27.23 The contractor shall construct at his own cost shed / sheds as per directions of the Engineer-in-charge for storing the material and providing double locking arrangements. (one lock of department and other of the Contractor) Materials shall be taken out from stores only in presence of authorized representative of the Engineer-in-charge. The store shed constructed on site shall be removed on completion of work. The contractor shall take all necessary steps to guard the materials brought by him.

27.24 Cement to be used in the works shall be any of the following types with the prior approval of the Engineer. Ordinary Portland cement conforming to IS 8 112 (latest edition) Ordinary / Portland cement conforming to !S 12269 (latest edition)

27.25 TMT FE-500 grade conforming to I.S. 1786 shall be used for reinforcement.

27.26 Bulk bitumen of IS grade VG-30 grade shall be used.

27.27 Asphalt VG-30 grade confirming to IS 8887 of 1995 shall be used for tack coat.

27.28 The contractor shall make his own arrangement for the self custody of the materials brought by him on the site of work.

27.29 The charges for conveying of the material from the place of the purchase by the contractor to the site of work and the actual spot of work shall be entirely borne by the contractor, No claim on this account shall be entertained.

27.30 Register showing dispatch of bituminous load from the plant, vehicle No., time of dispatch, temperature at the time of dispatch etc. shall be kept in prescribed form at hot mix plant site. Similarly register showing the time, temperature of the mix at the site shall be kept the authorized representative of the contractor shall fill both these registers. These shall be signed by the Contractor everyday in token of acceptance The maintenance of these registers does not absolve the contractor of his contractual obligation towards quality of the work.

27.31 The contractor should ensure that all safety precautions are observed by the labours while handling the materials and precautions. For their labour at the cost of the contractor and the contractor will bear all the expenses compensation etc. If any incident occurs to the labour etc. no claim in this regard what-so-ever shall be entertained and the decision of the Department will be final and conclusive.

27.32 In case the materials become surplus owing to the change in the design of the work after the materials are brought by the contractor, no claim in this regard will be entertained and the contractor will be required to take away such materials from the site.

27.33 The contractor should arrange for weighment of the bouzer if desired by the Engineer in charge. The weighment shall be done in the presence of representative of the department at the cost of the contractor.

27.34 The weight of the steel bars used on the work will be calculated on the basis of standard weight per unit length vide IS. 1732. No wastage of steel will be considered at all. Cut pieces of the steel irrespective of the length will be the property of the contractor and no claim whatsoever in this regard shall be entertained. The consignment of the steel brought by the contractor having weight less than the standard weight per unit length of the bar as mentioned above will not be accepted. For this purpose random sample will be tested by the Chief Officer and the decision of the Chief Officer shall be binding on the contractor, if the steel received is over weight (more than standard weight per running meter length) no extra payment will be made and no claim in this regard whatsoever shall be entertained

27.35 No claims on account of cement or steel rods used for ancillary works on Site of- work shall be entertained.

27.36 All the materials to be brought on site shall be brought only on working days and in presence of an authorized representative of the Engineer-in -charge.

27.37 All the materials such as cement, mild steel, H.Y.S.D. Bars, TMT Bars etc. required for execution of work shall be brought by the contractor at his own cost.

27.38 The contractor shall maintain the record of these materials (cement, steel etc.) in the prescribed proforma and registers as directed by Engineer-in-charge. The sample of prescribed proforma is attached at the end. These registers shall be signed by both the contractors and representative of the Engineer-in- charge. These registers shall be made available for inspection, verification for the Department as and when required. These registers shall be in the custody of Department and shall be maintained by the Department.

27.39 The material required only for this work shall be kept in the go-down at site. No material shall be shifted outside of the go-down site except for the work for which this agreement is entered without prior approval of the Engineer-in-charge.

27.40 The materials i.e. cement, steel etc. brought on the work site shall be accompanied with necessary company/manufacturing firm's test certificates. In addition these materials shall be tested as per frequency prescribed by the Department and the cost of such testing shall be borne by the contractor. If the test results are satisfactory, then and then only the material shall be allowed to be used on the work. If the test results are not as per standards prescribed, these materials shall be immediately removed from the work site at the contractor's cost. In case of cement, if so requested by the contractor in writing, material shall be allowed to be used before receipt, of test results but this will be entirely at the risk and cost of the contractor.

27.41 The contractor shall produce sufficient documentary evidence i.e. bill for the purchase of materials brought on the work site at once if so required by the department.

27.42 All these materials i.e. cement, steel etc. shall be protected from any damages rains etc. by the contractors at his own cost.

27.43 The contractor will have to erect temporary shed of approved specifications for storing of above materials at work site at contractor's cost having double locking arrangements (By double lock it/s meant that go-down shall always be locked by two locks, one lock being owned and operated by contractor and other by Engineer-in charge or his authorized representative) and the door shall be open able only after both locks are opened.

27.44 If required, the weighment of cement bags / steel etc. brought by the contractor shall be carried out at his own cost.

27.45 The contractor shall not use cement and other material for the item to be executed outside the scope of this contract except for such ancillary small items as are connected and absolutely necessary for this work as may be decided by the Engineer-in-charge.

27.46 The Government shall not be responsible for the loss in cement and steel during transit to work site. The cement brought by the contractor at the work site store shall mean 50 Kilogram equivalent to 0.0347 cubic meter per bag by weight. The rate quoted should correspond to this method of reckoning. In case of ordinary I Controlled concrete, if cements found short, the shortage I shortages wilt be made good by the contractor at his cost.

27.47 Special Condition for B.T. work :
In respect of Black Top Work, 15% (Fifteen Percent) payment of Black Top in a particular Km. shall be retained till completion of side berms / C.D. Works etc. in that km. After completion of other items satisfactorily, the withheld payment will be released finally.

27.48 (a) The aggregate required for the item of Hot Mix shall be screened in “Mechanical Vibratory Screening Unit” so as to comply with the grading requirement as specified in MORT&H specification and then only shall be fed to the Hot Mix Plant for heating and mixing. The Mechanical Vibratory screening unit shall consist of main input hopper to receive raw metal, Conveyor belt to transport it to the “Mechanical Vibratory Screening Unit.” The Mechanical Vibratory screening unit shall have required number of trays, sieves/decks as directed by Engineer In charge. The output of Mechanical Vibratory Screening unit shall be conveyed to respective bin of the four bin feeder Unit. The metal so supplied from the “Mechanical Vibratory Screening unit” at site shall not exempt the contractor from carrying out tests as specified in the specifications.
(b) However if the mechanical Vibratory Screening unit is installed at quarry site, the contractor shall provide Vehicle Tracking System for all vehicles used for the particular work of PWD. The contractor shall provide web application that will show all vehicles of the contractor on a GIS map along with the hot mix plant .The contractor shall also provide software that will update the entire Mapping on the PWD’s e-governance works management system. The system of complete management of VTS for monitoring by the PWD staff shall have to be provided by Contractor at his own cost. (c)The above conditions (a) & (b) of installation of Mechanical vibratory screening unit shall be exempted only, if the contractor uses the batch mix plant (Minimum 120 TPH) with SCADA base e- monitoring system.

27.49 For Grade –I /Grade-II / Grade –III / WBM and for BUSG work metal shall be supplied at site only after screening it on “mechanical vibratory screening unit”. The special “mechanical vibratory screening unit” arrangement shall consist of main input hopper to receive raw metal, conveyor belt to transport it to the “mechanical vibratory screening unit”. The “mechanical vibratory screening unit” shall have required number of trays, sieves/decks as directed by the Engineering in charge. The output of “mechanical vibratory screening unit” shall be conveyed to “storage Unit” where metal of different sizes, shall be stored separately. Metal so supplied shall undergo all the tests as per the specifications. As a input to the main input hopper, contractor may use hand broken metal or output of primary crusher / cone crusher of size or equivalent to not less than 24“x18” The metal so supplied from the “mechanical Vibratory screening unit” at site shall not exempt the contractor from carrying out tests as specified in the specifications.

28. MISCELLANEOUS:-

28.1 Rate shall be inclusive of Sales Tax, General Tax and other taxes etc.

28.2 For providing electric wiring or water lines etc. recesses shall be provided if necessary, through walls, slabs, beams etc. and later on refilled up with bricks or stone chipping, cement mortar without any extra cost.

28.3 In case it becomes necessary for the due fulfillment of contract for the Contractor to occupy land outside the Dept. Limits, the Contractor will have to make his own arrangements with the land owners and to pay such rents if any are payable as mutually agreed between them.
The Department will afford the Contractor all the reasonable assistance to enable him to obtain Govt. Land for Such purpose on usual terms and conditions as per rules of Government.

28.4 The special provision in detailed specifications or wording of any item shall gain precedence over corresponding contradictory provision (if any) in the standard specifications or P.W.D. Hand book where reference to such specifications is given without reproducing the details in contract.

28.5 Suitable separating Barricades and enclosures shall be provided to separate material brought by contractor and material issued by Government to contractor under **Schedule "A"** Same applies for the material obtained from different sources of supply.

28.6 It is presumed that the Contractor has gone carefully through the Standard Specifications of P.W.D. Hand Books and the Schedule of Rate of the Division and studied the site condition before arriving at rates quoted by him. Decision of the Engineer-in-charge shall .be final as regards interpretation of specifications.

28.7 The stocking storage of construction material at site shall be in such a manner as to prevent deterioration or intrusion of foreign matter and to ensure the preservation of their quality, properties and fitness of the work. Suitable precautions shall be taken by the Contractor to protect, the material against atmospheric actions, fire and other hazards. The materials likely to be carried away by wind shall be stored in suitable stores or with suitable barricades and where there is likely hood of subsidence of soil, such heavy materials shall be stored on approved platform.

28.8 For Road and Bridge works, the contractor shall in addition to the specifications cited here, comply with requirements of relevant I.R.C. Code of Practice.

28.9 The Contractor shall be responsible for making good the damages done to the existing property during construction by his men.

28.10 If it is found necessary from safety point of view to test any part of the structure, the test shall be carried out by the Contractor with the help of the Department at his own cost.

28.11 The contractor shall provide, maintain, furnish and remove on completion, temporary shed for office on work site for the use of Chief Officer's representative.

28.12 Defective work is liable to be rejected at any stage. The contractor, on no account can refuse to rectify the defects merely on reasons that further work has been carried out No extra payment shall be made for rectification.

28.13 General directions or detailed description of work, materials and items coverage of rates given in the specification are not necessarily repeated in the Bill of Quantities. Reference is however, drawn to the appropriate section clause(s) of the General Specifications in accordance with which the work is to be carried out.

28.14 In the absence of specific directions to the contractor, the rates and prices inserted in the items are to be considered as the full inclusive rates and prices for the finished work described there under and are to cover all labour materials, wastage, temporary work, plant, overhead charges and profits, as well as the general liabilities, obligations and risks arising out of the General conditions of contract.

28.15 All measurements will made in accordance with the methods indicated in the specification, and specification read in conjunction with the General Conditions of Contract.

28.16 The details shown on drawings and all other information pertaining to the work shall be treated and provisional only and are liable to variation as found necessary while preparing working drawing which will be supplied by the Government during execution. The contractor shall not, on account of such variation be entitled to any increase over the ones quoted in the tender which are on quantity basis.

28.17 The recoveries if any from contractor will be effected as arrears of land revenue through the Collector of the District.

28.18 Protection of underground telephone cable and aerial telephone wires and poles, transmission towers, electrical cables, and water supplying lines. It will therefore be the responsibility of the contractor to protect then carefully all such cases should be brought to the notice of the Engineer-in-charge by the contractor and also the concerned department, any damage what so ever done to these cables and pipe lines by the contractor shall be made good by him at his cost.

28.19 Public Utilities:
Action in respect of public utilities will be taken by the Contractor as envisaged in Clause 110 of Ministry's Specifications for Road and Bridge work (2nd Revision).

29. PAYMENTS AND MEASUREMENTS:-

29.1 PAYMENTS:

The contractor must understand clearly that the rates quoted are for completed work and include all cost due to labour, scaffolding, plant, machinery, supervision, power, royalties, taxes etc. and should also include all expenses to cover the cost of height work as and when required and no claim for additional payment beyond the prices or rates quoted will be entertained. The mode of measurement has been indicated in the specifications. If there is any ambiguity or doubt in this respect, the decision of Superintending Engineer will be final.

29.2 Two payments in a month will be granted by the Engineer-in-charge for construction of Bridge, if the progress is satisfactory, and shall be made as per, accepted payment schedule.

29.3 Ground levels will be taken by the usual method and by Departmental staff in presence of contractor's representative. Required labour etc. for this shall be supplied by the contractor, in case of slushy portion, the ground levels shall be taken by erecting the leveling staff on wooden plank (0.5 x 0.5metre, 2.5 cm. thick) without claiming extra for cost of plank or by any other mutually agreed method.

29.4 Contractor can have copies of the measurements and of the bills paid to him at his own cost and his own responsibility.

30. MAINTENANCE: (ROADS)

30(i) The Contractor shall maintain the finished surface of the road for a period mentioned in **Clause No.20** after the completion of work without any extra cost to Government irrespective of the designs, standards and specifications and the actual traffic etc. The Contractor shall get the pot holes filled up with asphalt mix materials and keep the road surface in good condition through out the year. 5% amount of the total work done shall be recovered from running account bills and shall be withheld for period mentioned in **Clause No.20** from the date of actual completion of work as maintenance charges of maintaining and keeping the road in good condition. This 5% amount withheld towards maintenance charges shall be allowed to be replaced with bank guarantee or other recognised forms at intermediate stage, if so desired in writing. This maintenance charges shall be in addition to security deposit.

30(ii) On completion of the work in all respects, necessary certificate will be issued by the concerned Chief Officer and the defects liability period will be counted from the date of issue of such certificates.

30(iii) It will be responsibility of the contracting Agency to maintain total road length under work portion of this contract Agreement in good condition from the date of issue of work orders, till completion of defect liability period as per Clause 20 and this shall be treated as part of total scope of this contract Agreement. In case the contractor fails to maintain road length properly including rectification of the defects pointed out by the department within a period of 7 days from the date of written notice by the Engineer-in-charge rectification / repairs to such defects will be carried out by the department at contractor's risk and cost. The expenditure incurred on such rectification work shall be recovered from the amount withheld as per Clause 30(i) respectively.

30(iv) All damages during execution shall be made good by the Contractor at his cost. He will be responsible for any damages to the road surface including B.T. surface in rainy seasons and during construction and guaranteed maintenance period and no separate payment will be made for restoring such damages.

"Any defects noticed in finished black topped surface such as pot holes, damages etc. within a period mentioned in Clause-20, after completion of work (excluding monsoon) will have to be repaired by the Contractor at his own cost."

30 (v) Defective work is liable to be rejected at any stage. The Contractor on no account can refuse to rectify the defects merely on reasons that further work has been carried out. No extra payment shall be made for such rectification.

MAINTENANCE:- (BUILDINGS)

(i) The Contractor shall maintain the finished and completed item of work as per Schedule 'B' and specification for a period 10 years for water proofing and 7 years for polyurethane and 2 years for remaining items after the completion of work without any extra cost to Government irrespective of the design, standards and specifications etc. The Contractor shall get done the civil work as per specifications and drawing and keep the building in good condition through out the 10 years water proofing and polyurethane and 2 years for remaining items. 10% (Ten percent) amount of Anti terminate work and water proofing work only shall be withheld from running account bill for 10 years towards waterproofing from the date of actual completion of work as maintenance charges of the maintaining and keeping the building in good condition. This 10% amount withheld towards shall be allowed to replaced with bank guarantee or other recognized form and intermediate state if so desired in writing. The maintenance charges shall be addition to security deposit.

(ii) On completion of the work in all respects, necessary certificate will be issued by the concerned Chief Officer and the defects liability period will be counted from the date of issue of such certificates.

(iii) Defective work is liable to be rejected at any stage. The Contractor on no account can refuse to rectify the defects merely on reasons that further work has been carried out. No extra payment shall be made for such rectification.

31. FINAL BILL:

31.1 The contractor should submit final bill within one month after completion of the work and the same will be paid within 5 months if it is in order. Disputed items and claims, if any shall be excluded from the bill and settled separately later on.

31.2 Bills for extra work or for any claim shall be paid separately apart from the interim bills for the main work. The payment of bills for the main work shall not be withheld for want of decision on the extras or claims not covered in the stipulations of the contact.

31.3 Claims for extra work shall be registered within 30 days of occurrence of the event. However, bills for these claims including supporting datal details may be submitted subsequently at his own cost.

32. PRELIMINARY ARRANGEMENTS: -

32.1 The Contractor if necessary construct temporary roads and maintain these in proper condition till the completion of the work at his own cost. If necessary, he shall also, at his own expenses make necessary arrangements for acquisition of land required by him in connection with the execution of the work.

32.2 The contractor shall have to makes at his own cost all preliminary arrangements for labour, water electricity and materials etc. immediately after getting the work order. No claim for any extra payment or application for extension of time on the grounds of difficulty in connection with the above matter, will be entertained,

32.3 The contractor shall at his own expenses, engage watchmen for guarding the materials and plant and machinery and the work during-day and night against any pilferage of damages and also for prohibiting trespassers or damage to them.

32.4 The contractor shall have to make his own arrangement for water required for any purpose on the work.

33. INSPECTION :-

33.1 The contractor shall inform the Engineer-in-charge in writing when any portion of the work is ready for inspection giving him sufficient notice to enable him to inspection to inspect the same without affecting the further progress of the work. The work shall not be considered to have been completed in accordance with the terms of the contract until the Engineer-in-charge shall have certified in writing to that effect. No approval of materials or workmanship or approval of part of the work during the progress of execution shall bind the Engineer-in-charge or in any way affect him even to reject the work which is alleged to be completed and to suspend the issue of his certificate of completion until such alterations and modifications or reconstruction have been effected at the cost of the contractor as shall enable him to certify that the work has been completed to his satisfaction.

33.2 The contractor shall provide at his cost necessary ladders and such arrangements as to provide necessary facilities and assistance for proper inspection of all parts of the work at his own cost.

33.3 The contractor after completion of work shall have to clean the site, of all debris and remove all unused materials other than those supplied by the Department and all plant and machinery, equipment, tools etc. belonging to him within one month from the date of completion of the work, or otherwise the same shall be removed by the Department at his cost and the contractor shall not be entitled for payment of any compensation for the same.

34. ACCIDENT :-

In the event of an accident involving serious injuries or damages to human life or death of any of his employees and or labourers or tress passers, the same will be reported within 24 hours of the occurrence to the Chief Officer and the Commissioner of workmen's compensation.

35. PLANT:-

All constructional plant, provided by the contractor shall when brought on to the site be deemed to be exclusively intended for the construction of this work and the contractor shall not remove the same or any part thereof (Say for the purpose of moving it from one part of the site to another or the repairs etc.) without the consent in writing of the Engineer-in-charge which shall not be unreasonably with-held. The concreting shall be done by the ready mix batch type concrete mixer diesel or electrically operated with a minimum size of 200 litres with automatic water measuring system and integral weigher (Hydraulic or pneumatic type one). This RMC Plant may be of portable type.

36. EXCEPTED RISKS:-

36.1 The contractor shall be under no liability whatsoever by way indemnity or otherwise for or in respect of destruction of-or damage to the works (save work condemned under the provisions of specifications and conditions of this tender prior to the occurrence of any excepted risk hereinafter mentioned) or temporary works or to property whether of the Department or third parties or for or in respect of injury or loss of life which is the consequence whatever direct or indirect, were hostilities (whether were to declared or not) invasion, act of foreign enemies, rebellion, revolution, insurrection or military of usurped power. Civil war or riot, commotion or disorder otherwise than among the contractor's own employees or his piece worker and sub agencies (hereinafter comprehensively referred to as "The said excepted risks") and the department shall indemnify and save harmless the contractor against and' from the same and against and from all claims, demands proceedings, damages, costs charges and expenses, whatsoever arising there out or in connection therewith and shall compensate the contractor for any loss of or damage to property of the contractor used for intended to be used / or the purpose of the works and laying at site of work and occasioned either directly or indirectly by the said excepted risks.

36.2 If the works or temporary works or any materials (whether for the former or the later brought to site shall sustain destruction or damages by reasons of any of the said excepted risks, the contractor shall be entitled payment for any permanent works and for any materials so destroyed or damaged and shall be paid by the department the cost of making good any such destruction or damages whatever to the works or temporary works and for replacing or making good such materials so far as may be necessary for the completion of the works on a prime costs basis as the Engineer-In Charge may certify to be reasonable. The contractor shall lodge his claim, in writing, supported by Engineer-in-charge immediately, but not later than 30 days of such occurrence of damage to works by excepted risk

36.3 Destruction, damage injury or loss caused by the explosion or impact whenever and wherever occurring of any mine bomb, shell, grenade or other projectile missile or ammunition or explosive or war resulting from action described in above shall be deemed to be a consequence of the. said excepted Risk.

37. ADDITIONAL WORKS SPECIFICATIONS:-

37.1 The whole work shall be carried out strictly in accordance with the approved detailed drawing (unless otherwise directed) description of the items, detailed specification of the M.O.S.T. for Bridge and Road Works Ilird revision 1995 and 4th edition 2001, standard Specification book lind edition (with Indian Standard specification indicated therein) of P.W. Department, Government of Maharashtra subject to the additional specification given for the relevant items and in the best workmen like manner.

37.2 While adopting the relevant number and pages for different items of the MORT&H Specifications for Bridges and Road Works. IIlrd revision 1995 Standard Specification Book, due care has been taken to indicate correct number and page for the various items. However if for some reasons or other it is noticed that the specification numbers and pages quoted are not pertinent, the contractor is bound to carry out the work in accordance with the correct relevant specifications for the item or items from the standard specification Book. After taking into account the description of the items, scope and spirit of the work.

37.3 It is to be definitely and clearly understood that the specifications stipulated shall be rigidly enforced and no relaxations shall be allowed. Extra charges or claims in respect of extra works shall not be entertained unless they are clearly outside the scope of the item and its specifications to which they relate or unless such works are ordered in writing by the Chief Officer and claimed for in specified manner before the same is taken in hand.

38. QUALITY ASSURANCE AND MAINTENANCE:-

38.1. The contractor to ensure the specified quality of work which will also include necessary surveys, temporary works etc. The contractor shall prepare a quality assurance plan and get the same approved form the Engineer-in-charge within one month from the date of work order. The contractor shall submit an organization chart of his technical personnel to be deployed on the work along with their' qualification, job descriptions defining the functions of reporting, supervising inspecting and approving. The contractor shall also submit a list of tools, equipment and the machinery and instruments which he proposes to use for the construction and for testing in the field and or in the laboratory and monitoring. The contractor shall modify/supplement the organization chart and the list of machinery, equipment etc. as per the directions by the Superintending Engineer Engineer-In-Charge and shall deploy the personnel and equipment on the field as per the approved chart and list respectively. The contractor shall submit written method statements detailing his exact proposals of execution of the work in accordance with the specification. He will have to get those approved from the Engineer-in-charge. The quality of the work shall be properly documented through certificate, records, check-lists and logbooks of results etc. Such records shall be complied from the beginning of the work and be continuously update and supplemented and this will be the responsibility of the contractor. The forms should be got approved form the Chief Officer-in-charge.

38.2 Where the work is to be done on lump sum basis on contractor's design the contractor shall also prepare and submit a maintenance manual giving procedure for maintenance, with the periodicity of maintenance works including inspections, tools and equipment to be used, means of accessibility for all parts of the structure. The maintenance manual shall be approved by the Engineer-In-Charge. He shall also include the manual the specifications for maintenance work that would be appropriate. For his design and technique of construction. This manual shall be submitted within the contract period.

39. TECHNICAL COMPLETION REPORT

The contractor shall submit Technical Completion Report along with his final bill, which shall include:

1. Detailed measurements
2. Working drawing
3. Details of material brought on site and consumed in the work, which shall also indicate standard consumption and deviation if any, with reasons.

4. Test Results of all materials used in the work with an abstract of total tests carried out and required as per frequency of tests as laid down in the relevant M.O.R.T.& H. Specifications.

5. Rough meter survey data as laid down in acceptance criteria. Design Calculations / Job-Mix Formula etc. Maintenance Manual.

40 ADDITIONAL SPECIAL CONDITIONS FOR HOTMIX ASPHALTIC WORKS:

1. Clause No.106 of Ministry's Specifications (4th Revision, 2001) This clause stipulates certain conditions relation to choice and use of equipment which have relevance to production of quality work. These are:

a) The Contractor shall be required to give a trial run of the equipment for establishing capability to achieve the laid down specifications and tolerances to the satisfaction of the Engineer before commencement of work.

b) All equipment provided should be proven efficiently and shall be operated and maintained at all times in a manner acceptable to the Engineer.

c) No equipment and personnel will be removed from the site without the permission of the Engineer.

2. ENSURING GRADE OF ASPHAL T BROUGHT ON SITE BY THE CONTRACTOR

It shall be mandatory on the part of the contractor to procure the asphalt from Government owned Refinery only. The contractor shall communicate the schedule of arrival of bouzer of asphalt to the Engineer- in-charge in advance. Apparatus and equipment for testing grade of asphalt shall be made available by the contractor at site. If the grade of asphalt is found as per specification written permission will be given for unloading the bouzer by the Engineer -in-charge , otherwise written instructions will be given for not using the same on site. (Please refer Government Circular (Marathi) No. Misc 2005/CR-187/ N.H.2, dated 8/10/2007.

a) The contractor has to ensure that the temperature of hot mix material and its ingredients is within the specified range as per MOST specification at the time of before mixing, during mixing and laying.

3 Clause No. 901 of Ministry's Specifications (5th Revision, 2013)

a) The responsibility for the quality of the entire construction work is on the Contractor. For this purpose he is required to have his own independent and adequate setup.

b) The Engineer for satisfying himself about the quality of the material and work will also have tests conducted by quality control units or by any other agency, generally to the frequency set out in the specifications. For test to be done by the Engineer, the Contractor is to render all necessary co-operation and assistance including the provision of labour assistance in packing and dispatching samples etc.

c) For the work of embankment, sub-grade and pavement , construction of subsequent layer of the same or other material over the finished layer shall be done only after obtaining approval from the Engineer.

d) The Contractor shall be responsible for rectifying / replacing any work falling short of quality requirements as directed by the Engineer.

4. CLAUSES IN THE CONDITION OF CONTRACT

a) All materials and workmanship shall be of the respective type described in the contract and in accordance with the Engineer's instructions and shall be subjected from time to time to such tests as the Engineer may direct at the place of manufacture or fabrication, or on the site. All samples shall be supplied by the Contractor.

b) No work is to be covered up or put out of view without the approval of the Engineer for his examination and measurements.

c) During the progress of the works, the engineer shall have the power to order the removal from the site of any unsuitable material, substitution or proper suitable material and the removal and proper re-erection notwithstanding any previous test or interim payment therefore, and of any work which is in respect of materials or workmanship is not, in the opinion of the Engineer in accordance with the contract.

41 GUIDELINES ON QUALITY CONTROL OPERATIONS:

The onus of achieving quality of work will be on the Contractor who will take actions as stipulated in Section 900 of Ministry's Specifications for Road and Bridge Works, 4th Revision, August, 2001 edition.

42. CONTRACTOR'S FACILITIES

According to the contract (see para1.3 above), the Contractor is responsible for the quality of the entire construction work, and for this purpose he is required to have his own independent and adequate set up. To meet this requirement:-

a) The Contractor shall set up his own laboratory at locations(s) approved by the Engineer. The laboratory shall be equipped with modern and efficient equipment with sufficient standbys suitable to carry out the tests prescribed for different materials and work according to the specifications. The list of equipments to be procured and the facilities to be provided shall be got approved by the Engineer. The equipment shall be maintained in a workable condition to the satisfaction of the Engineer.

b) Sampling and testing procedures shall be in accordance with relevant standards of BIS (previously called ISI) or IRC. Frequency of testing shall be as laid down in the Ministry's Specifications for Road and Bridge Work, 4th Revision, 2001. In the absence of relevant Indian Standards, sampling and testing procedures shall be as approved by the Engineer.

c) The laboratory should be manned by a qualified Materials Engineer assisted by Materials Inspector / Technicians, and the set up should be got approved by the Engineer.

d) The Contractor should prepare printed proforma for according readings and results of each type of test, after getting the formats of the performance approved from the Engineer. He should keep a daily record of all the tests conducted by him. Two copies of the test results should be submitted to the Engineer for his examination and approval, of which one copy will be returned to the Contractor for being kept at site of work.

e) The Material Engineer of the Contractor should keep close liaison with the Quality Control Unit of the Engineer and keep the later informed of the sampling and testing programme so that the Engineer's representative could be present during this activity, if considered necessary.

43. DAY-TO-DAY QUALITY CONTROL OPERATIONS:

The day-to-day controls to be exercised by the Contractor and the Engineer are enumerated in the below paragraphs:-

44. ACCEPTANCE CRITERIA:

In addition to the stipulation in the specification of relevant items, the finished surface shall be checked with Rougho-Meter for roughness values. The finished surface shall have a roughness value of not more than 2000 mm/Km. for bituminous concrete surface and 2500 mm/Km. for bituminous premix carpet surface, when measured in accordance with **M.O.S.T. Circular No.** RW/NH/I11/8/10/64, **dated** 19/5/1984. Subsequent readings should be taken within 4-6 months after opening of the road to traffic or the defects liability period which is earlier. The roughness value during the second measurements should be judged against the following standards

1) Bituminous concrete 2500 mm/km. 2) Premix carpet 3500mm/km.

It shall be the responsibility of the contractor to make all the required arrangements and get this survey done in the presence of and under the guidance of the Engineer-incharge. The Survey data shall be submitted to the Engineer-in-charge for his perusal who shall decide further action to be taken depending on survey results.

45. IN CASE OF CEMENT CONCRETE WORKS

i) Besides manufacturer's test certificate for quality of cement, at least one set of physical and chemical tests should be conducted for each source of supply of verification. Where the quality is in doubt, or where the cement had been stored for long period or in improper condition, the Engineer shall call for testing the cement at more frequent intervals.

ii) Job mix formula worked out based on trials carried out in the Contractor's laboratory should be got approved by the Engineer.

iii) The mineral aggregates should be tested for their properties. Water to be used for mixing should be tested for chemical impurities.

iv) Checking for stability and sturdiness of formwork.

v) Ensuring that the crucial equipment like mixers and vibrators are in working order before start of work.

vi) Control on water cement ratio.

vii) Control on workability and time elapsed between mixing and placing of concrete.

viii) Control on compaction and finishing.

ix) Tests on cube samples at 7 to 28 days.

x) Check on provisions for adequate curing.

xi) In case of masonry work, control should be exercised on the quality of the material (e.g. stone, brick, sand, cement, etc.) as also on mortar proportions.

xii) For RCC work, quality of steel in each batch may be approved on the basis of test certificate. The reinforcement layout should be checked for conformity with approved drawings and bar bending schedules. All laps should be checked for conformity with the specification. The reinforcement should be free of oil and loose rust scale and should be properly tied with binding wire. The size and spacing of the bars as also the cover should be checked for correctness.

46. PAVEMENT COURSES - GENERAL CONTROLS:

a) The base on which the pavement layer is to be placed should be checked for levels and regularity, and should be in a condition to receive the pavement layer.

b) Each layer should be checked for thickness, levels, cross fall (camber), regularity and strength before next layer is permitted to be laid.

ADDITONAL SPECIFICATIONS
(For Concrete Work)

The contractor shall achieve that following requirements in respect of quantity of work and his contract rate shall provided for the same.

1.1 ADMIXTURES :
Whenever necessary the admixture should be used to achieved the required workability. The type of admixture should be got approved from Engineer-in-charge. The rate is inclusive of all admixtures etc. if found necessary.

1.2 CEMENT CONCRETE IN CONCRETE :
For this purpose the conditions mentioned in additional specifications shall be applicable.

1.3 WATER / CEMENT RATIO :
For high quality concrete of low permeability, the water/cement ratio shall not be more than 0.45 and preferably 0.40 or less subject to the attainment of adequate workability.

1.4 CURING FOR CONCRETE :
Special attention shall be paid to curing of concrete in order to ensure maximum durability and no minimize cracking. Concrete shall be cured with fresh water whenever it is possible to ensure that the concrete surface can be kept wet despite wind, etc. care shall be taken on avoid rapid lowering of concrete temperatures caused by applying cold water to hot concrete surface (thermal shock) Sea water shall not be used for curing reinforced concrete or prestressed concrete. Where there is doubt about the ability to keep concrete surface permanently wet for the whole of the curing period heavy duty membranes curing compound shall be used.

1.5 CONCRETE COVER TO REINFORCEMENT :

(i) The cover concrete must be of the same quality, impermeability and strength as the rest of the concrete. Special mix design should be carried out for the concrete to be used for making concrete cover blocks.

(ii) The concrete cover must develop sufficient alkalinity, and protect the steel. The alkalinity developed shall not be less than 0.04 N and shall not more than 0.08 N.

(iii) The cover must be uniform throughout and it's thickness shall be exclusive of plaster or other decorative finishes.

(iv) The concrete cover shall be as per the relevant clause of IS codes. In the case of poles the cover thickness shall be separately decided by the Engineer in charge.

1.6 DETAILING OF MISCELLANEOUS ITEM :
Binding Wires : All ends of binding wires shall be carefully turned inwards so that they do not project out of concrete and start rusting action. Plastic coated galvanised wires shall be used. Wherever possible polythene binding string and polythene bar grips shall be used, after making sure that these do not result in loss of bond or chemical reaction with concrete. The use is subject to approval of Engineer-in-charge.

1.7 BAR SPACING : As per relevant I.S. codes and as detailed design drawing or as directed by Engineer-in-charge.

1.8 HOLLOWS IN CONCRETE : After concreting is complete the concrete surface articularly where there is congestion of reinforcement, shall be tested by light hammering or if possible by Schmidtz hammer. Any portion showing signs of hollowness should be grouted immediately.

SPECIFICATION FOR FORMWORK AND STEEL, CENTERING :-

I) FORMWORK :-

1.1 Formwork :- Formwork shall include all temporary forms of moulds required for forming the concrete which is cst-in-situ, together with all temporary construction required for their support. Unless otherwise stated all formwork shall conform to I.S. Specification.

1.2 Design of Formwork :- Formwork including complete false work shall be designed by the contractor in accordance with I.S.: 2750 (1964), 4041 (1987) and all other relevant I.S. codes without any extra cost to the Government and these shall be got approved from Engineer before any formwork is taken up.

1.3 The contractor shall entirely be responsible for the adequancy and safety for false work not-withstanding any approval or review by the Engineer of his drawing and design. Proprietary system of formwork if used a detailed information shall be furnished to the Engineer for approval.

2. QUALITY OF SHUTTERING: The shuttering shall have smooth and even surface and its joints shall not permit leakage of cement slurry.

2.1 Ply-board shuttering materials to be used shall be steel shuttering/marine plywood well seasoned free from projecting nails, splits or other defects that may mark on the surface of concrete. It shall not be so dry as to absorb water from concrete, or so green or wet as to shrink after erection. Mild steel plates or plywood shall be used for slab and beam bottoms.

2.2 The timber shall be accurately spawned planed on the sides and the surface coming in contact with concrete.

2.3 So far as practicable, clamps shall be used to hold the forms together. Where use of nails is unavoidable minimum number of nails shall be used and these shall be left projecting so that they can be easily with drawn. use of double headed nails shall be prefered.

3. TOLERANCE :-

3.1 The formwork shall be made so as to produce finished concrete true to shape, lines, levels plumb and dimensions as shown on the drawings, subject to the following tolerance unless otherwise specified in these documents or drawings or as directed by the Engineer :

a)	Section dimension	=	5 mm
b)	Plumb	=	1 in 1000 of height
c)	Levels	=	3 mm before any deflection takes place.

3.2 Tolerance given above are specified for local aberrations in the finished concrete surface and should not be taken as tolerance for the entire structure taken as a whole or for the setting and alignment of formwork which should be as accurate as possible to the entire satisfaction of the Engineer, Errors if noticed in any lift/ tilt of the structure after stripping of forms, shall be corrected in the subsequent work to bring back the surface of the structure to its true alignment.

4. **SPECIAL PROVISION :-** Whenever the concreting of thinner members in required to be carried out within shutters of considerable depth, temporary openings in the side of the shutters shall, if so directed by the Engineer be provided to facilitate the puring and consolidation of the concrete. Small temporary openings shall be provided as necessary at the bottom of shutters of walls and deep beams to permit the expulsion of rubbish etc.

5. **REMOVAL OF FORMWORK :-** The formwork shall be so removed that it shall not cause damage to concrete. Centering shall be gradually and uniformly lowered in such a manner as to avoid any shock or vibrations. Supports shall be removed in such a manner as to permit the concrete to take stresses due to its own weight uniformly and gradually.

The whole of the formwork removal should be planned and definite scheme of operation shall be worked out. Under no circumstances forms be struck until the concrete reaches a strength of at least twice the stress to which the concrete may be subjected at the time of striking but not before the period as mentioned in IS:456-2000 where ordinary portland cement is used.

II) **STEEL CENTERING :-**

1. **Work include :-** Erecting steel centering with contractor's material comprising of standard steel adjustable props and standard steel trusses / joists / spans, centering place for bottom of slab and steel plats for bottom of beams etc. of adequate strength properly balanced for obtaining adequate rigidity to with stand all loads coming on it including permanent and temporary fixtures and fastenings etc complete for R.C.C. member like beams slabs and canopy including its removal after the specified period, stacking making good the damaged parts / its replacement before its next use with all leads and lift (all centering material shall be contractor.)

2. For R.C.C. works formwork shall be of marine plywood of adequate thickness and grade only. The centering and supporting arrangement such as standard steel trusses/ joists/ spans standards adjustable/ fixed props. H type frames etc shall be designed by the Contractor and approved from the Engineer before commencement of its erection. The Contractor with the prior approval of the Engineer shall use standard steel centering arrangement which may be manufactured by the reputed firm.

3. The supporting arrangement designed by the contractor shall conform to the relevant I.S. code and Standard practice adopted in this type of work. The centering arrangement shall be adequately braced and properly secured by using appropriate type of fastenings and fixtures to ensure stability and rigidity of the centering to withstand all loads coming on it. The entire responsibility for design, erection, maintenance and safety etc. will exclusively rest with the contractor. The Engineer reserves right to call detailed design calculations of the entire centering or part there of to verify its stability and also reserve tight to reject entire centering arrangement or part there of and any material used for the centering in the event of which the contractor shall have to arrange for its replacemnet at his own cost.

SPECIFICATIONS FOR CONCRETE WORKS :-

1 DESIGN OF CEMENT CONCRETE MIXES :

a) All the cement concrete of grade M-15 and higher strength shall be done with proper mix design as per IS : 10262 - 1982 and shall confirm to the durability and other requirements of IS 456 2000. The mix design shall be got approved from the Chief Officer from time to time whenever there is change in the source and type of cement and aggregates and change in the gradation of aggregates.

b) The design of concrete mixes for various concrete items in the work shall be obtained by the contractor at his cost from and approved laboratory. The contractor shall submit in advance details of such design to the Engineer-in-charge for his prior approval.

c) For concrete of Grade M-25/ M-30/M-35.
Preliminary mix design must be carried out from an approved laboratory, for subsequent changes field mix design shall be acceptable. However incase the Chief Officer has got difficulty in acceptance of the field mix design, laboratory mix design shall be got done by the contractor from approved laboratory at his own cost. Cement, find aggregate and coarse aggregate must be used by weight only according to the requirement of the approved mix design.

d) The concrete mix design shall give target strength of 1.33 times the working strength.

e) The minimum size of aggregate permissible shall be as per para A-7 of Page - 8 f of standard specification book of 1979 Edition Vol. 1.

f) The provision of the specification No. B-7 at page - 38 to 40 of Vol. 1 1979 Edition of standard specification book for controlled concrete shall be applicable for all the structural concrete items. The maximum water cement ratio shall be 0.45. The mix design shall be done accordingly.

g) All the expenses of preliminary mix design, subsequent field/ laboratory mix design, work tests, shall be borne by the contractor.

2. **FROMWORK FOR CONCRETE WORK :-** The forms of concrete shall be of the materials as directly by the Chief Officer-in-charge and shall preferably be of steel or plywood, Forms shall be of the required shape, profile and lines. Suitable devices shall be used to hold corners, adjacent ends, edges of panel or other forms together in accurante alignment. The forms and joints shall tight enough. Forms used for circular curved or structures of unusual shape, petal dome etc. shall be of such a character that will result in smooth concrete surface and exact shape. They shall be prepared such that they will not warp or distort during erection or while placing concrete. Their design and layout shall be got approved form the Chief Officer-in-charge in advance.

3. **ERECTION AND REMOVAL OF FORM WORK :-** The centering and strutting shall be of steel or plywood board exclusively for concreting. The design and drawing should be got approved in advance from the Department. For minor members the Engineer-in-charge may, at his discretion, permit use of wooden shuttering. The centering and shuttering shall be close and tight to prevent leakage of cement slurry. The centering shall have the necessary props, bracing and edges sufficiently strong and stable which shall not yield or displace while or after laying of concrete. They shall be made in such way that they can be slackened and removed gradually and slowly without distributing the concrete. Centering and shuttering shall not be removed before the design strength is achieved.

4. **MIXTURE OF CONCRETE :-** Design mix concrete as well as nominal mix concrete shall be mixed by following the provision in Standard specification at B. 6.4 unless otherwise directed by the Engineer.

Unless otherwise agreed by the Engineer concrete shall be mixed in a batch type mixer of such other type of mixer as the Engineer my approve.

During hot weather the Contractor shall ensure that the constituent materials are sufficiently cool to prevent the concrete from stiffening in the intervals between its discharge from the mixer and its final position.

5. **TRANSPORTATION, PLACING AND COMPACTION OF CONCRETE :-** The method of transportation placing and compaction of concrete shall be followed as per section B.6.6, 6.7 and 6.8 of Standard Specification unless otherwise directed by the Engineer. The compaction shall be done with surface float vibrators for slabs and with pin vibrators for columns and beams. Vibrators of adequate vibrating capacity shall be employed for all types of works.

6. **CURING :-** Curing shall be done by following provision of Section B.6.9 of Standard Specification and as directed by the Engineer.

7. **WORKING IN EXTREME WEATHER :** During windy weather sufficient protection shall be provided to prevent the cement from being blown away during the process of proportioning and mixing. During wet weather, the concrete shall be adequately protected as soon as it is placed in position.

No concreting shall be carried out during period of continuous heavy rains unless, it is completely covered during mixing, transporting and placing, In extreme hot weather, concreting shall be restricted to morning and evenings The time between mixing and placing of concrete shall be kept to the minimum and formwork shall be cooled by sprinkling with water.

8. **FINISHING:** Finishing work shall comply with requirement of section B.6.10 of Standard Specification unless otherwise specified herein below :

Immediately on removal of forms, the R.C.C. work shall be examined by the Engineer before any defects are made good.

a) The work that has sagged or contains honey combing to an extent detrimental to structural safety or architectural concept shall be rejected.

b) Surface defects of a minor nature shall be rectified generally as indicated below by the contractor.

i) Surface defects which require rectification when forms are removed usually consist of bulges due to movement of forms, ridges at form joints, honeycombed areas, damage resulting from the stripping of forms and bolt hole. Bulges and ridges shall be removed by careful chipping or tooling and the surface is then rubbed with a grinding stone. Honey combed and other areas shall be chipped out, the edges being cut as straight as possible and perpendicular to the surface, or preferably slightly under cut to provide a key at the edge, of the patch. Bolt holes shall be closed by cement mortar to ensure thorough filling.

ii) Shallow patches shall be treated with a coat of thin grout composed of one part of cement and one part of sand and then filled with mortar similar to that used in concrete. The mortar is placed in layers not more than 10 mm thick and each layer shall be given a scratch finish to secure bond with the succeeding layer. The last layer shall be finished to match the surrounding concrete by floating, rubbing or tooling on formed surfaces by pressing the form material against the patch while the mortar is still plastic.

iii) Large and deep patches requires filling up with concrete held in place by forms. Such patches shall be reinforced and carefully dowelled to the hardened concrete.

iv) The same amount of care to cure the material in the patches shall be taken for the whole structure. Curing shall be started, as soon as possible after the patch is finished to prevent early drying. Damp Hessian cloth may be used. But in some locations it may be difficult to hold it in place, a membrane curing compound in these cases will be most convenient.

9. **CONSTRUCTIONS JOINTS:-** Construction joints shall be provided and treated following the provisions of Specification and as directed by the Engineer-in-charge.

10. **DURABILITY:-** Minimum cement contents for different exposures and sulphate attack are given in Tables 4 and 5 o I.S. 456, 2000 shall be followed for design mix.

11. **TESTS AND STANDARD OF ACCEPTANCE:-**

11.1 Tests and Standard of acceptance criteria of design mix concrete and nominal mix concrete shall be as follows:
Sampling and testing of Concrete shall be done as per provision of section B.6.12 of Standard Specifications. Acceptance criteria for strength of concrete shall be as per IS 456-2000.
Case falling outside the above limit shall be examined by the Engineer on Merits in each case.

11.2 **DEFECTIVE CONCRETE:-** Any concrete which gives substandard results, or is severely damaged due to cracking or shows excessive honey combing and exposure of reinforcement, if exhibits any fault which in the opinion of the Engineer, seriously impairs its function, may be declared as defective concrete. Such non acceptable concrete shall be removed from the site and replaced by fresh concrete of the specified quality by the contractor at his own expenses. Alternatively in case of acceptable concrete, the Contractor shall carry out whatever other remedy the Engineer may reasonably suggest "Small rendering shall be done by the Contractor without extra cost."

12 **KEEPING RECORDS:-** The record of mix design, mixing, slum, testing of C.C. cubes etc. shall be maintained in accordance with Section B-6.13 of the Standard Specification.

Extract from specifications for Road and Bridge works by M.O.S.T.

902 Control of alignment , level and surface regularity.

902.1 General

All works performed shall conform to the lines, grades, cross section and dimensions shown on the drawings or as directed by the Engineer, subject, to the permitted tolerances described hereinafter.

902.2 Horizontal alignment

Horizontal alignments shall be reckoned with respect to the center line of the carriageway as shown on the drawings. The edges of the carriageway as constructed shall be correct within a tolerance of + 10 mm. therefrom. The corresponding tolerance for edges of the roadway and lower layers of pavements shall be 3.25 mm.

902.3 Sub-grade Levels

The levels of the Sub-grade and different pavement courses as constructed, shall not vary from those calculated with reference to the longitudinal and cross profile of the road shown on the drawings or as directed by the engineer beyond the tolerance + 6 mm or 0.6 mm. providing . However, that the negative tolerance for wearing course, if the thickness of the former is thereby reduces by more than 6 mm. for fixable pavements and 5 mm. for concrete pavements.

For checking compliance with the above requirement for sub-grade, sub-base and base course, measurements of the surface levels shall be taken on a grid of points places at 6.25 m. longitudinally and 3.5 m. transversely. For any 10 consecutive measurements taken longitudinally or transversely , not more than one measurement shall be permitted to exceed the tolerance as above, this one measurement being not in excess of 5 mm. above the permitted tolerance.

For checking compliance with the above requirement for bituminous wearing course and concrete pavements , measurements of the surface level shall be taken on a grid of points spaced at 6.25 m. along the length and at 0.5 m. from the edges and at the center of the pavement. In any length of pavement, compliance shall be deemed to be met for final road surface only if the tolerance given above is satisfied for any point on the surface.

902.4 Surface Regularity of pavement courses

The Longitudinal profile shall be checked within a 3 meter long straight edge /moving straight edge as desired by the Engineer at the middle of each traffic lane a line parallel to the center line of the road. The maximum permitted number of surface irregularities shall be as per Table 900-2.

Table 900-2 Maximum permitted number of surface irregularities

Irregularity	Surface of carriageway and paved shoulders				Surface of Lay bays, services Areas and all bituminous base Course.			
	4 mm.		7mm.		4mm.		7 mm.	
Length (m)	300	75	300	75	300	75	300	75
National Highway Expressways	20	9	2	1	40	18	4	2
Roads of Lower Category	40	18	4	2	60	27	6	3

Category of each section road as described in the contract.

The maximum allowable difference between the road surface and underside of a 3 m. straight edge when placed parallel with, or at right angles to the center line of the road at points decided by the Engineer shall be.

For Pavement surface (Bituminous and cement concrete)	3 mm.
For Bituminous base courses	6 mm.
For Granular Sub-base courses	8 mm.
For Sub-base under concrete Pavements	10 mm.

902.5 Rectification

Where the surface regularity of sub-grade and the various pavement courses fall outside the specified tolerances, the contractor shall be liable to rectify these in the manner described below and to the satisfaction of the Engineer.

Bituminous Construction:- For bituminous other than wearing course, where the surface is low , the deficiency shall be corrected by adding fresh material over a suitable tack coat if needed and recompacting to specifications. Where the surface is high , the full depth of the layer shall be removed and replaced with the fresh material and compacted to specifications.

Abstract from Standard Specifications for Roads and Bridges of Government of Maharashtra.

Rd.33 Picking the road surface including sectioning complete

Rd.33.1 General: The item provides and sectioning of the road surface for receiving the new metal surface.

Rd.33.2 Road Diversion : If the traffic cannot be allowed to pass over the roadside shoulders during picking, spreading and compacting operations, diversions should be taken out and maintained as specified under Item No. BR.1.

Rd.33.3 Picking : All the caked mud, slush, animal droppings, vegetation and all other rubbish accumulated on the road surface shall be removed. Where the section of the road surface is good, the road surface shall be picked lightly only, to loosen the surface stones. Where section is uneven, picking shall be done a little deeper to enable the sectioning to be done to the required shape with the picked up material. The picking shall always be ahead of the spreading of metal and compaction by about 100 metres. The edges of the picking shall be truly in a line or curve as the case may be. This can be achieved by trying to nails driven on the road edge and ranging for a sufficiently long length.
The picked up surface shall be sectioned to the required grade and camber, super elevation or transition section. Template shall be sued to obtain correct and uniform camber , super elevation or transition section as the case may be.
The road surface may be watered by the contractor for easier picking without claiming extra for the same.
The junctions of the picked and non-picked surfaces shall be diagonal.

Rd 33.4 Item to include

Picking, watering if required, sectioning and grinding, Divisions including barricading warning signals, lights , etc. unless separately provided in the tender, the work satisfactorily.

Rd 33.5 Mode and Measurement of Payment

The contract rate shall be one Sq.Metre of surface picked & sectioned.
The area picked shall be worked out in Sq. Metres correct upto a Sq. Mt. The width shall be limited to the width specified or as ordered by the Engineer. The length shall be measured along the center line of the road. The dimensions shall be recorded correct upto one decimal of a meter increased width on curves shall be measured.

Rd 41 General: The item provides for the supply of stone aggregate of the specified type and size at the roadside including obtaining the stones of the specified quality from approved sources, crushing them in mechanical crushers, conveying to the road side with all leads and lifts stacking in regular heaps as specified hereinafter uniformly along the road side.

41.2 Quarries: Stones of approved type for crushing aggregate shall be obtained from quarries as specified in Section No. Rd 19.2

41.3 Stone aggregates:

41.3.1 Quality: The aggregates shall be obtained by crushing approved stones of specified type in a mechanical crusher and shall be clean, strong, tough, dense, durable, close grained and free from soft, decayed and weathered portions and from coating of dust, dirt or other objectionable matter. They shall preferably have good hydrophobic characteristics They shall generally satisfy the following requirements.

	For light or medium traffic	For heavy traffic
Los Angles abrasion test, percent fines maximum	25	17
Aggregate crushing test, percent, fines maximum	23	17
Water absorption by weight after 24 hours immersion , percent, not more than	1	1

Test shall be carried out according to I.S. 383-1970.

Test considered necessary shall be carried out in an approved laboratory when the Engineer considers quality to be doubtful or there is dispute about the quality. If the results are satisfactory, the cost of tests shall be borne by the Department and if unsatisfactory by the contractor**.**

Rd 41.3.2 Size : Size of the metal and chips shall be as under :

Standard size	Wholly passing through Square mesh of internal dimension	Wholly retained on square mesh of internal dimension.
40 mm. (about 1.5")	50 mm. (about 2")	25 mm. (about 1")
22 mm. (about 1")	40 mm. (about 1.5")	20 mm. (about 0.75")
20 mm. (about 0.75")	25 mm. (about 1")	12 mm. (about 0.50")
12 mm. (about 0.05")	20 mm. (about 0.75")	10 mm. (about 0.75")
10 mm. (about 0.75")	12 mm. (about 0.50")	6 mm. (about 0.25")
6 mm. (about 0.25")	10 mm. (about 0.75")	5 mm. (about 3/16")

Note : Not more than 20% of any sample shall exceed in its greatest dimension , standard size plus 25 mm, for 40 mm. standard size and standard size plus 12 mm. For 25 mm., 20 mm. and 12 mm. standard size and standard size plus 6 mm. for 10 mm. standard sizes.

The pieces shall be roughly cubical in shape and more or less of uniform size with sharp edges for interlocking, rounded flaky, thin elongated pieces shall not be accepted. Before collection , samples of metal and chips shall be got approved for quality, size and shape by the Engineer who will keep them in his office for reference. They shall be completely any at the time of use.

Rd 41.3.3 Conveyance : According to Specification No. Rd 19.3.3

Rd 41.3.4 Stocking : According to Specification No. Rd. 22.3.4 wherever a mixture of aggregates of two or more standard sizes is specified for the work, each size of aggregates shall be stacked separately and entirely clear of the carriageway and where possible clear of the shoulders also. They shall be stacked in such a manner as to prevent mixture, deterioration or contamination.

Rd 41.4 Special points : According to Specification No. Rd. 19.4

Rd 42.5 Item to include : Crushing aggregates to the specified sizes from approved rubble and other items included in Specification No. Rd 19.5

Rd 42.6 Mode of measurement and payment according to Specification No. Rd. 20.6.
As the rate is based on consumption of bitumen at the rate of 250 Kg/ 100
Sq.m. , it will be reduced in case of B.B.M. suffer by deducting cost of 50 Kg/bitumen per 100 Sq.m. for the rate specified in Schedule "B".

ROUGHNESS INDEX

The Contractor shall be responsible to measure the roughness of road surface for which he may use the Roughness Index Testing Machine at his own cost. Use of “Towed Fifth Bump Integrator” shall be made to measure the roughness of the road surface. The calibration of the machine shall be done from time to time as and when warranted from reputed Institutions like C.R.R.I., New Delhi and their Certificate shall be produced to that effect. The values of roughness so measured shall not exceed the values given below for various types of road surfaces under standard conditions of carrying out the test and as specified below :

1) S.D.B.C. : 2200 mm. / Km.

2) Premix Carpet : 2500 mm. / Km.

3) B.M. : 2500 mm. / Km.

The Roughness Index test shall be carried out before start of the work and after completion of Surface Course as directed by Engineer-in-charge for the work of strengthening and as directed.

The results of Roughness Index test shall be made available to the Engineer- in-charge within 5 days from the test so taken.

As an outcome of roughness test, where the surface irregularity of wearing surfaces falls outside the tolerances mentioned above, the Contractor shall be liable to rectify the deficiencies in a manner as directed and to the satisfaction of the Engineer- in-charge.

If the contractor fails to carry out roughness index test, the same will be done departmentally and double the cost so incurred will be recovered from him.

ADDITIONAL SPECIFICATION FOR BITUMINOUS MACADAM

1. The grade for aggregates to be used shall be as per tabte-500-4 on page No. the Bitumen content shall be as mentioned in the specification.

2. For compaction 8-to 10 tonnes roller can also be used.

3. The contractor shall prepare the marshal mould of bituminous mix as per required grading and test the same for laboratory density. 95% of marshal density of bituminous macadam after laying and compaction shall be the criteria for acceptance of degree of compaction of the laid mix. The Laboratory density of the mix shall be done for every change in source of aggregated and each grade asphalt to be used on work. The frequency of testing shall not be less than one test for every 500 square metre of the- laid ratio.

4. The tack coat shall be-to be provided by at least manually to be used hand operated pressure spar with the required, heating arrangement.

5. Initial ground level of interval of l0 meter on strength reaches and at interval of 5 meter at one curve at minimum 5, point on cross section as directed by Engineer-in-Charge shall be taken in presence of contractor or his authorised representative, these intervals are subjected to modifications as decided by Engineer-in-charge or his authorised representative. All levels pertaining to work in field books must be sighed by contractor or his authorised representative.

ADDITIONAL CONDITION

Ref:- 1) The Chief Engineer, P.W. Region, Nasik Letter No. Desk-IV(7)/Store/333 Date- 11/02/2000.
2} The Superintending Engineer, RW. Circle, Dhule Tender/24/1 Date- 20/05/2000.

The R.C.C pipes required for the work shall be procured from the MISSIDC only. The payment toward providing and fixing NP2 / NP3 / NP4 pipes will be released only after the contractor submits the bills of MISSIDC to authenticate that the pipes have been purchased from the MISSIDC. No payment towards the item of providing and lying of the pipe will be released in absence of the submission of requisite document. After completion of these items in the particular kilometer the withheld payment will be finally released.

Additional Condition for carrying the Roughness Index clause
The Contractor shall be responsible to measure the roughness of road surface for which he may use Roughness Index Testing machine at his own cost. Use of Towered fifth Bump Integrator' shall be made to measure the roughness of the road surface the Calibration of machine shall be done from time to as and when warranted, from the reputed institutions like CRRI, New Delhi and their certificate shall be values given below for various types of road surface under standard conditions of carrying out the test and as specified below,

1)	**Bituminous Concrete**	**2500 mm/km.**	**2) DBM/OGC**	**3500 mm/km.**
3)	**B.M**	**4000 mm/km.**	**4) Surface dressing**	**4500 mm/km.**
5)	**W.B.M**	**8000 mm/km.**		

The Roughness Index Test shall be carried out before start of the work, after completion of B.M (wherever applicable) and after completion of the Final bituminous layer wherever applicable as directed by Engineer-in-Charge.

The Additional tender Condition will be as follows: -
'"Not withstanding whether it as per the rules of the Traffic authorities of otherwise the agency should ensure that their vehicle the includes all construction machinery toward or self driven are equipped with the following to emphasize traffic safety."

1) Reflector 4 nos. 2) Tail Lamp 2 Nos. 3) One of the Following slogan

"Drink & Drive you won't survive"	**वाहन व्यवस्थित जीवन व्यवस्थित**
"Live & Let Live"	**एक झपकी एक अपघात**
"A Cat has 9 lives you have only 1"	**आपकी भूल दुसरोंकी परेशानी**
जल्दी करती काम खराब, होश में आओ लाट साहब	**आवरा वेगाला सावरा जीवाला**
दारुचा एकच प्याला कारण तुमच्या नशाला	**मनाचा ब्रेक उत्तम ब्रेक**
नको मरण, नको अपंगता, वेगावर ताबा पाळा दक्षता	**धुम्रपान मद्यपान आयुष्याची पळधान**
समय मुल्यवान है लेकिन जीवन अमुल्य है	**जेथे लक्ष विचलित तेथे अपघात निश्चित**

In absence of the above requirement and failure of the agency to fulfill them in a reasonable time the Chief Officer in-charge of the work will get it done from the Mechanical Wing of RW. Department and would recover the cost from the count due to agency at following rates.

1) Reflector = Rs. 25/- per no. 2) Tail Lamp = Rs. 175/- per no. 3) Slogan = Rs. 75/-per no. Decision of the Chief Officer will be binding and conclusive in the matter.

TRAFFIC SAFETY MEASURES TO BE TAKEN BY THE CONTRACTOR AT HIS OWN COST DURING IMPROVEMENT OF ROADS WHERE TRAFFIC CAN BE PASSED OVER PART WIDTH

ITEM :- Providing traffic safety measures on road during improvement of existing road comprising of Traffic Sign Boards and devices as per detailed design drawing and specifications and as directed by Engineer in charge.

SPECIFICATIONS:- The item includes traffic safety arrangements required for traffic control near the stretch of road where improvement work is being taken up, before actual start of improvement work of road. The contractor will have to provide traffic safety arrangements as per detailed drawing. The traffic safety arrangement will have to be got approved from Engineer in charge by the contractor before taking any construction activities for improvement of road.
The Engineer in charge shall get himself satisfied about the traffic safety arrangement provided on the work site before allowing contractor to commence the improvement activity and a certificate to that effect shall be recorded in the measurement book.

a) The Sign no.1 "SPEED LIMIT (20")"shall be placed at a distance of 120m away from the point where the transition of carnage way begins. The Sign Board shall be circle of size 60cm dia. having White background and red border and the numerals shall be in black colour as per IRC 67-2001 (1st revision). Distance between sign no.1 and sign no.2 shall be minimum 20m.

b) The Sign no.2 cautionary board indicating "NARROW ROAD AHEAD" shall be placed at a distance of 80m away from the point of transition of carriageway. The signboard shall be of an equilateral triangle of size 90cm having white coloured background. Retro reflective border in red colour and Non reflective symbol in black colour as per IRC 67-2001 (1st revision).

c) The Sign no.3 cautionary board indicating "MEN AT WORK" shall be placed at a distance of 40 m away from the point of transition of carriageway. The sign board shall be of an equilateral triangle of size 90cm having white coloured background. Retro reflective border in red colour and Non reflective symbol in black colour as per IRC 67-2001 (1st revision).

d) The Sign no.4 displaying the message "GO SLOW WORK IN PROGRESS" shall be placed at the point of transition of carriageway. The size of sign board shall be 1.0 m X 1.0 m having red coloured background and Retro reflective message in white colour.

e) Sand filled plastic cones mounted with retro reflective arrow hazard marker sign shall be J placed as indicated in the drawing. Plastic cone shall be 73cm in height having 39cm square / hexagonal base. Sand filled plastic cones shall be placed along the road length where work is in progress as shown in the drawing.

f) Retro reflective strong inviolable stand type barrier shall be placed at either ends of the widening area upto the edge of the formation. The barricades shall not be removed unless the permission is given by the responsible officer of the rank not less than sectional engineer. The barricade shall have two plates of size 1.30m x 0.20m painted black and shall have retro reflective strips and mounted on angle Iron stand of 1.0 m height.

g) Yellow light flashers shall be kept lit from sunset to sunrise, 2 Nos. along transition line of traffic and 3 nos. at barriers on both sides as indicated in the drawing.

h) The signs, lights, barricades and other traffic control devices shall be well maintained, till such time the traffic is commissioned on the widened road. The size, shape and colour of all the sign and caution boards shall be as mentioned above as per detailed drawings in accordance with the relevant I.R.C specifications and as per Ministry of Road Transport and Highway's specifications.

i) The provision of item of traffic safety measures as per drawing no.1 shall be obligatory to the contractor and no separate payment, whatsoever will be made for the same. Failure to supply with the above provisions within 15 days of issue of work order will entitle the department to recover the amount of Rs.1,00,000/- (Rupees one lakh) from the contractor from immediate forthcoming bill/bills.

j) In addition to above the contractor has to provide and fix on the site of work information board (Displaying the details of work) as directed by Engineer in charge, at the starting and end point of work.

INTEGRITY PACT

Between

Public Works Department, Maharashtra Government
having its Office at Bandhkam Bhawan, Fort Mumbai - 400001

hereinafter referred to as

"PUBLIC WORKS DEPARTMENT",

and

_____
[Insert the name of the Sole Bidder / Lead Partner of]oint Venture]

having its Registered Office at

_____
(Insert full Address)

and

_____
[Insert the name of the Partner(s) of Joint Venture, as applicable]

having its Registered Office at

_____
(Insert full Address)

hereinafter referred to as

"The Bidder/Contractor"

Preamble

PUBLIC WORKS DEPARTMENT intends to award, under laid-down organizational procedures, contract(s) for

[Insert the name of the package]

(Signature)
(For & On behalf of Public Works Department)

(Signature)
(For & On behalf of Bidder/ Partner(s) of Joint Venture/ Contractor)

Package and Specification Number

[Insert Specification Number of the package]

PUBLIC WORKS DEPARTMENT values full compliance with all relevant laws and regulations, and the principles of economical use of resources, and of fairness and transparency in its relations with its Bidders/ Contractors

In order to achieve these goals, PUBLIC WORKS DEPARTMENT and the above named Bidder/ Contractor enter into this agreement called 'Integrity Pact' which will form a part of the bid.

It is hereby agreed by and between the parties as under:

Section-I - Commitments of PUBLIC WORKS DEPARTMENT

(1) PUBLIC WORKS DEPARTMENT commits itself to take all measures necessary to prevent corruption and to observe the following principles:

a) No employee of PUBLIC WORKS DEPARTMENT, personally or through family members, will in connection with the tender, or the execution of the contract, demand, take a promise for or accept, for him/herself or third person, any material or other benefit which he/she is not legally entitled to.

b) PUBLIC WORKS DEPARTMENT will during the tender process treat all Bidder(s) with equity and fairness. PUBLIC WORKS DEPARTMENT will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/ additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.

c) PUBLIC WORKS DEPARTMENT will exclude from evaluation of Bids its such employee(s) who has any personnel interest in the Companies/ Agencies participating in the Bidding/Tendering process.

(2) If Principle Secretary PWD, Maharashtra Government obtains information on the conduct of any employee of PUBLIC WORKS DEPARTMENT which is a criminal offence under the relevant Anti-Corruption Laws of India, or if there be a substantive suspicion in this regard, he will inform its Chief Vigilance Officer and in addition can initiate disciplinary actions under its Rules.

Section -II - Commitments of the Bidder/Contractor

(1) The Bidder/Contractor commits himself to take all measures necessary to prevent corruption. He commits himself to observe the following principles during his participation in the tender process and during the contract execution:

(a) The Bidder/Contractor will not, directly or through any other person or firm, offer, promise or give to PUBLIC WORKS DEPARTMENT, or to any of PUBLIC WORKS DEPARTMENT's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange an advantage during the tender process or the execution of the contract.

(b) The Bidder/Contractor will not enter into any illegal agreement or understanding, whether formal orinformal with other Bidders/Contractors. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or actions to restrict competitiveness or to introduce cartelization in the bidding process.

(c) The Bidder/Contractor will not commit any criminal offence under the relevant Anti-corruption Laws of India; further, the Bidder/Contractor will not use for illegitimate purposes or for purposes of restrictive competition or personal gain, or pass on to others, any information provided by PUBLIC WORKS DEPARTMENT as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.

(d) The Bidder/Contractor of foreign origin shall disclose the name and address of the Agents/ representatives in India, if any, involved directly or indirectly in the B1ddmg. Similarly, the Bidder / Contractor of Indian Nationality shall furnish the name and address of the foreign principals, if any, involved directly or indirectly m the Bidding.

(e) The Bidder/Contractor will, when presenting his bid, disclose any and all payments he has made, or committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract and/ or with the execution of the contract.

(Signature)
(For & On behalf of Public Works Department)

(Signature)
(For & On behalf of Bidder/ Partner(s) of Joint Venture/ Contractor)

(f) The Bidder/ Contractor will not misrepresent facts or furnish false/forged documents/informations in order to influence the bidding process or the execution of the contract to the detriment of PUBLIC WORKS DEPARTMENT.

(2) The Bidder/Contractor will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section-III - Disqualification from tender process and exclusion from future contracts

(1) If the Bidder, before contract award, has committed a serious transgression through a violation of Section II or in any other form such as to put his reliability or credibility as Bidder into question, PUBLIC WORKS DEPARTMENT may disqualify the Bidder from the tender process or terminate the contract, if already signed, for such reason.

(2) If the Bidder/Contractor has committed a serious transgression through a violation of Section II such as to put his reliability or credibility into question, PUBLIC WORKS DEPARTMENT may after following due procedures also exclude the Bidder/Contractor from future contract award processes. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the circumstances of the case, in particular the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder/ Contractor and the amount of the damage. The exclusion will be imposed for a minimum of 12 months and maximum of 3 years.

(3) If the Bidder/Contractor can prove that he has restored/recouped the damage caused by him and has installed a suitable corruption prevention system, PUBLIC WORKS DEPARTMENT may revoke the exclusion prematurely.

Section-IV - Liability for violation of Integrity Pact

(1) If PUBLIC WORKS DEPARTMENT has disqualified the Bidder from the tender process prior to the award under SectiOn Ill, PUBLIC WORKS DEPARTMENT may forfeit the Bid Guarantee under the Bid.

(2) If PUBLIC WORKS DEPARTMENT has terminated the contract under Section-Ill, PUBLIC WORKS DEPARTMENT may forfeit the Contract Performance Guarantee of this contract besides resorting to other remedies under the contract.

Section-V - Previous Transgression

(1) The Bidder shall declare in his Bid that no previous transgressions occurred in the last 3 years with any other Public Sector Undertaking or Government Department that could justify his exclusion from the tender process.

(2) If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or the contract, if already awarded, can be terminated for such reason.

Section VI- Equal treatment to all Bidders/Contractors

(1) PUBLIC WORKS DEPARTMENT will enter into agreements with identical conditions as this one with all Bidders.

(2) PUBLIC WORKS DEPARTMENT will disqualify from the tender process any bidder who does not sign this Pact or violate its provisions.

Section-VII- Punitive Action against violating Bidders/Contractors

If PUBLIC WORKS DEPARTMENT obtains knowledge of conduct of a Bidder or a Contractor or his subcontractor or of an employee or a representative or an associate of a Bidder or Contractor or his Subcontractor which constitutes corruption, or if PUBLIC WORKS DEPARTMENT has substantive suspicion in this regard, PUBLIC WORKS DEPARTMENT will inform the Chief Vigilance Officer (CVO)

(*) Section-VIII - Independent External Monitor/Monitors

(1) PUBLIC WORKS DEPARTMENT has appointed a panel of Independent External Monitors (IEMs) for this Pact with the approval of Central Vigilance CommissiOn (CVC), Government of India, out of which one of the IEMs has been indicated in the NIT/IFB.

(Signature)
(For & On behalf of Public Works Department)

(Signature)
(For & On behalf of Bidder/ Partner(s) of Joint Venture/ Contractor)

(2) The IEM is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement. He has right of access to all project documentation. The IEM may examine any complaint received by him and submit a report to Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT, at the earliest. He may also submit a report directly to the CVO and the CVC, in case of suspicion of serious irregularities attracting the provisions of the PC Act. However, for ensuring the desired transparency and objectivity in dealing with the complaints arising out of any tendering process, the matter shall be referred to the full panel of IEMs, who would examme the records, conduct the investigations and submit report to Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT, giving Joint findings

(3) The IEM is not subject to instructwns by the representatives of the parties and performs his functions neutrally and independently. He reports to the Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT.

(4) The Bidder(s)/Contractor(s) accepts that the IEM has the right to access without restriction to all documentation of PUBLIC WORKS DEPARTMENT related to this contract including that provided by the Contractor/Bidder. The Bidder/Contractor will also grant the IEM, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his documentation. The same is applicable to Subcontractors. The IEM IS under contractual obligation to treat the information and documents of the Bidder(s)/Contractor(s)/Subcontractor(s) with confidentiality.

(5) PUBLIC WORKS DEPARTMENT will provide to the IEM information as sought by him which could have an impact on the contractual relations between PUBLIC WORKS DEPARTMENT and the Bidder/Contractor related to this contract.

(6) As soon as the IEM notices, or believes to notice, a violation of this agreement, he will so inform the Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT and request the Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT to discontinue or take corrective action, or to take other relevant action. The IEM can in this regard submit non-binding recommendations. Beyond this, the IEM has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, the IEM shall give an opportunity to PUBLIC WORKS DEPARTMENT and the Bidder/Contractor, as deemed fit, to present its case before making its recommendations to PUBLIC WORKS DEPARTMENT.

(7) The IEM will submit a written report to the Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT within 8 to 10 weeks from the date of reference or intimation to him by PUBLIC WORKS DEPARTMENT and, should the occasion arise, submit proposals for correcting problematic situations.

(8) If the IEM has reported to the Principle Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT, a substantiated suspicion of an offence under relevant Anti-Corruption Laws of India, and the Principle. Secretary PWD, Maharashtra Government, PUBLIC WORKS DEPARTMENT has not, within the reasonable time taken visible action to proceed against such offence or reported it to the CVO, the Monitor may also transmit this Information directly to the CVC, Government of India.

(9) The word **'IEM'** would include both singular and plural.

(*) This Section shall be applicable for only those packages wherein the IEMs have been identified in Section-I: Invitation for Bids and/or Clause ITB 9.3 in Section-III: Bid Data Sheets of Conditions of Contract, Volume-! of the Bidding Documents.

Section IX - Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor after the closure of the contract and for all other Bidder's six month after the contract has been awarded.

Section X - Other Provisions

(1) This agreement is subject to Indian Law Place of performance and jurisdiction is the establishment of PUBLIC WORKS DEPARTMENT. The Arbitration clause provided in the main tender document / contract shall not be applicable for any issue/ dispute arising under Integrity Pact.

(2) Changes and supplements as well as termination notices need to be made in writing.

(3) If the Contractor is a partnership firm or a consortium or Joint Venture, this agreement must be signed by all partners, consortium members and joint Venture partners.

(4) Nothing in this agreement shall affect the rights of the parties available under the General Conditions of Contract (GCC) and Special Conditions of Contract (SCC)

(Signature)
(For & On behalf of Public Works Department)

(Signature)
(For & On behalf of Bidder/ Partner(s) of Joint Venture/ Contractor)

(5) Views expressed or suggestions/ submissions made by the parties and the recommendations of the CVO/IEM• in respect of the violation of this agreement, shall not be relied on or introduced as evidence in the arbitral or judicial proceedings (arising out of the arbitral proceedings) by the parties in connection with the disputes/ differences arising out of the subject contract.

CVO slzall be applicable for packages wherein IEM are not identified in Section IFB/BDS of Condition of Contract, Volume-I. IEM shall be applicable for packages wherein IEM are identified in Section IFB/BDS of Condition of Contract, Volume-!.

(6) Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.

(Signature) (For & On behalf of Public Works Department)	**(Signature)** (For & On behalf of Bidder/ Partner(s) of Joint Venture/ Contractor)
(Office Seal)	(Office Seal)
Name: **Designation:**	**Name:** **Designation:**
Witness 1: **(Name & Address)**	**Witness 1:** **(Name & Address)**
_____	_____
_____	_____
Witness 1: **(Name & Address)**	**Witness 1:** **(Name & Address)**
_____	_____
_____	_____

DRAWINGS

CONTRACT DRAWINGS:

The contract drawings provided for tendering purpose with the tender documents shall be used as reference only. Contractor should visualise the nature of type of work contemplated and to ensure that the rates and prices quoted by him in the bill of quantities take due consideration of the complexities of work involved during actual execution / construction as experienced Contractors in the field.

The tendered rates / prices for the work shall be deemed to include the cost of preparation, supply and delivery of all necessary drawings, prints, tracings and negatives which the Contractor is required to provide in accordance with the contract.

DOCUMENTATION:

If so ordered by the Engineer-in-charge the Contractor will prepare drawings of the work at constructed and will supply original and three copies to the Engineer who will verify and certify these drawings. Final as constructed drawings shall then be prepared by the Contractor and supplied in triplicate along with a micro film of the same to the Engineer for record and reference purposes at the Contractor's cost.

SCHEDULE 'B'

NOTES:-

1) All the quantities shown in the schedule 'B' are likely to vary at the time of actual execution, as such claims on this account shall be entertained.

2) Rate of all items include all leads and lifts, labour, material involved for completed item and site clearance

3) All rates are inclusive of all taxes, octroi chargers and royalty charges.

4) Work shall be carried out as per the instructions / orders and to the enter satisfaction of Engineer-in-charge.

5) Government Circulars issued previously and will be issued hereafter are also binding on the contractor.

6) The detailed specifications are as One Standard Specification Book Volume I Edition 1979 and Volume II Edition 1981 Published by the Government of Maharashtra in Public works Department and Specification for road and bridge work published by Ministry of road Transport and Highway 2001 Edition 4th and 5th revision.

7) Government Circulars issued previously and will be issued hereafter are biding on the Contractor.

Memorandum showing the items of work to be carried out by the contractor

SCHEDULE "B" and Specifications

NAME OF WORK :- S.T.B.T. to Maharashtra Sawmil to JMC School Road for Jawhar Municipal Council Area Taluka Jawhar District Palghar

Sr. No	Quantity Estimated but may be more or less		Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
				In Figure	In Words			Spec. No.	Page No.	
1	2		3	4	5	6	7	8	9	10
1	66.00	Cubic Metre	**Item No. 1 -** Excavation for catch / side water gutter in all sorts of soils to the specified section including stacking the excavated stuff in a regular bund and disposing of unsuitable or excess stuff as directed all sorts of soils.	130.90	Rupees one hundred thirty and paise ninety only	Per One Cubic Metre	8639.40	MORTH 309	--	
2	71.25	Cubic Metre	**Item No. 2 -** Providing, laying, spreading and compacting stone aggregates of specific sizes to water bound macadam specification including spreading in uniform thickness, hand packing to proper grade and camber, applying and brooming requisite type of screening/ binding Materials to fill up the interstices of coarse aggregate, watering and compacting with Vibratory roller. to the required density. By Mechanical Means - Grading I (Using Screening Type B (11.2) mm Aggregate)	3712.89	Rupees three thousand seven hundred twelve and paise eighty-nine only	Per One Cubic Metre	264543.41	MORTH 404	--	
3	142.50	Cubic Metre	**Item No. 3 -** Providing, laying, spreading and compacting stone aggregates of specific sizes to water bound macadam specification including spreading in uniform thickness, hand packing to proper grade and camber, applying and brooming requisite type of screening/ binding Materials to fill up the interstices of coarse aggregate, watering and compacting with vibratory roller to the required density. By Mechanical Means - Grading II (Using Screening Type B (11.2 mm) Aggregate)	3644.71	Rupees three thousand six hundred forty-four and paise seventy-one only	Per One Cubic Metre	519371.18	MORTH 404	--	
4	38.00	Cubic Metre	**Item No. 4 -** Supplying hard murum / kankar at the road site, including conveying and stacking complete.	681.82	Rupees six hundred eighty-one and paise eighty-two only	Per One Cubic Metre	25909.16	MORTH 408	--	
5	38.00	Cubic Metre	**Item No. 5 -** Spreading hard murum / kankar for side width etc. complete	86.90	Rupees eighty-six and paise ninety only	Per One Cubic Metre	3302.20	MORTH 408	--	
6	190.00	Square Metre	**Item No. 6 -** Compacting the hard murum side widths including laying in layers on each side with static roller including artificial watering etc. complete.	23.10	Rupees twenty-three and paise ten only	Per One Square Metre	4389.00	MORTH 408	--	

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

Sr. No	Quantity Estimated but may be more or less	Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
			In Figure	In Words			Spec. No.	Page No.	
1	2	3	4	5	6	7	8	9	10
7	2850.00 Square Metre	**Item No. 7 -** Providing and constructing 75 mm. thick Modified Penetration Macadam (MPM) road surface including all materials, preparing the existing road surface, spreading 40 mm. stone metal layers 30% crusher broken metal + 70% Hand broken (by breaking rubble obtained by blasting) heating and spraying the bitumen of specified grade @ 1.75 Kilogram/Square Metre, spreading 12 mm.size chips compacting with three wheel static roller having weight 8 to 10 MT. to achive the desired degree of compaction as per Technical Specification Clause 506 etc. complete. Including picking of existing WBM surface. (VG-30 bulk bitumen rates are considered to arrive at rates)	403.44	Rupees four hundred three and paise forty-four only	Per One Square Metre	1149804.00	RC-SP-20, 2002 Clause Number 8.7.3	--	
8	5700.00 Square Metre	**Item No. 8 -** Providing and applying tack coat on the prepared surface heating by fames in Boiler and spraying bitumen set footed in bitumen boller on B.T. surface 2.5 Kilogram/10 Square Metre.(VG-30 bulk bitumen rates are considered to arrive at rates)	20.15	Rupees twenty and paise fifteen only	Per One Square Metre	114855.00	MORTH 503	--	
9	142.50 Cubic Metre	**Item No. 9 -** BITUMINOUS MACADAM:--Providing and laying bituminous macadam using crushed aggregate of Grading 1, premixed with bituminous binder, transported at site with VTS, laid over a previously prepared surface, finished to the required grade ,level, alignment,and rolling to achieve the desired density for 80/100 mm compacted thickness with drum mix type hot mix plant with SCADA having complying essential features of Hot mix plant as per IRC-27 2009 specified conditions and attachments such as electronic load sensor based belt conveyers,automatic synchronization of bitumen and aggregate fedder,built in dust controller system and PLC for Drum Mix plant ,Sensor paver,and Vibratory roller excluding prime/Tack coat etc. complete --Bitumen 3.30% of specified grade (VG-30 bulk bitumen rates are considered to arrive at rates)	9279.07	Rupees nine thousand two hundred seventy-nine and paise seven only	Per One Cubic Metre	1322267.48	MORTH 504	--	

Sr. No	Quantity Estimated but may be more or less		Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
				In Figure	In Words			Spec. No.	Page No.	
1	2		3	4	5	6	7	8	9	10
10	85.50	Cubic Metre	**Item No. 10 -** BITUMINOUS CONCRETE:--Providing and laying bituminous concrete using crushed aggregate of grading 1, premixed with bituminous binder @5.40% by weight of total mix and filler, transported at site with VTS, laid over a previously prepared surface, finished to the required grade ,level, alignment, and rolling to achieve the desired density for 50mm compacted thickness with drum mix plant with SCADA, Sensor paver and Vibratory roller excluding prime/Tack coat etc. complete --Bitumen of specified grade with stone dust filler. (VG-30 bulk bitumen rates are considered to arrive at rates)	13182.11	Rupees thirteen thousand one hundred eighty-two and paise eleven only	Per One Cubic Metre	1127070.41	MORTH 513	--	
11	14.40	Cubic Metre	**Item No. 11 -** Excavation for foundation in earth, soil of all types, sand, gravel and soft murum, including removing the excavated material up to a distance of 50 m. beyond the building area and stacking and spreading as directed, dewatering, preparing the bed for the foundation and necessary back filling, ramming, watering including shoring and strutting etc. complete. (Lift upto 1.5 m.) By Mechanical Means	227.70	Rupees two hundred twenty-seven and paise seventy only	Per One Cubic Metre	3278.88	BdA-1	259	
12	13.19	Cubic Metre	**Item No. 12 -** Providing and laying in situ cement concrete of 1:4:8 proportion with trap/ granite/ quartzite/ gneiss metal in foundation including necessary form work, compacting and curing etc. complete. (with reversible drum type mixer with SCADA with fine agreegates of required specifications (Natural Sand / VSI sand finely washed etc)	7380.35	Rupees seven thousand three hundred eighty and paise thirty-five only	Per One Cubic Metre	97346.82	CD-3	160	
13	40.93	Cubic Metre	**Item No. 13 -** Providing cast in situ / ready mix M20 grade cement concrete for head walls of CD work / retaining walls etc. including necessary form work, compaction, finishing and curing etc. complete. (with reversible drum type mixer/ concrete batch mix plant (pan mixer) with SCADA with fine agreegates of required specifications (Natural Sand / VSI sand finely washed etc), cement 4.05 bags/cumt)	11735.65	Rupees eleven thousand seven hundred thirty-five and paise sixty-five only	Per One Cubic Metre	480340.15	CD-8	163	
14	7.50	Running Metre	**Item No. 14 -** Providing and laying cement concrete pipe of IS 458:2003 NP-2 class of 900mm diameter in proper line, level and slope including providing and fixing collars in cement mortar 1:2 and curing etc. complete.	5328.40	Rupees five thousand three hundred twenty-eight and paise forty only	Per One Running Metre	39963.00	CD-7	162	

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

Sr. No	Quantity Estimated but may be more or less		Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
				In Figure	In Words			Spec. No.	Page No.	
1	2		3	4	5	6	7	8	9	10
15	16.65	Cubic Metre	**Item No. 15 -** Providing selected hard murum filling including laying in layers of 15 to 20cmwith watering and cofillingmpacting etc. complete.	929.32	Rupees nine hundred twenty-nine and paise thirty-two only	Per One Cubic Metre	15473.18	CD-14	167	
16	95.00	Number	**Item No. 16 -** Road Marking with Hot Applied Thermoplastic Compound with Reflectorizing Glass Beads on Bituminous Surface-Providing and laying of hot applied thermoplastic compound 2.5 mm thick including reflectorizing glass beads @ 250 gms per Square Metre area, thickness of 2.5 mm is exclusive of surface applied glass beads as per IRC:35 .The finished surface to be level, uniform and free from streaks and holes.complete.	732.60	Rupees seven hundred thirty-two and paise sixty only	Per One Number	69597.00	MORTH 803.4	--	
17	1.00	Number	**Item No. 17 -** Providing and fixing Road junction / Information sign board of size 0.90 m x 0.60 m. prepared on 16 gauge M.S. sheet with angle iron frame of size 35x35x5 mm including painting with one coat of zinc cromate stoving primer and two coats each of green/ white back ground and back side gray stove enamelled, bonded with red retro reflective sheet Engineering grade, border / letters / numeral / arrows, coated with non pealable crystal clear protective coat retaining 100% reflection including two angle iron post of size 50x50x5 mm of 3.65 m. long inflated at bottom drilled on top and painted in white and black bands of 30 cm. with 4 Nos. high strength G.I. bolts and nuts of size 10 mm dia. and 20 mm long sheet and angle iron post in one piece without joints including all taxes, conveying, fixing in ground with cement concrete 1:4:8 block of 60 cm x 60 cm x 75 cm size as directed by Engineer-in-charge etc. complete. Mild Steel Board with Engineering Grade.	8595.40	Rupees eight thousand five hundred ninety-five and paise forty only	Per One Number	8595.40	MORTH 801	--	
18	3.00	Number	**Item No. 18 -** Shooting of still photographs, outdoor and indoor of construction and other works of building, bridges, roads etc. complete in District and Outside District of any distance size 4" x 6" size.	115.50	Rupees one hundred fifteen and paise fifty only	Per One Number	346.50	--	--	As directed by Engineer in charge.
						(A) Total Work Portion Rs.	**5255092.16**			
19	509.94	Cubic Metre	**Item No. 19 -** Royalty charges - Murum / HB / Rubble	216.18	Rupees two hundred sixteen and paise eighteen only	Per One Cubic Metre	110238.83	--	--	As directed by Engineer in charge.

Signature of Contractor ***No. of Corrections*** ***Chief Officer***

Sr. No	Quantity Estimated but may be more or less		Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
				In Figure	In Words			Spec. No.	Page No.	
1	2		3	4	5	6	7	8	9	10
20	24.41	Cubic Metre	**Item No. 20 -** Royalty charges - Sand	237.37	Rupees two hundred thirty-seven and paise thirty-seven only	Per One Cubic Metre	5794.20	--	--	As directed by Engineer in charge.
21			**Item No. 21 -** Quality Control and Testing Charges.							
	2.00	Test	Aggregate - Water Absorption, Specific Gravity, Impact Value.	2600.00	Rupees two thousand six hundred and paise nil only	Per One Test	5200.00	--	--	As per relevant I.S. code.
	5.00	Test	Sieve Analysis	690.00	Rupees six hundred ninety and paise nil only	Per One Test	3450.00	--	--	As per relevant I.S. code.
	1.00	Test	Murum - Liquid Limit and Plastic Limit	1170.00	Rupees one thousand one hundred seventy and paise nil only	Per One Test	1170.00	--	--	As per relevant I.S. code.
	2.00	Test	Crush Metal - Water Absorption, Specific Gravity, Impact Value, Crushing Value	2600.00	Rupees two thousand six hundred and paise nil only	Per One Test	5200.00	--	--	As per relevant I.S. code.
	4.00	Test	Sieve Analysis	690.00	Rupees six hundred ninety and paise nil only	Per One Test	2760.00	--	--	As per relevant I.S. code.
	2.00	Test	Bitumen - Penetration, Softening Point, Flash and Fire Point, Specific Gravity.	3135.00	Rupees three thousand one hundred thirty-five and paise nil only	Per One Test	6270.00	--	--	As per relevant I.S. code.
	2.00	Test	Extraction Test	1595.00	Rupees one thousand five hundred ninety-five and paise nil only	Per One Test	3190.00	--	--	As per relevant I.S. code.
	2.00	Test	Marshal Stability	1115.00	Rupees one thousand one hundred fifteen and paise nil only	Per One Test	2230.00	--	--	As per relevant I.S. code.
	1.00	Test	B.M. Mix Design	7490.00	Rupees seven thousand four hundred ninety and paise nil only	Per One Test	7490.00	--	--	As per relevant I.S. code.

Sr. No	Quantity Estimated but may be more or less	Description of Item	Estimated Rates		Unit	Total Amount according to estimated quantity (In Rupees)	Specifications as per Std. Specification		Additional Clause and Specification if any
			In Figure	In Words			Spec. No.	Page No.	
1	2	3	4	5	6	7	8	9	10
	1.00 Test	Sand - Fineness Modulus, Silt and Clay Content	1380.00	Rupees one thousand three hundred eighty and paise nil only	Per One Test	1380.00	--	--	As per relevant I.S. code.
	1.00 Test	Cement - Standard Consistancy	3770.00	Rupees three thousand seven hundred seventy and paise nil only	Per One Test	3770.00	--	--	As per relevant I.S. code.
	5.00 Test	Concrete Cube - Compressive Strength of C.C. Cube	690.00	Rupees six hundred ninety and paise nil only	Per One Test	3450.00	--	--	As per relevant I.S. code.
					(B) Total Royalty and Testing Charges Rs.	**161593.03**			
					(A + B) Total Rs.	**5416685.19**			
					Say Rs.	**5416685.00**			

Signature Not Verified

Digitally signed by ANIL RAJARAM NAGPURE
Date: 2026.04.21 18:10:50 IST
Location: Maharashtra-MH

Signature of Contractor ***No Corrections*** ***Chief Officer***